



TOWN OF CHINA GROVE

PERSONNEL POLICIES AND PROCEDURES

Adopted by the Town of China Grove Town Council on April 6, 2021.

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Ken Deal

TOWN CLERK
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TOWN ATTORNEY
Tom Brooke



MAYOR
Charles Seaford

TOWN COUNCIL
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TOWN OF CHINA GROVE

RESOLUTION ESTABLISHING THE PERSONNEL POLICIES AND PROCEDURES FOR THE TOWN OF CHINA GROVE

WHEREAS, the Mayor and Town Council of the Town of China Grove recognize the importance of its municipal employees in meeting the service needs of Town residents; and

WHEREAS, it is the desire of the Mayor and Town Council to maintain a municipal work force composed of qualified, competent, dedicated employees; and

WHEREAS, the Mayor and Town Council recognize the necessity of equitable rates of pay and reasonable conditions of employment in the maintenance of such a work force; and

WHEREAS, it is the desire of the Mayor and Town Council to establish and maintain a system of personnel administration that will assure equity of compensation and fair and reasonable employee treatment consistent with the needs of the Town and the exigencies of the situation which may be faced from time to time; and

WHEREAS, an employee violating any of the provisions of this policy shall be subject to suspension and/or dismissal, in addition to any civil or criminal penalty which may be imposed for the violation of the same; and

NOW, THEREFORE, BE IT RESOLVED by the Mayor and Town Council of the Town of China Grove that the following policies and procedures shall govern the employment conditions of the employees of the Town of China Grove, North Carolina, replacing where appropriate, all previously existing documents pertaining to the Town of China Grove Personnel and Safety and Wellness Policies, including but not limited to policies, ordinances, or resolutions.

This the 6th day of April, 2021.

Charles Seaford, Mayor

Pamela Mills, CMC Town Clerk

SECTION I

INTRODUCTION

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INTRODUCTION

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SECTION I

1.0 FOREWARD

The purpose of Town Government is to provide the highest possible public service attainable to the citizens of the Town of China Grove, tempered only by the availability of allocated resources.

The function categories of these services are:

- 1) Policy formulation and administration
- 2) Protection of persons and property
- 3) Community enrichment
- 4) Human resources
- 5) Environmental protection
- 6) Public Works

For this reason, there are no unimportant jobs in the Town. All employees play vital roles, whatever their jobs may be, in the provision of services to this community.

Because departments are interrelated and dependent upon each other, everyone must work together if we are to accomplish these stated goals. For any group to work together and to function efficiently there must be:

- A climate of cooperation
- A basic understanding of purposes and objectives
- A common interpretation of the policies, rules, and regulations that govern the organization

This manual has been prepared to set forth: policies, benefits, and regulations. Although the policies and procedures have been designed in the best possible manner, this manual and its contents cannot be considered as all inclusive. Allowances must be made for judgment on the part of the Department Director, Town Clerk, Assistant Town Manager and Town Manager. The Personnel Manual is updated and approved as necessary. Sections of this manual deal with procedural matters relating to each of the policies.

The Town of China Grove adopted its first "Personnel Policy" on April 5, 2005 and adopted the amended policy on May 1, 2007. This document is a real and updated document to replace the previously adopted resolution and policy.

2.0 POLICY STATEMENT

It is in the best interest of the Town to establish a centralized personnel system under the Town Manager by which matters relating to personnel shall be administered. It is the intent of the Town Council to establish an equitable uniform system of personnel administration, to place employment on a merit basis to the end that the best qualified persons available shall constitute the Town services.

The employment relationship between the Town and the employee is terminable at the will of either the employee or the employer at any time and with or without cause and with or without notice. No employee, officer, agent or representative of the Town has any authority to enter into any agreement for employment for any specified period of time, or to make any agreement or representation, verbally or in writing, which alters, amends, or contradicts this provision, or the provisions in the Personnel Policy. Any exceptions to this policy of “at-will” employment must be expressly authorized in writing, approved by the Town Council and executed by the officers designated by the Town Council. The provisions set forth in this policy shall apply to all Town employees not herein exempt.

None of the benefits or policies set forth in this Personnel Policy are intended because of their publication to confer any rights or privileges upon employees, or to entitle them to be, or remain employed by the Town. The contents of this document are presented as a matter of information only. Although, the Town believes wholeheartedly in the plans, policies, and procedures described herein, they are not conditions of employment.

3.0 CHANGES IN PERSONNEL POLICIES

Future changes in employment practices, as well as changes in legal, social, and economic factors may require the Town, from time to time, to change or modify personnel policies. Affected employees will be promptly notified of any changes.

Updates in the changes that occur in the personnel policies and procedures will be accommodated through e-mails and correspondence to the Department Director. The responsibility of changes within this Personnel Policy and effectively communicating these changes with departments lie with the Town Manager.

4.0 DEFINITIONS

The following words, terms, phrases, when used in this policy, shall have the meanings ascribed to them in this Section, except where the context clearly indicates a different meaning:

Adverse action: A demotion, suspension, dismissal, reduction in pay, transfer or lay-off.

Appointing authority: Any position with the legislated or delegated authority to make hiring decision.

Completed month: Any month in which an employee works at least one-half the workdays.

Completed year: A period of twelve (12) calendar months in which the employee is in active pay status or is receiving worker’s compensation payments while on leave without pay.

<i>Full time:</i>	A person employed on a continuous year-round basis for a period of time which exceeds more than six (6) months and who is regularly scheduled to work (including vacation and holidays) an average of at least forty (40) hours per week. An employee in this classification is entitled to employee benefits.
<i>Grievance:</i>	A claim or complaint based upon an event or condition which affects the circumstances under which an employee works, allegedly caused by misinterpretation, unfair application or lack of established policy pertaining to employment conditions.
<i>Part Time:</i>	A person employed on a continuous appointment/position of less than full time work hours.
<i>Probationary:</i>	A person appointed to a position who has not yet completed the probationary period of ninety (90) days.

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SECTION II

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SECTION II

1.0 GENERAL

EMPLOYEE RELATIONS

Management realizes that a high standard of services rendered to our citizens can be maintained only through the combined, cooperative efforts of Town employees. Recognizing that our employees are our most important assets, administration is always concerned with their welfare - including their compensation, employee benefits, and working conditions. The Town Manager and Department Directors are always willing to consider suggestions from employees as well as to hear their grievances. Management believes in fair and equal treatment for all employees. For these reasons, it is not necessary for the employee to resort to a third party to bring suggestions or complaints to our managers and supervisors.

EQUAL EMPLOYMENT OPPORTUNITY

Section 126-16 of the General Statutes of North Carolina provides, "All state departments and agencies and all local political sub-divisions of North Carolina shall give equal opportunity for employment without regard to race, religion, color, creed, national origin, or sex to all persons otherwise qualified." Discrimination against any person in recruitment, examinations, appointments, training, promotion, retention, discipline, salary increases, or any other aspect of personnel administration because of race, color, national origin, or because of political or religious opinion or affiliation is hereby prohibited, except where specific age, sex, or physical requirements constitute bona fide occupational qualification necessary for job performance.

Any applicants or employees who believe that employment, promotion, training, or salary increases were denied them or that demotion, transfer, layoff, or termination was forced on them because of their race, color, sex, national origin, or political or religious opinion or affiliation, may appeal to the Town Manager. In addition, employees are entitled under federal statutes to register their complaints with the Office of the Equal Employment Opportunity Commission.

1.03 SECONDARY EMPLOYMENT

The employment responsibilities to the Town are primary for an employee working full-time with benefits; other employment in which that employee chooses to engage is secondary. Outside employment for salaries, wages, commission, or self-employment must be approved by the employee's supervisor and the Town Manager. See Section III, 1.01.04 on page 32 for further details.

1.04 EMPLOYEE CLASSIFICATION

Town personnel are classified into one of the following categories: regular full-time, part-time, and paid-per-call.

1.04.01 REGULAR FULL-TIME

A regular full-time employee is a person employed on a continuous year-round basis and who is regularly scheduled to work (including vacation and holidays) a minimum of forty (40) hours per week. A full-time employee is required to successfully complete a six month probationary period to be classified as regular full-time status. An employee in this classification is entitled to all employee benefits.

1.04.02 PART-TIME

A part-time employee is a person employed on a continuous year-round basis for less than 999 hours in the fiscal year. A regular part-time employee is a person who works a regular weekly schedule of less than twenty (20) hours. Other part-time positions may be temporary, seasonal, substitutes or utilized during periods of heavy workloads. These part-time employees, including seasonal, may work varied schedules during different times of the year based upon workloads and staff needs. No minimum amount of hours is guaranteed on a weekly or yearly basis. Positions may be eliminated or employees separated due to lack of work, budget constraints, yearly hours limit, or any other related business reason.

Part-time positions that are approved through the budget process that require more than twenty (20) hours a week on a continuous year-round basis are classified as regular part-time benefited. The regular part-time employee is eligible for employee benefits on a pro-rata basis.

1.04.03 PAID-PER-CALL

A paid-per-call employee is a person employed for responding to emergency calls for the China Grove Fire Department on a pay-per-call basis. Pay grade for paid-per-call employees is established by the Fire Chief and approved by the Town Manager on an experience and qualification basis. No minimum amount of hours is guaranteed on a weekly or yearly basis. Positions may be eliminated or employees separated due to lack of work, budget constraints, yearly hours limit, or any other related business reason.

2.0 HIRING PROCEDURES

The employment function is centrally administered by the Department Director who has the responsibility for recruiting, screening, and referring job applicants to fill budgeted job vacancies including part-time within that department. The authority to recommend employment lies with the Department Director, as long as it complies with established policies and procedures; otherwise, the Town Manager may directly affect any decision, which is considered outside the scope or intent of policy. Department Directors will strive constantly to seek qualified people to fill position vacancies.

It is the responsibility of the Town Manager to control employment in conformity with the budget; i.e., the number of persons employed in a department may not exceed the number budgeted. Exceptions to this rule must be specifically approved by the Town Council; however, the Town Manager may approve temporary positions provided funds are available within the existing authorized budget.

Department Directors desiring to fill positions should indicate their need to the Town Manager. To avoid delay in obtaining a replacement, the Department Director must notify the Town Clerk of any upcoming position vacancies. The Town Manager may approve the employment of a replacement worker who will overlap the work of a terminating employee by more than one pay period.

2.01 PROCESSING THE NEW EMPLOYEE

The Town of China Grove will not employ an individual who has not been properly processed by the Town Clerk. This procedure will include the completion of the application, Form I-9, W-4 and NC-4, checking historical work record of the applicant, successful drug or alcohol test, and in some cases a physical exam. The Department Director will notify the Town Clerk of selection after completing interviews of selected applicants. Final authorization for employment will be administered by the Town Manager.

This policy does not supersede the rights of the Department Director in the selection of personnel for their areas of responsibility. It is intended to define the sequence of events in employing persons for existing vacancies.

By having the employees make their initial contact with the Town Clerk, the Town may meet its obligation under existing laws, which include verifying the social security number and having the proper tax forms completed prior to actual work time. In addition, the Town is required, as described by the Equal Employment Opportunity Commission, to select an individual from all the applications that are submitted for any particular position and to choose an individual who is best suited to the job. This may be accomplished only if the Town Manager and Town Clerk remain the focal point in employment practices.

The final step in an employment arrangement is to place the individual on the payroll and to provide an opportunity for the new employee to understand the conditions of employment. These events must occur before the individual is allowed to work in his\her areas of assignment. These obligations will be met through an effective New Employee Orientation Program.

2.02 RECRUITING

The Town of China Grove may use many sources to recruit qualified personnel to fill the various position vacancies. Included among these sources are the Employment Security Commission, advertisement in newspapers and professional magazines, schools, colleges, business and trade schools, referrals from special interest groups, and walk-in applicants.

Town employees are particularly urged to refer persons qualified to fill Town positions to the Department Director or Town Manager. Department Directors are also encouraged to use their special knowledge of the fields to aid in recruiting.

2.03 PRIVATE EMPLOYMENT AGENCIES

The Town ordinarily will not use fee-charging employment agencies. The Town may use a fee-charging employment agency as an aid in recruiting applicants for hard-to-fill administrative, executive, or professional positions. Any use of a fee-charging agency must be submitted to the Town Clerk and approved by the Town Manager.

2.04 CORRESPONDENCE WITH APPLICANTS

Inquiries for employment shall be forwarded to the Department Director so that the application can be obtained, appointments can be arranged, and referrals can be made. Positions requiring a confirmation of employment by mail shall be referred to Town Clerk so that employment dates can be designated, and confirmed, and arrangements can be made for orientation.

2.05 JOB VACANCY POSTING

Job vacancies will be posted as needed. In order to encourage promotion from within, vacancies determined by the Department Director to be an opportunity for promotion from within will be posted separately in Town departments. If a suitable candidate cannot be chosen from within, the vacancy will then be placed on the Town website and made available to the public. No positions will be filled that have not been properly posted.

2.06 APPLICATION FOR EMPLOYMENT

Applicants for positions with the Town of China Grove must complete an application. Application forms for employment are to be completed and kept on file with the Town Clerk. Completed applications for employment are personnel records and the disclosure of these records is prohibited. All information maintained on the application for employment is confidential and not even their names are subject to disclosure.

Application forms must be filled out online or in ink and will remain active for a period of six (6) months, after which time applications, which are not on any current list of eligible applicants, will be placed in an inactive file for six (6) months. Applications inactive for six (6) months will be stored for one (1) additional year, after which time they will be destroyed. After an application's inactive period has expired a new application must be completed.

2.07 MINIMUM QUALIFICATIONS FOR JOBS

Minimum Qualifications for jobs will be stated on posted vacancies. Preferences may be stated on qualifications but will not be required. Final decisions on minimum qualifications are determined by the Town Manager.

2.08 DISQUALIFICATION OF APPLICANTS

Department Directors are responsible for determining that each individual employed is qualified for that position and may disqualify a person seeking to apply for a position under any of the following conditions:

- a) They lack any of the requirements established for the job classification;

- b) They are disabled to the extent that they cannot perform the duties of their jobs with reasonable accommodation;
- c) They have been convicted of crimes of a nature which would raise serious public doubt as to their suitability to assume the responsibilities of the job;
- d) They have intentionally falsified their application, or, omission of material fact;
- e) They have previously been dismissed for cause, which has been validated;
- f) They have used or attempted to use political pressure or bribery to secure an advantage in appointments;
- g) They failed to meet the applicable licenser requirements;
- h) They are aliens who under federal statutes do not qualify for employment;
- i) They have failed to submit the employment application correctly or within the prescribed time limits;
- j) They submitted an incomplete or inappropriately completed application;
- k) They are minors under the age of 16.
- l) They fail a pre-employment drug test or physical exam.

2.09 PRELIMINARY INTERVIEWS

Upon submission of a completed application, each applicant, contingent upon staff availability, may be given a preliminary interview by the Town Manager. The purpose of their interview is to (1) check that the application is completed fully and properly; (2) to inform the applicant of the Town's application procedure and new hire salary policy; and (3) to obtain clarification on any aspect of the application necessary to allow a proper evaluation of the application.

2.10 VETERAN'S PREFERENCE

Employment preference shall be given to Veterans in accordance with N.C.G.S. 126 81.

2.11 LIST OF ELIGIBLE APPLICANTS

A list of eligible applicants may be established for each job vacancy. The list of eligible applicants will include a listing of active applicants who have applied for and meet the minimum qualifications for that job class. THE LIST OF ELIGIBLE APPLICANTS WILL NOT BE MADE PUBLIC.

Applicants will be withdrawn from the list of eligible applicants after six (6) months from the date of their application if they have not notified the Town Clerk to renew the active status of their application.

Applicants will be referred by the Town Manager to the Department Director after - (1) the position vacancy has been closed, and (2) applications have been evaluated and determined to meet the minimum qualifications.

A list of eligible applicants for the job class will be referred to the Department Director. Department Directors are encouraged to select an applicant from this list. However, if after consideration a selection cannot be made, the hiring authority may request that the job be re-opened for recruitment and other qualified applicants referred.

2.12 DEPARTMENTAL SELECTION PROCESS

The Department Director is responsible for initiating the recruitment process by informing the Town Clerk of each vacancy.

When available, a list of eligible applicants and corresponding applications will be referred by the Town Manager for each job vacancy. Upon receipt and screening of applications by the Town Manager and Department Director, interviews will be scheduled. The number of applicants to be interviewed will be determined by the Department Director. Prior to the interview, a copy of the interview schedule and a copy of the applicant's credentials will be sent to any other Town representatives attending the interviews where applicable.

At the beginning of each interview, the Department Director introduces the applicant to other Town representatives in attendance where applicable and describes the program in which the vacancy exists and the responsibilities of the vacant position. Following this introduction, each representative of the Town will be provided an opportunity to ask pre-determined, job-related questions. These questions will be developed by the Department Director and must be directly related to the job to be performed. The Town Clerk may be of assistance in the preparation of questions to assure compliance with established recruitment and selection practices. After the interview has been completed, all applicant information is reviewed and an interview record form completed by each committee member.

After selected applicants have been interviewed, the Department Director will select the best suited candidate(s) based on the Town representatives' evaluation of each applicant interviewed, and forward to the Town Manager for approval. The selection of applicants for appointments will be based upon a relative consideration of their qualifications for the position to be filled. Advantage will be given to applicants determined to be best qualified and the Department Director will reasonably document hiring decisions to verify this advantage was granted and explain their basis for selection.

All information on applicants is considered CONFIDENTIAL and subject to the provisions of the State Personnel Privacy Act.

2.13 REFERENCE CHECKS

Reference checks are used to verify information provided by the applicant on the application form or during the employment interview. The Department Director is required to perform a reference check on the applicant it considers its top candidate. Prior to checking references, the applicant should sign a Release Form. This form releases the Town and the person giving the reference from the liability of legal action should a negative hiring decision result. No reference check should be

performed until the release form is signed. Any reference checks or background investigation, whether by telephone or letter, should be recorded and should become a permanent part of the employee's record. Reference and background information along with a release form should be forwarded to the Town Clerk.

2.14 CONSUMER CREDIT REPORTS

Consumer credit reports can be obtained as part of the selection process for some positions that require processing monies or financial accounts of the Town. Disclosure must be given to the applicant that a consumer credit report will be obtained and used in making the employment decision. Written permission from the applicant should be obtained by the Consumer Credit Report authorization form.

If an adverse hiring decision is made based upon the credit report, the applicant must be provided with the name, number, and address of the consumer reporting agency that supplied the report. The applicant must be given notice of their right to dispute information contained in the report as well as the right to obtain a free copy of the report from the reporting agency within sixty days. The Town will wait at least five business days after giving notification to the applicant of the adverse employment decision before proceeding to another applicant. These guidelines are consistent with the Fair Credit Reporting Act.

2.15 COMMITMENT TO EMPLOYMENT

Formal commitment to employment will be made in writing by the Town Manager upon proper notification from the Department Director.

It is the responsibility of Town Clerk to notify unsuccessful applicants that were interviewed but not chosen. Once a decision has been made, the Department Director shall forward all application forms back to the Town Clerk, indicating the appropriate course of action that should be taken. To keep this process working in a timely manner, cooperation is required; otherwise, a breakdown in proper communications will occur.

2.16 LICENSING AND REGISTRATION

There are job classifications that require licenses, registration and/or certification to be employed by the Town of China Grove. A schedule of these classifications will be maintained by the Department Directors. Inquiries as to what classifications require licenses, registrations, and/or certifications should be made to the corresponding Department Director.

2.17 WORK AGAINST APPOINTMENT

When qualified applicants are unavailable, and there is no trainee provision for the classification of the vacancy, an appointment may be made below the level of the regular classification in a work against situation. A work against appointment is for the purpose of allowing the employee to gain the qualifications needed for the full class through on the job experience. The appointment must meet the minimum education standard of the class to which initially appointed. A work against appointment should not be made when applicants are available who meet the education and

experience requirements for the full class. The salary of an employee in a work against position should be no more than 15% below the grade and no less than 5% below the grade. Employees in a work against position are not eligible to receive an increase when coming off the probationary status, nor are they eligible for merit consideration.

2.18 EMPLOYMENT OF MINORS AND WORK PERMITS

No one under the age of sixteen (16) will be employed by the Town in any capacity. Applicants at least sixteen (16), but less than eighteen (18), years of age may be employed within the limits of State and Federal laws as to the hours and areas worked. Persons employed under federal grants are excluded from the age restriction of sixteen (16) and may be employed as young as fourteen (14) years of age.

The North Carolina Department of Labor and the Federal child labor rules established by the Fair Labor Standards Act (FLSA) exempt federal government employees and employees of the State of North Carolina and any city, town, county, or municipality thereof from the youth employment provisions including the requirement to obtain a North Carolina work permit for youths under eighteen (18).

As an added precaution, the Department Director should be reminded that, by definition of law, a minor is not allowed to be subject to hazardous duty. Hazardous duty is defined as dealing with dangerous power-driven machinery, including motor vehicles. In addition, a minor cannot be hired to operate manual elevators or other power-driven hoisting machinery.

2.19 EMPLOYMENT OF ALIENS

Applicants who are aliens and here in the United States under a visitor's visa must have a current work visa from the Immigration and Naturalization Service prior to appointment. It is the responsibility of the Town Manager to verify this visa during preliminary interviews and during the New Employee Orientation. A copy of the work visa will be maintained in the employee's file as a part of the permanent record. The Immigration Reform and Control Act of 1986 requires that the Town Manager complete the following on each employee:

- 1) Complete Form I-9 (Employment Eligibility Verification);
- 2) Check documents establishing employee's identity and eligibility to work;
- 3) Retain the Form for at least three years (if the person is employed for more than three years the form must be retained until one year after the person leaves employment);
- 4) Present the Form for inspection to an INS or Department of Labor Officer upon request.

To employ an alien without a proper work visa is a violation of federal law and is subject to legal penalties.

2.20 EMPLOYMENT OF RELATIVES

Employment of a relative (to the third degree of kinship whether by blood or marriage) of any member of the governing body of the Town of China Grove is prohibited. No person shall be hired or assigned to work under the administrative influence or supervision of such a relative, nor shall any employee's relative of such kinship be hired except under unusual conditions, without prior approval of the Town Manager.

2.21 REINSTATEMENT RIGHTS

Persons who have left employment with the Town of China Grove in good standing, for three (3) years or less, or were separated under a reduction in force shall be eligible for reinstatement. Although the employee is eligible for reinstatement to regular status, the Department Director may request reemployment with a probationary appointment. The employee will meet the requirements of the probationary period the same as for original appointments.

Before being reinstated, an individual must be certified by the Department Director as meeting the current minimum qualifications for the job to which he or she is being appointed.

When reinstated within three years from separation, the vacation-earning rate shall be the same as when the employee left employment, and unused sick leave shall be reinstated. Health insurance coverage and 401K enrollment will be effective with the new hire date.

The Department Director may request the same salary that was paid at the time of separation or a lower salary within the salary range for the class recommended.

A break in service occurs when an employee is in a non-pay status for more than thirty-one (31) calendar days because of resignation, dismissal, retirement, or reduction in force. Periods of leave without pay do not constitute a break in service.

2.22 PROBATIONARY PERIODS

Individuals receiving original appointments to positions must serve a probationary period. This period is an essential extension of the selection process and provides the time for effective adjustment of new employees or termination of those whose performance will not meet acceptable standards. Individuals who are fully reinstated as determined by the Department Director and Town Manager are not required to serve a probationary period. Part-time employees without benefits do not serve a probationary period.

2.22.01 TIME LIMIT OF PROBATIONARY PERIOD

The length of the probationary period is usually six (6) months. However, the Department Director may request to extend the probationary period if the employee has potential to fulfill the job requirements. No employee shall remain on probation for more than nine (9) months. When the employee's performance meets the required standard of work after serving the probationary period, that person shall be given regular status. An employee

with a trainee appointment is not expected to reach a satisfactory performance standard for a regular job class until the employee has completed the training period. Conditions of employment for trainees are defined prior to employment and dismissal can occur during this training time for any trainee who performs work in an unsatisfactory manner. A written notice of at least fourteen (14) days is required prior to dismissal of a probationary employee or a trainee.

Current non-benefited employees who are hired into a full-time or benefited part-time position will be required to serve a probationary period of six (6) months.

Once employees successfully complete their probationary periods, they cannot be required to serve another probationary period. An exception may be considered for some promotions if the essential duties are significantly different than the duties of the previous position or if, in the judgment of the new employing department, a probationary period is justified.

The exceptions to a probationary pay increase include:

- 1) Employees who are fully reinstated to employment with the Town.
- 2) Employees who are promoted to a position where the essential duties are significantly different or are promoted to a position in another department and are required to serve another probationary period.

2.22.02 DISMISSAL DURING PROBATION

At any time during a probationary period an employee may be separated from service for causes related to performance of duties or for personal conduct that is normally considered detrimental to the Town. The employee will not be able to appeal this decision. The employee must be given notice of dismissal, including reasons thereof, at least fourteen (14) days in advance of the separation date. The reasons for dismissal shall be documented and filed with the Town Clerk. If the employee is not given regular status at the end of the six (6) months probationary period, that person's service must be terminated unless the delay is necessitated by trainee or provisional status.

2.22.03 PERSONNEL CHANGES NOT SUBJECT TO PROBATIONARY PERIOD

A probationary period cannot be required for any of the following changes:

- 1) Transfer of a regular employee
- 2) Demotion of a regular employee
- 3) Reinstatement after leave of absence

3.0 ORIENTATION

3.01 GENERAL ORIENTATION

New employees will report to the Department Director on or before the first day of employment.

The purpose of the general orientation is to ensure that new employees have the opportunity to gain a better understanding of their job responsibilities and privileges. The Department Director will be responsible for initially acquainting the new employee with the basic information needed to accomplish this objective.

By improving this transition to a new environment, it is hoped that employees will gain appreciation of their job and better job satisfaction.

At the end of the General Orientation Period, each employee will report to the Town Clerk and Finance Director to:

- a) Be properly enrolled into the payroll system.
- b) Have completed the necessary tax forms.
- c) Have been informed regarding benefits privileges and responsibilities.
- d) Have gained a basic understanding of professional ethics and job expectations.
- e) Be able to demonstrate an understanding for the services being rendered for the Town.

3.02 DEPARTMENTAL ORIENTATIONS

Department Directors and supervisors are responsible for continuing the orientation of new employees, particularly with reference to departmental procedures and specific job assignments.

END OF SECTION II

SECTION III

GENERAL PERSONNEL POLICIES

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SECTION III

1.0 EMPLOYEE REGULATIONS

1.01 CODE OF ETHICS & CONFLICTS OF INTEREST

It is the policy of Town of China Grove to uphold, promote, and demand the highest standards of ethics from all employees and officials, whether elected or appointed. Accordingly, Town employees should maintain the utmost standards of personal integrity, truthfulness, honesty, and fairness in carrying out their public duties; avoid any improprieties in their roles as public servants; and never use their Town position or powers for improper personal gain.

1.01.01 GIFTS AND FAVORS

Receiving or giving of gifts or favors is not in the best interest of the Town of China Grove. Therefore, no officials or employee of the Town shall:

- a) Accept any gift, favor or thing of value that may tend to influence them in the discharge of their duties; or
- b) Grant, in the discharge of their duties, any improper favor, service, or thing of value.

The following may serve as exceptions, but employees should consult with their supervisor when in doubt as to the propriety:

- a) Advertising items or souvenirs of nominal value;
- b) Meals furnished at banquets;
- c) Consumable gifts offered to an entire work group during the holiday seasons where rejection would damage the spirit in which the gifts were offered.

Any violation of this section shall subject the employee to dismissal or other disciplinary action.

1.01.02 POLITICAL ACTIVITIES

Every employee of the Town has a civic responsibility to support good government by every available means and in every appropriate manner. Each employee may join or affiliate with civic organizations of a partisan or political nature, may attend political meetings, and may advocate and support the principles or policies of a civic or political organization in accordance with the Constitution and laws of the State of North Carolina and in accordance with the Constitution and laws of the United States of America. However, no employees shall:

- 1) Engage in partisan or political activity while on duty or within any period of time during which they are expected to render services for which they receive compensation from the Town;

- 2) Use official authority or influence for the purpose of interfering with or affecting the result of an election or nomination for office;
- 3) Be required, as a duty of their office or employment, or as a condition for employment, promotion or tenure of office, to contribute funds for political or partisan purposes;
- 4) Solicit, or act as custodian of, funds for political or partisan purposes while on duty as an employee of the Town;
- 5) Coerce or compel contributions while on duty as an employee of the Town from another employee for political or partisan purposes;
- 6) Use supplies or equipment of the Town for political purposes;
- 7) Permit political advertising at any Town facilities or on any Town property including political advertisements attached to Town vehicles.

Elected officials are exempt from this entire section; however, elected officials are not to use public funds, goods, supplies, or material for partisan political purposes. Elected officials must return all Town equipment that was used in their duties of their office at the completion of their term.

No employee shall run for elected office in violation of State or Federal laws and regulations or any other local ordinances. No formal or informal campaign efforts may be performed during the operating hours as established by the Town.

An employee may be allowed to take up to two (2) weeks leave without pay before the primary and before the general election. If the employee has accumulated vacation leave, extra holiday, or compensatory time, he/she may use this paid leave in lieu of leave without pay. Any violation of this policy shall be deemed improper conduct and may subject the employee to disciplinary action up to and including dismissal.

1.01.03 SOLICITATION AND FUND-RAISING ACTIVITIES

The Town fully supports the efforts of employees to raise funds for charitable causes and non-profit organizations as long as these activities do not conflict with conducting Town business during regular hours of operation. Soliciting, taking and delivering orders, receiving payments, and related activities shall not interfere with the employee's work or the work of others. These activities should be restricted to employee breaks and lunch hours.

Employees are prohibited from selling products or conducting transactions that benefit the employee personally or his/her business both during and after work hours and on Town property.

1.01.04 SECONDARY EMPLOYMENT

The employment responsibilities to the Town are primary for an employee working full-time; other employment in which that employee chooses to engage is secondary. Outside employment for salaries, wages, commission, or self-employment must be approved by the employee's supervisor and the Town Manager. The purpose of this approval procedure is to determine that the secondary employment does not have an adverse effect on primary employment with the Town and does not create a conflict of interest. The Town Manager will review and approve requests from Department Directors for secondary employment.

Secondary employment shall not be permitted when it would:

- 1) Create either directly or indirectly a conflict of interest.
- 2) Impair in any way the employee's ability to perform expected duties, to make decisions and carry out in an objective fashion the responsibilities of the employee's position.

The employee shall submit the form for "Approval for Secondary Employment" through the proper channels for approval. Approval must be given before beginning secondary employment. If approved, there shall be a periodic review during the time of secondary employment for any adverse effects. Approval of secondary employment may be withdrawn at any time. Engaging in conflicting outside employment will be grounds for disciplinary action up to and including dismissal.

Employee requests for approval of secondary employment, accompanied by required supporting information, shall be treated confidentially for all purposes other than review and action by appropriate officials; secondary employment is a private matter of the individual employee in all other respects.

Employees who are out of work under the provisions of Short Term Disability, Maternity Leave, Worker's Compensation or Leave Without Pay for sick leave purposes are prohibited from engaging in any outside employment during the period of leave. Working on another job when the employee is out on leave will be grounds for disciplinary action up to and including dismissal.

1.01.05 CONFLICT OF INTEREST

No employee shall use his/her position for unauthorized personal gain. Employees must not have any financial interest in, or receive any financial benefit from, any acquisition or expenditure related to Town activities that interferes or conflicts with the full discharge of

their duties. The basis of any possible conflict shall be disclosed to the involved employee's supervisor by the employee before any benefit there from is received by the employee.

1.02 CARE OF SUPPLIES, EQUIPMENT AND PROPERTY

It is the primary responsibility of each employee to ensure that Town supplies, equipment, and property are used in the manner most beneficial and economical for the citizens of this community. The protection of property of visitors and employees is a similar responsibility.

Town employees have an individual responsibility to avoid waste and take proper care of supplies, equipment, and property with which they work. Employees should realize that Town supplies and equipment are expensive and often difficult to obtain. Another point to bear in mind is that the employee is also a taxpayer and therefore, ultimately pays the bill for supplies, equipment and property.

The following policies apply to the care of supplies, equipment and property.

- a) If employees are operating or using equipment which is defective or not functioning properly, they are responsible for reporting it to their supervisors.
- b) Deliberately damaging or wasting Town supplies or equipment, which includes defacing Town property in any manner, is prohibited. Such damage or waste is a serious violation and the offenders are subject to disciplinary action.
- c) Any employee, regardless of position, who knowingly and willfully consumes or improperly removes Town or employee property without authorization is subject to immediate discharge. In case of discharge for theft, the Town Manager may consider pursuing some form of litigation.
- d) The Town reserves the right to inspect packages carried off the premises by an employee.
- e) The Town reserves the right to open for inspection any of its property. At least three persons, including the Department Director, and the employee who might be affected, should be present for the inspection.

1.03 ISSUED EQUIPMENT

In order to work more efficiently and safely, many Town employees are furnished communications equipment, computer equipment, personal protective equipment, and tools. An Employee Equipment Checklist will be completed by the employee's supervisor and maintained on file in the employee's department listing any equipment, uniforms, I.D. Badges, keys, etc. issued to the employee during their employment. It is the responsibility of the employee to protect them from harm or loss. The Town understands that items can be legitimately lost, stolen, or broken in the normal course of business. However, no Town-owned equipment should be lost, stolen, or broken because of employee negligence. If an employee loses or breaks equipment in the normal course of Town business while using the equipment for the purpose it was designed, the equipment will be replaced at the expense of the Town.

If negligence on the part of an employee caused the loss or damage to equipment, disciplinary action may be taken up to and including dismissal. Should the Department Director be unable to determine whether an employee was negligent, the Town Manager in conjunction with the Department Director will make the determination based upon the investigation.

Upon resignation or dismissal from employment, the employee's supervisor and Department Director will be responsible for the collection of issued equipment as listed on the Employee Equipment Checklist. It is the Department Director's responsibility to review the Employee Equipment Checklist for completeness and signatures and to ensure all equipment, keys, etc. have been returned and access to the Town's computer system has been terminated. Elected officials must return all Town equipment that was used in their duties of office at completion of their term.

1.04 ADVERSE WEATHER CONDITIONS

On occasions, severe weather conditions may become a factor in determining whether employees should report to work. When such conditions occur, the following procedures apply:

- 1) Departments providing emergency and critical services should report as usual.
- 2) Department Directors are responsible for ensuring that their respective offices are opened as soon as practical and that at least a minimum number of employees are present to control and protect the facility as well as provide telephone communications and essential services.
- 3) Employees are to use their discretion based on their own personal situation to decide if and when travel to and from work can be safely made. Employees should protect their families and belongings before attempting to travel to work during adverse weather.
- 4) If the Adverse Weather Policy goes into effect, employees will be allowed to utilize annual leave for lost time from work if they are unable to arrive at their designated work area.
- 5) Due to the difficulty of controlling make-up time, employees will not be allowed to make up lost time. Department Directors may allow employees to offset lost time by any compensatory time earned within the same week prior to the lost time. Compensatory time cannot be granted by a Department Director simply to add hours to offset the lost time.

1.05 PARKING REGULATIONS AND POLICIES

Within the limitations of available parking areas, the Town of China Grove will provide parking to regular full-time and part-time employees. It is the responsibility of the Department Director to inform their employees of the parking locations and the regulations they are expected to follow.

Employees who park their automobiles in unauthorized areas other than lots assigned to the Town of China Grove are subject to be towed away at owner's expense. Employees are prohibited from

parking in areas of other organizations or places of business. Failure to comply with this policy could lead to disciplinary action.

1.06 WORK BREAKS

When the workload permits, two (2) ten (10) minute work breaks are permitted daily. The work break is not an employee right, and the break may never be used as a valid reason for failure to perform required duties.

Break time may not be accumulated. Time allowed for work breaks is within the normal work day, but pay will not be made in lieu of break periods. Employees who abuse work break privileges will be subject to disciplinary action.

1.07 EMPLOYEE PERFORMANCE STANDARDS AND STANDARDS OF PERSONAL CONDUCT

As public employees serving the citizens of the Town of China Grove, employees are expected at all times to provide quality and efficient services through the following performance standards listed in Section II – 2.22.

- a) Employees must perform their duties in a satisfactory manner which would reflect credit upon themselves and the Town.
- b) The private and personal affairs of an employee are the concern of the Town only when they reflect discredit on the Town or impair the employee's job performance. Employees must not use work time or facilities to conduct personal business or affairs. Personal use of the Town telephone system should be limited to avoid interference with work performance. Employees should not receive personal mail at the Town.
- c) Each employee is responsible for seeking ways to improve the kind and quality of services rendered by the Town. Each worker should not only carry out one's duties properly, but continually be alert for and seek new methods and means to perform these duties more efficiently.
- d) Supervisory employees must constantly evaluate the performance of each employee under their direction and keep employees advised of the status of that evaluation. Employees have a right to know how well they are performing and they must be told. Both good and poor performance requires constant evaluation and appropriate comments or counsel from the supervisor. Employees must perform their jobs in accordance with the Town organizational structure and established policies and procedures. The standard includes obedience to supervisors and the following of organizational lines. Organizational structure is not designed to stifle individual initiative or freedom of expression, but rather, to assign responsibility, aid in communication, and increase efficiency.

- e) Employees are responsible for assuring that they do nothing to conceal deliberately any inadequacy in the performance of any other employee.
- f) Each employee must use supplies, equipment and materials in a safe and efficient manner. Waste must be avoided.
- g) Each employee is responsible for helping to maintain a safe and healthy working environment. The Town is required by law to provide such an environment. Therefore, it is the individual responsibility of each employee to use safe work methods for the protection of oneself and others. Employees should report any health or safety hazard to their supervisor immediately.
- h) Employees must consider themselves "on call" for the Town during times of community disaster or other emergency situations. When each employee is hired, that person, in effect, agrees to be "on call" as requested by the Department Director to assist the community if the need should arise.
- i) Supervisory personnel represent the Town on a twenty-four (24) hour basis regardless of whether they are on duty or off duty. Therefore, the Town has a right to expect loyalty in carrying out their job-related responsibilities.
- j) The very nature of the Town work brings most employees into daily contact with many different people. Employees are expected to display the utmost courtesy and tact in their dealing with visitors and fellow employees.
- k) Town employees must conduct themselves in an orderly manner while on duty. Employees should refrain from loud talking, boisterous laughing, complaining, arguing, horseplay, or any other activity that would be disturbing or would be out of place in Town government. The use of profane, abusive, or threatening language toward fellow employees or visitors, as well as fighting or threatening bodily injury and similar acts of misconduct, will be cause for disciplinary action or immediate discharge.
- l) Employees must maintain their personal appearance in a clean and neat manner. Everyone who is required to wear a uniform must be in complete uniform while on duty. Uniforms should always be fresh, clean and neatly pressed. Extreme forms of dress or grooming should not be used. Toiletries, which might be offensive, should not be used. Hair should be kept clean and neat, simply styled and not excessively long. Beards, sideburns, and mustaches may be worn but should be neatly trimmed and not excessively long. Provided, however that with written consent of the Town Manager, a Department Director may adopt a department regulation that prohibits uniformed Personnel within that department from wearing beards or goatees, unless granted a waiver by the Department Director for medical reasons. The Town realizes that the style of dress and grooming are regarded as personal matters, and under ordinary circumstances, matters of individual choice. It is not the intent of the Town to set standards of dress or grooming to prevent individual choice

or freedom of expression. Conversely, the Town sincerely encourages employees to express their individuality by referring ideas and suggestions to their Department Director. The Town does, however, have the responsibility and the right to provide a safe and healthy environment for its employees. Therefore, if in the opinion of the supervisor, the employee's appearance is considered extreme, the Town has the right to request the employee to alter that person's appearance to a more appropriate manner.

- m) Any inquiries for material that is considered by state and federal laws to be privileged or confidential information should be referred to the Department Director for disposition. Department Directors are requested to deal with subjects relevant to their responsibilities. Questions concerning confidential information which are not relevant to a particular department should be referred to the appropriate person.
- n) Law Violation: If an employee has been charged with a law violation, the Town recognizes that the person is innocent until proven guilty. If the employee is incarcerated and cannot fulfill obligations and/or responsibilities on the job, that person may be asked to resign or face a possibility of discharge. The necessity of this action is due to the type of service that we render. Re-employment is contingent upon availability of the individual and the position.

Department Directors are requested to deal with subjects relevant to their responsibilities. Questions concerning confidential information which are not relevant to a particular department should be referred to the appropriate action.

1.08 CIVIL LEAVE

Leave with pay is provided to full-time employees when serving on a jury or when subpoenaed as a witness. It is the responsibility of the employee to inform the supervisor when the duty is scheduled and the expected duration.

Jury Duty - Employees must provide their supervisors with pertinent information regarding their calls, including the date for reporting and the court of jurisdiction. Time spent serving on jury duty during your regularly scheduled work shall be with pay and without charge to accrued leave. Employees are expected to return to work if released from jury duty to the end of the scheduled work day, unless impractical and excused from returning to work by your supervisor. Employees are entitled to fees received from jury duty. If jury duty occurs on a scheduled day off, the employee is not entitled to additional time off. Time spent on jury duty is not included in total hours worked per week for overtime purposes.

The Town Manager will not seek to have employees excused from jury duty unless their job duties cannot be temporarily delegated to someone else and their absence would adversely affect the services rendered. The decision to ask that the employee be excused from jury duty for work related reasons will be based on a written request from the Department Director and will be approved by

the Town Manager. Requests for excuses will then be forwarded to the appropriate court for its approval.

Job-Related Civil Leave - When an employee attends court in connection with official duties, no leave is required. Fees received as a witness while serving in an official capacity shall be turned in to the Finance Department. If court is on a day that would normally be an off day, the time is to be considered as working time and included in the total hours worked per week.

Court Attendance - When an employee is subpoenaed or directed by proper authority to appear as a witness, civil leave with pay shall be granted. Any fees received shall be retained. An employee who is a party (plaintiff or defendant) in a court procedure is not considered a witness and therefore, the appropriate accrued leave must be used for the purpose of attending court.

1.09 EMPLOYEES SERVING ON BOARDS, COMMITTEES, ETC.

Any citizen of the Town of China Grove is eligible to serve on the appointed boards or committees of the Town where such appointment is not prohibited by State or Federal statute. All appointments made according to the applicable statute, ordinance, resolution, or policy that created the board or committee.

Town employees are prohibited from serving on any board, committee, council, or commission where appointments are made by the Town Council or where funding is provided by the Town, including special study committees appointed for the purpose of recommending funding or policy.

This policy does not prohibit Town employees from serving in an ex-officio capacity on any of the above boards, councils, or commissions where required by law, when a position is reserved for a Town employee to be designated by the Town Council, or when such service is deemed by the Councilmen to be in the best interests of the Town.

1.10 RELEASE OF INFORMATION IN EMPLOYEE PERSONNEL FILES

The official employee personnel files are maintained by the Town Clerk and are considered confidential in accordance with the requirements of North Carolina G.S. 160A-168. It is the policy of the Town not to release personal and/or confidential information without prior written consent from the employee unless otherwise directed by law. Personnel files are to be reviewed within the Town Hall and are not to be taken outside of Town Hall. The Town Clerk shall be present while the file is being reviewed.

1.10.01 ACCESS TO PERSONNEL FILES AND RECORDS

As required by North Carolina G.S. 160A-168, any person may have access to the information listed below for the purpose of inspection, examination, and copying, during regular business hours, subject only to such rules and regulations for the safekeeping of public records as the Town Council may have adopted. The following information with respect to each Town employee (including former Town employees) is a matter of public record:

- a) Name
- b) Age
- c) Date of original employment or appointment to Town service
- d) The terms of any contract by which the employee is employed whether written or oral, past and current, to the extent that the Town has the written contract or a record of the oral contract in its possession
- e) Current position
- f) Title
- g) Current salary
- h) Date and amount of each increase or decrease in salary with the Town
- i) Date and type of each promotion, demotion, transfer, suspension, separation or other change in position classification with the Town
- j) Date and general description of the reasons for each promotion with the Town
- k) Date and type of each dismissal, suspension, or demotion for disciplinary reasons taken by the Town. If the disciplinary action was a dismissal, a copy of the written notice of the final decision of the Town setting forth the specific acts or omissions that are the basis for the dismissal
- l) The office to which the employee is currently assigned

All information contained in a Town employee's personnel file, other than the public information as listed above, is confidential and shall be open to inspection only in the following instances:

- a) The employee may examine all portions of his personnel file except (1) letters of reference solicited prior to employment, and (2) information concerning a medical disability, mental or physical, that a prudent physician would not divulge to his patient.
- b) A licensed physician designated in writing by the employee may examine the employee's medical record.
- c) A Town employee having supervisory authority over the employee may examine all material in the employee's personnel file.
- d) By order of a court of competent jurisdiction.
- e) An official of an agency of the State or Federal government, or any political subdivision, may inspect any portion of a personnel file when such inspection

is deemed by the Town Manager or his/her designee to be necessary and essential to the pursuance of a proper function of the inspecting agency.

- f) An employee may sign a written release, to be placed with his/her personnel file, that permits the Town Manager or his/her designee to provide, either in person, by telephone, or by mail, information not designated as public record and specified in the release to prospective employers, educational institutions, or other persons specified in the release.
- g) The Town Manager, with concurrence of the Town Council, may inform any person of the employment or non-employment, promotion, demotion, suspension or other disciplinary action, reinstatement, transfer, or termination of a Town employee and the reasons for that personnel action. Before releasing the information, the Town Manager or Town Council shall determine in writing that the release is essential to maintaining public confidence in the administration of Town services or to maintaining the level and quality of Town services. This written determination shall be retained by the Town Clerk and is a record available for public inspection, and shall become part of the employee's personnel file.

1.10.02 EMPLOYEE DOCUMENTS IN PERSONNEL FILE

Materials in the employee's personnel file may not be removed with the exception of payroll deduction forms, benefit forms, or other administrative documents which are superseded or obsolete and no longer have any administrative value. Information retained in employee personnel files complies with the North Carolina Department of Cultural Resources' Records Retention and Disposition Schedule in accordance with the provisions of Chapter 121 and 132 of the North Carolina General Statutes.

Disciplinary actions may not be removed and are considered as permanent documents in the employee's personnel file. An employee who objects to materials in his/her personnel file that he/she may feel is misleading or inaccurate may place a statement related to the materials in the file.

The Town shall maintain in personnel records only information that is relevant to accomplishing personnel administration. The Town Clerk is the official custodian of all personnel records and shall insure the safety and completeness.

A list of official public records and non-public records can be found in the Access to Personnel Files and Records Section 1.10.01.

1.11 PERSONAL DATA CHANGES

If employees have a change of address, telephone number, marital status, or change in number of dependents, they should notify the Town Clerk immediately.

A change in marital status or number of dependents may require the employee to complete new federal and state withholding forms so that the appropriate amount of tax will be withheld from that employee's paycheck.

Any change in name requires the employee to secure a new social security card and to present it to the Town Clerk.

2.0 LEAVE OF ABSENCE

As a regular procedure, leave may be granted for medical, family, and military reasons. Leave without pay may also be granted upon written request and approval of the supervisor and Department Director. Approval of leave is at the discretion of the supervisor and Department Director based upon staffing levels, scheduling, and departmental operations.

2.01 LEAVE WITHOUT PAY

- a) A written request stating the reason for the leave and the date that the Town can expect the employee to return must be submitted to and approved by the supervisor and Department Director. The length of the leave will be determined by the circumstances surrounding the situation and each case will be considered on its own merit. However, leave without pay normally shall not exceed six (6) months.
- b) Except for leave resulting from an approved worker's compensation injury or call to active military service, an employee must use any accrued vacation, extra holiday, and comp time prior to being placed on leave without pay status. For leave related to illness, all accrued sick leave must also be used prior to beginning leave without pay.
- c) Accrual of vacation and sick leave while on leave without pay will be pro-rated based upon the number of hours worked and/or paid leave used during the pay period.
- d) Failure to return from leave after its expiration date shall be considered a "voluntary resignation".
- e) If an employee who is on leave without pay decides to terminate employment, a letter of resignation is requested.
- f) While on leave without pay, the employee may continue coverage under the Town's health insurance program by paying the full premium cost plus any administrative fees.
- g) The retirement will stay intact until employees exercise their option to withdraw their funds or return to the job. Employees must terminate their positions before they are eligible to withdraw retirement funds.

2.02 FAMILY MEDICAL LEAVE

All governmental employers are covered employers in the Family and Medical Leave Act (FMLA), however the Town of China Grove has no eligible employees. An eligible employee excludes any employee who is employed at a worksite at which the employer employs less than 50 employees if the total number of employees employed within 75 miles of that worksite is less than 50.

2.03 MILITARY LEAVE

The Town of China Grove complies with the provisions of the Uniformed Services Employment and Re-Employment Rights Act (USERRA) of 1994, which protects employees in the U.S. Military including the National Guard and Armed Forces Reserves.

Full-time employees will be granted leave to fulfill military duties in accordance with the Uniformed Services Employment and Reemployment Rights Act (USERRA). Leave with pay shall be granted to members of reserve components of the U.S. Armed Forces and the National Guard for certain periods of active duty for training. Leave with pay when granted to full-time employees will be for 90 working hours per calendar year. Part-time benefited employees' leave will be prorated based on their weekly hours. If additional time is required for Reserve or National Guard duty, the employee shall be eligible to take accrued vacation leave or be placed on leave without pay (LWOP) status.

Employees who leave Town employment for active duty military service may be reinstated to the same position or one of like status in accordance with the time limits set by USERRA. In order to qualify for reinstatement, the former employee must be discharged or separated under honorable conditions. Former Town employees who seek reinstatement after active duty military service will be subject to any disciplinary actions that were pending prior to their departure for military service.

Employees who are called for "active duty" have re-employment rights if they:

- Give advance notice either verbally or in writing;
- Are absent for five years or less
- Separate from military service under honorable conditions; and
- Report for re-employment within certain time periods designated under USERRA.

The Town will re-employ employees meeting the above criteria in the same position and with the same seniority and other rights and benefits that they had on their last day of work and any additional rights or benefits to which they would have been entitled had they not been on military leave. While taking military leave without pay, the employee's leave credits and other benefits shall continue to accrue as if the employee physically remained with the Town during this period. Employees may continue health insurance for their family by paying the current employee premium for such coverage. When employees are activated in the event of a national emergency, they may request the utilization of their accrued vacation and sick leave credits. The intent of this policy is

to ensure that the employee's family is compensated as close as possible to their standard of living. Each case will be reviewed by the Town Manager.

To be covered by the re-employment rights under USERRA, the employee must report back to work following their return from military service as follows:

- If away 30 days or less, they must report to work on the next workday following completion of service and arrival home.
- If away more than 30 days but less than 181 days, they must report no longer than 14 days after completing service.
- If away greater than 180 days, they must report within 90 days of service completion.
- Employees who are hospitalized or recovering from an injury or illness that occurred during military service have up to two years or longer (in special circumstances) to return to work.

In addition, USERRA gives employees who have served in the armed forces limited protection from termination for a brief period following their return to work. These stipulations include:

- If the employee was away for more than 180 days, they cannot be terminated from employment for a period of one year following their return except for cause.
- If the employee was away for more than 30 days but less than 180 days, they cannot be terminated for 180 days after their return except for cause.

Town employees are required to show proof of military status before leave is granted by providing their original orders to the Town Clerk for copying and inclusion in their personnel files.

2.04 SHORT TERM DISABILITY LEAVE AND MATERNITY LEAVE

Employees who have worked at least three months for the Town of China Grove are allowed twelve (12) weeks of job-protected leave whether paid or unpaid for one or more of the following:

- 1) Birth of a child (sick leave may be used for the actual disability period of childbirth. Sick leave may also be granted for the parents during the period of hospitalization of the mother or child).
- 2) Placement of a child for adoption or foster care;
- 3) Caring for a spouse, child, or parent with a serious health condition (sick leave may be used) with written doctor certification. Also included are individuals who stood *in loco parentis* to the employee when the employee was a child and to children to which the employee stands *in loco parentis*;
- 4) The serious health condition of the employee (sick leave may be used) with written doctor certification.

A serious health condition is defined as inpatient care at a hospital, hospice, or residential medical care facility, or continuing care by a doctor of medicine or osteopathy. The employee is required to produce a doctor's certification of these serious health conditions.

Employees who utilize leave under this allowance will return to their same job or a job with equivalent status and pay. In addition, the Town will continue the employee's health benefits during the paid leave period (12 weeks) at the same level and conditions as if the employee had continued to work. An employee may continue to maintain dependent coverage for health, vision and dental insurance by having the dependent premium deducted from his/her paycheck. During any period of unpaid leave or while on disability insurance, the employee would maintain dependent coverage by making monthly payments to the Finance Department. If the employee chooses not to return to work for reasons other than a continued serious health condition, the Town may recover from the employee the premium that the Town paid for the employee's health coverage. The final paycheck may be used as a means of reimbursing the Town for all or a portion of premium(s) due. The employee will be responsible for making arrangements with the Finance Department for any balance due.

Employees will be required to deplete their earned vacation, sick leave, extra holiday, and comp time during leave before going on Disability Insurance. Disability benefits begin after the 8th day of disability. Short-term disability will compensate 60% of Basic Weekly Salary per week up to thirteen (13) weeks during the period of disability as certified by a doctor. If employees have accrued paid leave for less than twelve weeks, they may request to go on Leave Without Pay instead of going on Disability Insurance.

When an employee plans to utilize leave under this section, the employee is required to provide the supervisor with a thirty day notice or, if this is not possible, as much notice as is practical. An individual undergoing planned medical treatment is required to make a reasonable effort to schedule the treatment to minimize disruptions to the Town's operations. It is the responsibility of the employee's supervisor to begin the process of placing the employee on leave. When the supervisor becomes aware of the employee's reason for absence is a serious medical condition of the employee or the employee's spouse, child, or parent, the following should occur:

- 1) The supervisor will immediately notify the Department Director,
- 2) The Department Director or his designee will notify the Town Clerk which will begin the process of determining whether the absence qualifies as Short Term Disability or Maternity Leave,
- 3) If the employee qualifies, the Town Clerk will inform the employee, the Department Director or his designee, and the Finance Department of the effective date of the leave.

An employee who is approved for leave for a personal illness or injury will not be permitted to return to work without a Fitness for Duty Certification and Notice of Intent to Return to Work Form completed by their physician. Light/modified duty is only available for employees on workers' compensation who have suffered a work-related injury. Light duty is defined as a position that is

temporarily created which allows the employee to return to work performing different duties until the employee is able to return to his/her original position. Employees on medical leave for reasons other than a work-related injury are not eligible for a light duty position. However, the employee may be able to return to work if they can perform the essential functions of their job with adjustments/modifications to how the job is performed. The employee's treating physician must approve the employee's return to work and indicate in writing on the Fitness for Duty Certification and Notice of Intent to Return to Work Form their restrictions based upon the review of their job descriptions. The Department Director in consultation with the Town Manager and Town Clerk will review the restrictions as prescribed by the physician to determine whether an accommodation is available for the employee to perform the essential functions of their job.

An employee who does not return to work within three working days after their leave expires will be considered to have resigned his/her position. Special consideration may be given for additional leave beyond the twelve weeks and authorized by the Department Director. Authorization will be dependent upon the employee's leave balance and the current needs of the department.

Employees who are out of work under the provisions of Short Term Disability Leave, Maternity Leave, Worker's Compensation or Leave Without Pay for sick leave purposes are prohibited from engaging in any outside employment during the period of leave.

Vacation and sick leave will accrue only during the period of time the employee is on paid leave (not to include during short term disability insurance pay) for more than half the regularly scheduled hours in a bi-weekly pay period.

Retirement contributions cease during the period of Short Term disability insurance pay or unpaid leave.

3.0 CONTINUING EDUCATION

It is the policy of the Town of China Grove to encourage Town personnel to avail themselves of training or education that would further their careers or prepare them better for their current or future jobs with the Town or elsewhere.

The Town of China Grove declares that mandatory attendance of Town personnel at required work-related educational or training programs outside normal working hours shall be constituted as involuntary enrollment on the part of the employee, and said employees shall receive compensation and shall thereby be required to attend. Attendance of Town personnel at educational or training programs for their professional betterment outside normal working hours when not required by the Town shall, of course, be constituted as voluntary enrollment on the part of the employee, and said employees shall not receive compensation.

The foregoing policy is consistent with the provisions of the federal Fair Labor Standards Act of 1983, as amended.

4.0 PROMOTIONS AND TRANSFERS

The Town utilizes a "promote from within" policy whenever possible. When job vacancies occur, an effort is made to promote from within the Town if qualified employees are available. Employees may inquire

about job vacancies with the Town Clerk at any time. The responsibility for applying for a vacancy which may constitute a promotion lies with the employee. The Department Director is obligated to consider all qualified candidates. A promotion may be defined in the job classification system as moving from one position in a particular job class to a position in another job class having a higher rate of pay.

An employee from another department may be transferred into a job vacancy, or an employee from the same department may be promoted into a job vacancy. Lateral transfers from one department to another are not encouraged since they are not true promotions. There will be no lateral transfers from department to department unless they are in the best interest of the Town. Lateral transfers can be defined as those positions that are in the same pay classification (same minimum and maximum salaries). In addition, those transfers that constitute a demotion (reduction in salary) will not be permitted unless there is an indication that the person could perform better in one job as opposed to another. These types of evaluations will be determined through the cooperative efforts of the Department Directors and the Town Manager. The employee applying for transfer or promotion to another job will be given equal consideration with all other applicants, and if the employee has superior or equal qualifications, will be granted the transfer or promotion. All accrued benefits transfer with the employee to the new position. Any pay increase associated with a promotion will be determined by the Department Director in consultation with the Town Manager. The amount of the pay increase, at least 5%, will be decided on an individual basis, depending on the pay range, length of service, the qualifications of the person being promoted, and market conditions. The guidelines for pay increases for promotions are outlined in the section titled "Wage and Salary Administration".

Employees who are promoted may be required to serve another probationary period if the essential duties of the new position are significantly different than the duties of the previous position or if, in the judgment of the new employing department, a new probationary period is justified. However, no increase in pay will occur beyond the first (original) probationary period. Transfers to the same or similar classification in another department will not require a new probationary period for the employee.

4.01 PROCEDURE

If a vacancy exists within a department an employee within that department wishing to apply for that position should discuss the matter with their immediate supervisor. If employees have the necessary qualifications, they may be transferred into new positions with the approval of the concerned Department Director and the Town Manager.

5.0 DEPARTMENTAL HOURS, SCHEDULE AND HOURS WORKED

It is the policy of the Town to establish working hours or schedules as required by the departmental workloads, organizational needs, provided services and efficient management of resources. Usually, the workweek is Monday through Friday or Monday through Thursday, consisting of forty (40) hours. Certain departments are twenty-four (24) hour operations while other departments may have to be open on weekends and holidays.

Established hours, schedules, or work shifts shall be based on needs as determined by the Department Director and approved by the Town Manager. Plans to allow such alternative work arrangements such as flex time, job sharing, part-time employment and compressed workweek may be considered if requested

by an employee or Department Director. Changes to existing office hours, schedules, or work shifts must be requested in writing by the Department Director, submitted to and approved by the Town Manager.

5.01 HOURS WORKED AND WORK SCHEDULES

The normal workday shall consist of eight (8) or ten (10) consecutive hours with an unpaid meal period unless an approved alternative work schedule has been submitted. The meal period is usually one (1) hour for an eight (8) hour day or thirty (30) minutes for a ten (10) hour day but may vary from department to department. If an hourly employee works or is required to work during the meal period, he/she must be paid. Under the Fair Labor Standards Act (FLSA), employees must have at least thirty (30) minutes of uninterrupted mealtime; otherwise, compensation for work performed during meal periods will be required. Rest or coffee breaks are considered as time worked.

With the exception of twenty-four (24) hour operations and those departments which are open on weekends and holidays, the normal office hours are Monday through Thursday from 7:00 a.m. to 5:30 p.m. Where the activities of a particular department permit other schedules, the Department Director may request and have approved by the Town Manager, deviations from the norm.

The following definitions and guidelines are applicable examples of changes to normal work schedules, office hours, or job arrangements. These definitions are not intended to be all inclusive and may be altered depending upon work needs or requirements. In no case shall expected levels of service to the public be eroded to the point that public convenience is diminished. It is the responsibility of the Department Director to avoid conditions, which may adversely affect the mission or purpose of the working unit.

5.02 TOWN COUNCIL MEETINGS

If a Department Director or an employee is scheduled on the Town Council meeting agenda, or instructed to attend the meeting by the Town Manager, the time may be considered work time and therefore be counted as compensatory. If a Director or employee is not required to be at the meeting, the time is not considered as work time.

5.03 FLEX TIME

Flex time provides work schedules which offer employees a choice of job arrival and departure times while still working the required number of hours each day or work week. Before a Department Director may determine flex time variances, he/she must first identify the department's block time. Block time is defined as the designated hours within the workday whereby all employees who are scheduled to work must be on duty unless they are on approved leave. Block time is most often established between the hours of 9:00 a.m. and 4:00 p.m. including lunch breaks. Block times may vary, contingent on staffing requirements. Flex time consists of hours outside the established block time but within the workday. Hours worked during flex time, when added to block time, must be equal to the typical eight (8) hour day or ten (10) hour day; otherwise, employees face the possibility of lost income. Non-exempt employees using flex time will be paid for only those hours actually worked in any given work day. Non-exempt employees will not be permitted to work more than forty (40) hours per week unless specifically authorized by the

Department Director to work overtime. Overtime worked by non-exempt employees must be given equal time off within the workweek or be compensated according to the requirements of the Fair Labor Standards Act. In using flex time, the workweek may need to be redefined in order to avoid overtime issues.

6.0 EMPLOYEE ASSISTANCE PROGRAM

The Town recognizes that a wide range of personal problems can affect an employee's job performance. These may include alcohol, and/or drug abuse, marital and family issues, or other problems, which cause stress or depression. The Employee Assistance Program has been established to help employees and their family members cope with personal problems, improve job performance, and to reduce costs. The program is designed to identify the problem at the earliest possible stage, motivate the employee to seek help, and to direct the employee to appropriate assistance. The Town believes it is in the interest of the employee, the employee's family, and the Town to provide service, which deals with such persistent problems.

Client services include 24-hour crisis intervention, assessment, brief problem resolution, referral, and follow-up. Other direct services are management training, manager consultation, employee brochures, and employee posters. Services are available to employees and family members in the employee's household free or at cost to the Town.

When employees experience personal problems, they should seek assistance from the EAP. Job security will not be jeopardized as a consequence of seeking EAP services, except where mandated by law. However, employees who use the EAP are expected to adhere to job performance requirements and rules.

Managers should refer employees with personal problems to the EAP, manage employees who are performing poorly, and support the EAP. When employees are performing poorly, managers should identify the unsatisfactory performance, document incidents, constructively confront employees, and refer employees to the EAP and follow-up with employees. Managers should maintain confidentiality about employees' problems.

All EAP records will be kept strictly confidential and will not be noted in any official record or the employees' personnel file. Information from the EAP may be released only with the written consent of the employee, or in response to a court or other legal order, or if the employee presents a danger to self or others.

For the Employee Assistance Program to be successful, the following must be followed:

- 1) Strict confidentiality is essential and will be maintained.
- 2) Employees are encouraged to use the EAP voluntarily when they need professional help or guidance by calling the program directly.
- 3) Supervisors must assure employees that if personal problems are the cause of unsatisfactory job performance that they will receive an offer of assistance to help resolve such problems in an effective and confidential manner.

- 4) Supervisors must be alert to changes in work and behavior patterns and to document particular instances in which an employee's job performance fails to meet minimum standards or in which individual behavioral patterns seem to be changing or deteriorating. (Ex.-An employee whose attendance and productivity has been good suddenly begins to miss time from work or their productivity slips for unexplained reasons.)
- 5) Supervisors must conduct normal corrective disciplinary interviews when the documented record of unsatisfactory performance calls for it. At the conclusion of the interview, inform the employee that the Employee Assistance Program is available if a personal problem exists. Do not attempt to counsel employees regarding their personal problems. The supervisor must:

- Review all recorded instances of performance problems with the employee.
- Explain precisely why the level of job performance is considered unsatisfactory.
- Allow employee to give reasons for actions or failures.
- Make suggestions for corrections as they apply to job performance.
- Document the interview.

If employee's performance continues to be unsatisfactory, conduct the written warning session. Conclude with a recommendation to utilize the Employee Assistance Program. Inform the employee that failure to improve job performance will result in other disciplinary action up to and including job dismissal. If employee admits that he/she may need to use the EAP, the supervisor should offer to make the appointment. Confirm the significant points of the session.

- 6) Employees who are participating in the Employee Assistance Program whose performance does not improve or continues to deteriorate are subject to normal disciplinary procedures.
- 7) Time off for participating in the Employee Assistance Program will be granted in accordance with the policies regarding leave.

7.0 DISCIPLINE AND DISMISSAL

It is the intent of the Town of China Grove in establishing this policy to provide for Town employees and Town government management a fair, clear and useful tool for correcting and improving performance problems, as well as to provide a process to assist management in handling instances of unacceptable personal conduct.

7.01 DISMISSAL DURING PROBATION

At any time during a probationary period an employee may be separated from service for causes related to performance of duties or for personal conduct that is normally considered detrimental to the Town. The employee will not be able to appeal this decision. The employee must be given notice of dismissal, including reasons thereof, at least fourteen (14) days in advance of the separation date. The reasons for dismissal shall be documented and filed with the Town Clerk. If

the employee is not given regular status at the end of the six (6) months probationary period, that person's service must be terminated unless the delay is necessitated by trainee or provisional status.

7.02 DISMISSAL AFTER COMPLETION OF PROBATIONARY PERIOD

This policy applies to all regular benefited employees who are therefore afforded due process in the administration of disciplinary actions and dismissal. The progressive discipline process is not required for part-time who do not serve a probationary period and; therefore, not afforded due process. While the policy does not apply to non-regular benefited employees, it is recommended that these employees be counseled concerning their job performance and future employment with the Town and duly documented.

The Town recognizes that it is important that disciplinary action, demotion, suspension and dismissal be administered in as near a uniform manner as possible. Training will be conducted for all supervisors on the proper use of the disciplinary policy.

When just cause exists, any benefited employee regardless of occupation, position or profession may be warned, demoted, suspended or dismissed by the appointing authority. The degree and type of action taken shall be based upon the sound judgment of the appointing authority in accordance with the provisions of this policy. An employee should not be dismissed for unsatisfactory work performance without having been counseled by his or her Department Director or supervisor and the procedures for dismissal are followed.

There are two bases for the discipline and/or dismissal of employees under the standard of just cause. These two bases are:

- 1) Discipline or dismissal imposed on the basis of unsatisfactory job performance, including grossly inefficient job performance.
- 2) Discipline or dismissal imposed on the basis of unacceptable personal conduct.

Some actions of an employee may fall under both bases. "Unsatisfactory job performance" is the failure to adequately perform job requirements as specified in the job description, work plan, or as directed by management. Adequate performance is that performance which is reasonable under all the circumstances. The determination of adequacy of performance shall be made by the supervisor and should be reasonable, proper, and factually supported.

"Unacceptable personal conduct" is conduct for which no reasonable person should expect to receive prior warnings, conduct which constitutes a violation of state and federal laws, the willful violation of known or written work rules, or conduct unbecoming an employee.

7.02.01 JOB PERFORMANCE

The Department Director has the right and the responsibility to set work standards for employees. Work that fails to meet the Department Director's standard because of careless errors, poor quality, un-timeliness, failure to follow instructions or procedures, insufficient

quality or quantity may constitute unsatisfactory job performance. It can also include when an employee establishes a pattern of regular absences, whether or not these absences are covered by available leave, or fails to request leave in advance, or is consistently late in reporting to work. Departments may have established rules or practices that control some aspects of the work place in which employees are expected to follow. These rules are different from policy and may be formal or informal, written or unwritten. One example of such a work rule would be a requirement that employees must call in and report absences one-half hour before the start of their scheduled shift. Other examples would be safety infractions involving violation of the requirement that employees wear personal protective safety equipment in certain work areas, employees performing unsafe actions, and horseplay in the workplace.

In determining whether an employee's performance is unsatisfactory, the supervisor may consider any one or a combination of the following factors:

- The quality of work
- The quantity of work
- Work habits
- Promptness
- The timely performance of work
- Related analysis, decisions, or judgment
- The accuracy of work
- The work plan or performance appraisal
- Absenteeism
- Ability to follow instructions, directions, or procedures
- The appropriateness of work performed
- Any other factors, in the opinion of the supervisor, are appropriate to determine whether an employee's performance is acceptable.

7.02.02 PERSONAL CONDUCT

Just cause to warn or take disciplinary action for unacceptable personal conduct may be created by intentional or unintentional acts. The conduct may be job-related or off-duty so long as there is a sufficient connection between the conduct and the employee's job.

Employees may be dismissed for unacceptable personal conduct. Examples of unacceptable Personal Conduct are:

- a) Refusal to accept a reasonable and proper assignment from an authorized supervisor (insubordination);

- b) Reporting to work under the influence of alcohol or illegal drugs, or the use of alcohol or illegal drugs on the job;
- c) Stealing Town property or funds, or who knowingly misuses Town property;
- d) Job related conduct, which constitutes a violation of state or federal law;
- e) Conviction of a felony or an offense involving moral turpitude that is detrimental to or impacts the employee's service to the Town;
- f) The willful violation of known or written work rules;
- g) The abuse of client(s), patient(s), or a person(s) over whom the employee has charge or to whom the employee has a responsibility;
- h) Harassment including sexual harassment of the public, customers, clients, or other employees;
- i) Falsification of an employment application or other employment documentation;
- j) Absence from work after all authorized leave credits and benefits have been exhausted.
- k) Exhibiting behavior, attitude, or demeanor that adversely affects the employee's performance of duties, reflects badly upon the supervisor and/or the department, causes others to question the employee's or department's ability to perform departmental functions, or in any way exhibiting a lack of respect for the chain of command.

7.03 PERFORMANCE DISCIPLINARY PROCESS

This category covers all types of performance-related inadequacies. The disciplinary process does not require that progressive warnings all concern the same type of unsatisfactory performance; this policy only requires that the progressive warnings all relate to job performance. Warnings administered under this policy are intended to bring about a permanent improvement in job performance; should the required improvement later deteriorate, or other inadequacies occur, the supervisor may deal with this new unsatisfactory performance at the next level of discipline.

Employees who are dismissed for unsatisfactory job performance shall receive two written warnings. A written warning to the employee must document all relevant points covered in the disciplinary discussion. It must inform the employee that failure to make the required performance improvements may result in dismissal.

The JOB PERFORMANCE disciplinary process usually is, and should be, after other non-disciplinary efforts by the supervisor such as performance evaluation, coaching or counseling. The intent of this policy is to assist and promote improved employee performance rather than to punish.

The following information should be considered in using the JOB PERFORMANCE disciplinary process:

- a) Timing - How much time should be allowed for an employee to demonstrate improved performance will vary from employee to employee. There is not a standard amount of time to use. Since the amount of time varies, good guidelines here are that the time should not be so short that the employee will not have a chance to demonstrate improvements, and not so long that the employee loses sight of the required improvements. Similarly, the amount of time which can pass between warnings before the disciplinary process should start over again may vary. However, as a general rule, if more than 18 months have passed since an employee's last warning; serious consideration should be given to starting the disciplinary process over again. However, the nature of the performance deficiency must be considered.
- b) Specificity - In preparing a warning letter, it is important to remember that, unless the employee knows specifically what the inadequate performance is, there is little chance to improve the performance. The use of precise language, rather than general statements, in describing the unsatisfactory performance should help both the employee and the supervisor in identifying and correcting the problem.
- c) Receipt of Disciplinary Actions - Occasionally, employees will refuse to sign disciplinary actions to acknowledge that such actions have been given to the employee; employees may refuse to accept a copy of the warning. In these cases, the Department Director should call in a third party to witness the offering or receipt of the warning. The Department Director should note on the file copy of the warning that the employee refused to sign/accept the disciplinary action.

Occasionally, it may be necessary to mail a letter of dismissal to an employee. A Department Director's responsibility is to make a reasonable effort to inform the employee. The best practice in mailing letters of dismissal is to send them certified to the last address of the employee known to the department.

- d) Comparability - In using the JOB PERFORMANCE disciplinary process, the similarity of treatment of persons in similar situations should be an important consideration. Inconsistent use of discipline in similar situations may lead to poor morale, grievances or lawsuits.
- e) Offer to Resign - There are times when a Department Director may wish to offer an employee an opportunity to resign, rather than be dismissed. This decision is left to the judgment of the Department Director and Town Manager. Department Directors should

be aware that an employee who chooses to resign rather than be dismissed may still appeal his/her separation. However, there is no requirement that an employee be notified of his/her right of appeal of an involuntary resignation.

- f) Options - This policy offers several options to dismissal. For other options see the section on Optional Disciplinary Processes.

7.03.01 WRITTEN WARNING

The Department Director is responsible for assuring the satisfactory job performance by employees assigned to his/her unit. When, in the judgment of the supervisor, unsatisfactory performance occurs, use of the disciplinary process may be appropriate.

In cases of unsatisfactory job performance, a written warning is the first type of disciplinary action that an employee may receive. All warnings shall be in writing and state that it is a warning. Before issuing a written warning, the Department Director and Town Manager will review its contents. A second written warning must be issued before an employee can be dismissed for unsatisfactory/unacceptable job performance. A second warning can also be referred to as a “final written” warning.

Written warnings shall:

- Inform the employee that you are issuing a written warning regarding his/her performance, and not some other non-disciplinary process such as counseling;
- Inform the employee of the specific performance deficiencies or conduct that are the basis for the warning;
- Tell the employee what specific performance improvement or conduct must be made to correct the unsatisfactory performance;
- Inform the employee of the time allowed to make the required improvements; and
- Tell the employee of the consequences of failing to make the required improvements, i.e. further disciplinary action up to and including dismissal.

When preparing a second/final written warning to the employee reference should be made to document the first and any other earlier written warnings.

The Department Director and supervisor shall conduct a disciplinary conference with the employee. During this conference, the specific reason for the action, the necessary improvements and the time allowed to make improvements should be discussed. It is recommended to allow the employee to respond to the specific reason for the warning. In some cases, this may affect the Department Director's decision on whether or not to

discipline an employee.

If the Department Director and supervisor decide to proceed, the warning shall be presented to the employee at the end of the conference. The employee should be reminded that failure to correct the unsatisfactory performance may result in dismissal.

During the period after a second written warning has been given, management may choose to counsel with the employee concerning his/her employment status before a decision to dismiss is made. Counseling should involve a discussion of the necessity for the employee's commitment to improve performance. Management may request the employee to take up to a day's leave with pay to consider whether or not the employee wishes to continue his/her employment with the Town. This time away from the job site shall not be charged to the employee's vacation or sick leave; it shall be considered as a type of disciplinary leave with pay, set aside for the employee to review his/her work situation and make a decision for the future. It should be stressed to the employee that a decision to continue employment with the Town will require a commitment to improve performance, and that lack of improvement will lead to dismissal. Management is expected to use its discretion to determine where such a procedure would benefit the employee and the Town.

7.04 DISMISSAL

Any employee may be dismissed. Dismissal may be a result of unsatisfactory job performance, unacceptable personal conduct, or grossly inefficient job performance. Before the decision to dismiss is made, the Department Director and supervisor must conduct a pre-disciplinary conference with the employee.

Unsatisfactory Job Performance – An employee must have at least two (2) prior warnings before dismissal for a current incident of unsatisfactory job performance.

Unacceptable Personal Conduct – An employee may be dismissed for a current incident of unacceptable personal conduct without any prior disciplinary actions.

Grossly Inefficient Job Performance – An employee may be dismissed for a current incident of grossly inefficient job performance without any prior disciplinary actions.

The Department Director recommending dismissal should discuss the recommendation with and receive the approval of the Town Manager. Upon approval, a pre-disciplinary conference shall be held with the employee.

A pre-disciplinary conference shall be held between the Department Director, the supervisor if applicable, and the employee. No attorneys for either party shall be present at this conference. The Department Director shall present the employee with the specific reason for the proposed dismissal and a brief summary of the information, which he believes, supports the proposed dismissal. The employee shall have a right to respond to that notice of proposed dismissal in the conference.

If, at the end of the pre-disciplinary conference, the Department Director determines that dismissal is justified, he/she may send (certified/registered mail) the employee a letter of dismissal. However, the Department Director may elect to defer the dismissal based on information presented by the employee and reconsider the proposed dismissal.

The employee must be given written notice of the dismissal. This written notice must include specific reasons for the dismissal and the employee's right of appeal.

With the prior approval of the Town Manager, a payment of up to two (2) weeks' severance may be given, except for dismissals related to gross misconduct.

Upon dismissal, the employee's supervisor and Department Director will be responsible for collection of issued equipment, uniforms, I.D. Badges, keys, etc. from the employee as listed on the Employee Equipment Checklist.

7.04.01 DISMISSAL FOR GROSSLY INEFFICIENT JOB PERFORMANCE

Gross Inefficiency (Grossly Inefficient Job Performance) occurs in instances in which the employee fails to satisfactorily perform job requirements as specified in the job description, work plan, or as directed by the management of the Department and that the act or failure to act causes or results in:

- Death or serious bodily injury or creates conditions that increase the potential for death or serious harm to a client(s), an employee(s), members of the public or to a person(s) over whom the employee has a responsibility; or
- The loss of or damage to Town property or funds that results in a serious adverse impact on the Town, agency, or work unit.

Employees may be personally liable for actions and decisions made in the course and scope of their employment due to gross inefficiency.

Dismissal on the basis of grossly inefficient job performance is administered in the same manner as for unacceptable personal conduct. Employees may be dismissed on the basis of a current incident of grossly inefficient job performance without any prior disciplinary action.

There shall be a pre-disciplinary conference between the employee and the Department Director prior to dismissal of an employee with regular status on the basis of grossly inefficient job performance,

Dismissals for grossly inefficient job performance require written notification to the employee. Such notification must include specific reasons for the dismissal and notice of the employee's right to appeal. Failure to give specific written reasons for the dismissal, failure to give written notice of applicable appeal rights, or failure to conduct a pre-

disciplinary conference constitutes procedural violations. Time limits for filing an appeal do not start until the employee receives written notice of any applicable appeal rights.

7.04.02 PERSONAL CONDUCT DISCIPLINARY PROCESS

Generally, the form of discipline most often used in the PERSONAL CONDUCT process is dismissal. This is because PERSONAL CONDUCT discipline, unlike JOB PERFORMANCE discipline, is not progressive. Dismissal, or any lesser discipline such as a reprimand or demotion, may be made without the requirement of previous warnings. However, other types of discipline may be used in handling PERSONAL CONDUCT violations. Written warnings, demotions, and disciplinary suspensions without pay may be used in the PERSONAL CONDUCT disciplinary process.

Disciplinary demotions, suspensions or dismissal for personal conduct require written notification to the employee. Such notification must include specific reasons for the discipline and notice of the employee's right of appeal.

Prior to dismissal of a regular employee on the basis of personal conduct, there shall be a pre-disciplinary conference between the employee and the Department Director. Time limits for filing an appeal do not start until the employee receives written notice of his/her appeal rights.

7.05 OPTIONAL DISCIPLINARY PROCESSES

The JOB PERFORMANCE process required two (2) warnings prior to dismissal. The PERSONAL CONDUCT process does not require any warnings prior to dismissal. However, this policy allows for types of disciplinary actions other than dismissal. None of these disciplinary actions in this section are required prior to dismissal. These actions represent alternatives to dismissal; they may not be appropriate or useful in every situation.

The following optional alternatives to dismissal for either JOB PERFORMANCE or PERSONAL CONDUCT must be approved by the Town Manager.

- a) Demotion - Demotion may be used either for PERSONAL CONDUCT or JOB PERFORMANCE. An employee may be demoted without previous warnings for a PERSONAL CONDUCT violation or for Grossly Inefficient Job Performance. An employee may be demoted on the basis of unsatisfactory JOB PERFORMANCE after receiving a written warning, as long as the employee has received one (1) previous warning.
- b) Disciplinary Suspension Without Pay - Disciplinary suspensions without pay may be used in dealing with either PERSONAL CONDUCT or JOB PERFORMANCE violations. Disciplinary suspensions without pay may be issued regardless of whether there are any previous warnings, if a PERSONAL CONDUCT violation or Grossly Inefficient Job Performance is being dealt with. It may be used in situations involving unsatisfactory JOB PERFORMANCE only together with a second written warning. Exempt (FLSA) employees cannot be suspended for less than one full workday and no more than two full

weeks.

- c) **One Day Leave With Pay** - The use of this provision is clearly left to the judgment of the Department Director. The use of this provision is intended to either encourage the employee to commit to correcting poor performance or to require an employee to realize lack of commitment to improvement and spur the employee to find other employment. This provision is not appropriate in every situation. The day's leave with pay is not deducted from the employee's vacation/sick leave balance. Since this practice is essentially non-disciplinary and non-punitive in nature, no written notice to the employee is required. Nor may this action (or lack of this action) be the subject of a grievance or appeal. Management may wish to keep a written record documenting use of this action for future reference. This procedure should not be used if an employee has already been suspended without pay as a disciplinary measure in connection with a final written warning.

Before an employee can be demoted or placed on disciplinary suspension without pay, a supervisor must:

- Schedule and conduct a pre-disciplinary conference. The supervisor must give oral or written notice of the conference to the employee. The notice must tell the employee the type of disciplinary action being considered, the conference time and location, and the action or event that led to the recommendation. Advance notice should be as much as practical under the circumstances.
- Give the employee a statement in writing the acts or failures to act that are the reason for the disciplinary action and the employee's appeal rights.

7.06 OTHER CONSIDERATIONS

There may be legal consequences in failing to carry out this policy correctly. Specifically, a dismissal without written and specific reasons for the dismissal is ineffective. Further, employees have a right to be notified of any right of appeal they may have concerning demotion, suspension without pay or dismissal. Also, dismissal of an employee for JOB PERFORMANCE without the two (2) required warnings may result in the employee's reinstatement.

Demotion, suspension without pay, and dismissal are grievances that may be appealed. Written warnings are not appealable grievances. Disciplinary action which is an appealable grievance must be accompanied by a notice setting out in writing the specific reasons for the disciplinary action and the employee's right of appeal.

7.07 INVESTIGATORY SUSPENSION WITH PAY

An employee may be placed on investigatory status with pay only:

- To investigate allegations or conduct deficiencies that would constitute just cause for disciplinary action;
- To provide time within which to schedule and conduct a pre-disciplinary conference; or

- To avoid disruption of the workplace and/or to protect the safety of persons or property.

The Town Manager must approve a request for an employee to be suspended for investigatory reasons. The Department Director must notify an employee in writing of the reasons for investigatory placement not later than the second scheduled workday after the beginning of placement. An investigatory suspension with pay may last no more than thirty (30) calendar days without prior approval of extension from the Town Manager. When an extension beyond the thirty (30) day period is required, the Department Director must advise the employee in writing, the length of the extension, and the specific reasons for the extension. If no action has been taken by the end of the thirty (30) day period and no further extension has been approved, the Department Director must either take appropriate disciplinary action on the basis of the findings upon investigation or return the employee to active status. Under no circumstance is it permissible to use placement on investigation status for the purpose of delaying an administrative decision on an employee's work status pending the resolution of a civil or criminal court matter involving the employee.

7.08 DEMOTION

Any employee may be demoted as a disciplinary measure. Demotion may be made on the basis of either unsatisfactory job performance or unacceptable personal conduct. The Town Manager must approve demotions.

An employee may be demoted for unsatisfactory job performance after the employee has received at least one prior written warning on his/her performance. An employee may be demoted for unacceptable conduct without any prior warnings. Cause for demotion on the basis of personal conduct does not have to be as serious as cause for dismissal.

The Department Director recommending demotion should discuss the recommendation with, and receive the approval of, the Town Manager. A pre-disciplinary conference shall be held between the Department Director and the employee. No attorneys or other such representatives for either party shall be present at this conference; a witness may be present if the Department Director deems it necessary. The Department Director shall present the employee with the specific reasons for the proposed demotion and a brief summary of the information, which he believes, supports the proposed demotion. The employee shall have a right to respond to that notice of proposed demotion in the conference.

An employee who is demoted must receive written notice of the specific reasons for the demotion, as well as notice of his/her appeal rights. Disciplinary demotions may be accomplished in several ways. The employee may be demoted to a lower classification with or without a loss in pay, except that no salary may exceed the maximum rate of the range or, the employee may be reduced to a lower step in the same pay grade with a corresponding loss of pay. In no event shall an employee's pay be lowered below step one of his/her current pay grade, unless the employee is demoted to a lower classification.

7.09 CREDENTIALS

By statute, regulation, or policy some duties assigned to positions in the Town may be performed

only by persons who are duly licensed, registered or certified as required by the relevant law or policy. All such requirements and restrictions are specified in the statement of essential qualifications or recruitment standards for Town positions.

Employees in such classifications are responsible for obtaining and maintaining current, valid credentials as required by law, rule, or regulation. Failure to obtain or maintain the required credentials constitutes a basis for immediate dismissal without prior warning, consistent with dismissal for unacceptable personal conduct or grossly inefficient job performance. In some instances, demotion may be considered when a lower level position is available that does not require the specific credentials but a lower level or no certification, registration, or licensure. Following a pre-disciplinary conference, an employee dismissed on this basis shall be given a written letter of dismissal with the specific reason for the dismissal and written notice of the right to appeal.

Falsification of employment credentials or other documentation in connection with securing employment constitutes just cause for disciplinary action. When credential or work history falsification is discovered after employment with the Town, disciplinary action shall be administered as follows:

- 1) If an employee was determined to be qualified and was selected for a position based upon falsified work experience, education, registration, licensure, or certification information that was a requirement of the position, the employee may be dismissed without prior warning following a pre-disciplinary conference. The employee shall be given written notice of the dismissal with the specific reason for the dismissal and the right to appeal.
- 2) In all cases of post-hiring discovery of false or misleading information, disciplinary action will be taken, but the severity of the disciplinary action shall be at the discretion of the Department Director.
- 3) When credential or work history is discovered before employment begins with the Town, the applicant shall be disqualified from consideration for the position.

7.10 RIGHT TO APPEAL

A regular employee who has completed a probationary period has the right to file an appeal for a demotion in pay or position, a suspension without pay, or dismissal within an established appeal process. Every regular employee shall have the right to appeal free from interference, coercion, restraint, discrimination or reprisal.

8.0 EMPLOYEE APPEALS & GRIEVANCES

The Town of China Grove adopts this appeals and grievance policy to provide a means of communications between supervisors and employees and to establish principles of administration to ensure prompt, orderly, and fair response to an employee's problem, appeal, or grievance.

8.01 GRIEVANCE POLICY

In order to maintain a harmonious and cooperative relationship between the Town and its employees, it is the policy of the Town to provide for the settlement of problems and differences through an orderly grievance procedure. A grievance is defined as any matter of concern or dissatisfaction arising from the working conditions of an employee subject to the control of the Town. Every regular employee having completed a probationary period shall have the right to present his/her problem or grievance in accordance with the procedure prescribed free from interference, coercion, restraint, discrimination or reprisal.

It is the responsibility of supervisors, consistent with authority delegated to them, to consider and take appropriate action promptly and fairly on a problem or grievance of any employee. Open two-way communication is a proven factor in reducing and resolving grievances.

Department Directors shall take necessary steps to ensure that employees and supervisors under his/her jurisdiction may be fully informed of the grievance procedures adopted and their rights and obligations under the policy.

In adopting this policy, the Town sets forth the following objectives to be attained in this program:

- Assure employees of a way in which they can get their problems or complaints considered rapidly, fairly, and without fear of reprisal.
- Encourage the employee to express how the conditions of work affect him/her as an employee.
- Promote a better understanding of policies, practices, and procedures that affect employees.
- Provide employees with assurance that actions are taken in accordance with policies.
- Give supervisors a greater sense of responsibility for maintaining an effective working relationship with their employees and therefore encourage conflicts to be resolved at the lowest possible level of the chain of command.
- Create a working environment free of continuing conflicts and negative feelings toward Town government and its leaders, thus providing excellent service to our citizens.

Employees who have completed a probationary period will have access to the grievance procedure for:

- 1) Alleged safety or health hazards, unsatisfactory facilities, surroundings, materials, or equipment, unfair supervisory practices, unjust treatment by fellow workers, or any other grievance relating to conditions of employment.
- 2) Allegations of discrimination based on race, sex (including allegations of sexual harassment), age, color, religion, national origin, or disability in hiring, promotion, transfer, or training.

- 3) Allegations of violation of the FLSA, or ADA.

Actions that are not subject to the grievance procedure include:

- 1) Performance Appraisals
- 2) Wages, salaries, and fringe benefits
- 3) Oral and written warnings

Nothing herein shall be interpreted to change the status of any employee from that of an employee at will.

8.02 GRIEVANCE PROCEDURE

STEP 1 – INFORMAL DISCUSSION BETWEEN EMPLOYEE AND IMMEDIATE SUPERVISOR

If an employee has a problem or grievance, it should first be discussed with his/her immediate supervisor (within fifteen (15) calendar days after the incident). The supervisor may call higher-level supervisors into the discussion if the employee agrees; or, the supervisor may consult with higher-level supervisors to seek advice or counsel. If the employee feels intimidated or threatened by their supervisor, they may go directly to the Department Director.

The employee shall receive an answer within ten (10) calendar days, or be advised as to the conditions which prevent an answer within ten (10) calendar days and when an answer may be expected.

STEP 2 - DISCUSSIONS BETWEEN EMPLOYEE AND DEPARTMENT DIRECTOR

If the decision is not satisfactory to the employee in Step 1, or if the employee fails to receive an answer within the designated period provided in Step 1, he/she may request the Department Director to consider the matter. The request must be presented in writing and must be presented within ten (10) calendar days after receipt of Step 1 decision. The supervisor and employee shall provide all pertinent information to the Department Director who will review the facts and hold whatever discussions deemed necessary. The Department Director shall respond in writing to the employee within ten (10) calendar days after all necessary discussions are held; and, shall at the same time advise the employee of his/her recommended course of action.

STEP 3 – REFER TO THE TOWN MANAGER

If the decision reached in Step 2 is not satisfactory to the employee, or is not promptly implemented, the matter may be referred by the employee to the Town Manager. The grievance shall be submitted within fifteen (15) calendar days after the Department Director has presented a recommendation. The employee with the grievance shall provide a written summary of the specific facts of the complaint, copies of which shall be provided at the same time to all other parties concerned. If needed, the Town Manager may conduct investigational meetings with all concerned parties. The Town Manager will inform the parties within thirty (30) calendar days of his/her recommendations.

If the employee is not satisfied with the decision of the Town Manager, he/she may request a

hearing from the Town's Personnel Commission within thirty (30) calendar days of receipt of the decision through the appeals process.

8.02.01 GRIEVANCES OF DISCRIMINATION

Grievances alleging discrimination may be filed directly with the Town Manager following the requirements of the Appeals Policy and Procedures. An allegation of discrimination must be presented to the Town Manager within thirty (30) calendar days after the alleged discriminatory action.

8.02.02 GRIEVANCES OF UNLAWFUL WORKPLACE HARASSMENT

For grievances alleging unlawful workplace harassment (including sexual harassment), the employee must have submitted a written complaint to the Town Manager and waited sixty (60) calendar days for the Town Manager to take appropriate action. Unlawful workplace harassment is defined as unwelcome or unsolicited speech or conduct based upon race, sex, creed, religion, national origin, age, color, disabling condition, or veteran/military status obligations that create a hostile work environment. A hostile work environment is one which a reasonable person would find hostile or abusive, one which an employee perceives workplace actions or behavior to be hostile or abusive, and/or which unreasonably interferes with an employee's work performance. After the determination of the Town Manager by written complaint, to request a hearing with the Town Manager, the grievance must be filed no later than thirty (30) calendar days after the sixty (60) calendar day waiting period has ended.

9.0 APPEALS POLICY AND PROCEDURES

The purpose of this policy is to ensure that corrective and disciplinary actions for performance or conduct deficiencies are consistent with the Town's disciplinary policy. This policy provides a procedure whereby eligible employees may be heard regarding actions involving demotion, suspension, dismissal, or alleged discrimination (including sexual harassment) and be reviewed for validity and consistent application of applicable Town policies.

APPEAL TO THE TOWN MANAGER

An eligible employee who wishes to appeal a demotion, suspension without pay, or dismissal without just cause may submit their appeal to the Town Manager within fifteen (15) calendar days after the Department Director's disciplinary action or dismissal of the employee. The employee requesting the appeal shall provide a written summary of the specific facts and reasons for the appeal, a response to the disciplinary actions taken, the remedy desired by the employee, and any other pertinent information. A copy of the appeal shall be provided at the same time to the Department Director. If needed, the Town Manager may conduct investigational meetings with all concerned parties. The Town Manager will inform the parties within thirty (30) calendar days of his/her recommendations. If the employee is not satisfied with the decision, he/she may appeal to the Town's Personnel Commission.

APPEAL TO THE TOWN'S PERSONNEL COMMISSION

If the employee is not satisfied with the final decision of the Town Manager, he/she may appeal within

30 calendar days of receipt of the Town Manager's decision to the Town's Personnel Commission. The request should be filed in writing through the Town Clerk's Office, 333 N. Main Street, China Grove, NC 28023. The Commission may appoint a person or persons to investigate the employment action which has been appealed. The Town's Personnel Commission will hear the case and conduct a hearing of the facts and issues. If following the investigation and hearing, a settlement is agreed to by both parties; the designated agent shall certify the settlement to the Commission. If following the investigation and hearing, there are issues and facts on which an agreement cannot be reached, the designated agent shall report the findings to the Commission with a recommendation. The Commission at their next meeting, or as soon as possible thereafter, shall consider the report and modify, alter, set aside or affirm said report and certify its findings to the Town Manager. In reaching its decision the Commission (in discrimination cases, and the Town Manager in non-discrimination cases), is authorized to reinstate an employee to the position from which he/she has been removed, to order the employment, promotion, transfer, or salary adjustment of any individual to whom it has wrongfully been denied or to direct other suitable action to correct the abuse which may include requirement of payment for any loss of salary which has resulted from the improper action. The Town Manager has the authority to make all final binding decisions with the exception of discrimination. The Town Manager will notify the Personnel Commission of his final decision within fifteen (15) working days from the date he receives their findings. The decision reached by the Town's Personnel Commission on discrimination cases will be binding.

9.01 APPEAL DIRECTLY TO THE TOWN'S PERSONNEL COMMISSION

Any applicant for Town employment, regular Town employee, or former Town employee may appeal directly to the Town's Personnel Commission regarding alleged discrimination or a reduction in force. A regular Town employee has the right to use the grievance procedure if he/she so desires.

9.01.01 APPEAL PROCEDURE INVOLVING DISCRIMINATION

Any applicant for Town employment, regular Town employee, or former Town employee who has reason to believe that employment, promotion, transfer, or training was denied him/her or that demotion, termination of employment, or disciplinary process was forced upon him/her because of age, sex, race, color, national origin, religion, political affiliation, or physical disability except where specific age, sex or physical requirements constitute a bona fide occupational qualification shall have the right to appeal directly to the Town Manager. A regular Town employee has the right to use the grievance procedure if he/she so desires.

An employee or applicant must present an alleged act of discrimination to the Town Manager within 15 calendar days of the alleged discriminatory action. A Town employee who feels that he or she has been discriminated against may request a hearing by the Town Manager or may pursue the matter through the grievance procedure. If an employee elects to utilize the grievance procedure, he or she shall follow the procedure of the Town and, if dissatisfied with the Town Manager's decision, may appeal to the Personnel Commission within thirty (30) calendar days after the receipt of notice of the Town Manager's decision.

9.01.02 APPEAL FOR REDUCTION IN FORCE

A regular employee who is separated due to reduction in force shall have the right to appeal to the Town's Personnel Commission for a review to assure that systematic procedures were applied. An employee must request a hearing in writing within thirty (30) calendar days of the receipt of notification of the reduction in force.

9.02 REQUEST A HEARING BY OR APPEAL TO THE PERSONNEL COMMISSION

In order to obtain a hearing before the Town's Personnel Commission, the applicant or employee must request that his/her case be heard. He or she may do this by writing a letter to the Personnel Commission through the Town Clerk's Office, 333 N. Main Street, China Grove, N.C. 28023. A copy of the letter should also be sent to the Town Manager. The request for a hearing must include the following:

- 1) The name, address, and telephone number of the person on whose behalf the request is being made.
- 2) The position held or applied for by the employee or applicant.
- 3) The number of years the employee has been continuously employed by the Town.
- 4) The name of the department against who the complaint is being brought.
- 5) The nature of the complaint (e.g. racial discrimination in promotion, dismissal without justifiable cause, etc.).
- 6) A concise statement of the facts or reasons to provide an understanding of the situation upon which the complaint is based.
- 7) A statement of the relief desired (reinstatement, back pay, etc.).

9.03 CONDUCT OF THE HEARING

The hearing is conducted very similarly to a trial. Each party may be represented by an attorney and allowed to make opening statements, which serve as outlines for what each party hopes to establish at the hearing. After the opening statements (which are optional), the employee presents his/her witnesses. The Personnel Commission shall have the authority to require attendance at the hearing. All witnesses are sworn in, and their testimony will be recorded. During this hearing, both oral testimony and documentary evidence are presented to the Personnel Commission. After the employee has presented his/her witnesses, the department presents its witnesses, and the same procedure is followed. If, after the department has presented its witnesses, the employee wishes to present further evidence to rebut evidence offered by the agency, he/she may do so. The entire process will be recorded and filed in the Town Clerk's Office. If the employee or applicant chooses to proceed to other avenues outside of the Town's appeal process, a copy of the recording may be

prepared and forwarded to Superior Court or any appropriate agency as needed.

The hearing is open to the public. However, the Personnel Commission may close the hearing to the public due to North Carolina law regarding confidential personnel issues.

9.04 BURDEN OF PROOF

The department has the burden to prove, by the greater weight of the evidence, that there was just cause for the adverse personnel action taken against the employee. However, if the employee alleges discrimination in the action taken, then the employee must present sufficient evidence to establish by the greater weight of the evidence that the department did discriminate against him/her. If the employee does this, then the department must present evidence, which shows that it did not discriminate. The burden of proof has no effect on the order of presentation of evidence, which is always employee, department, and employee.

9.05 THE CLOSING STATEMENTS

After all witnesses and evidence have been presented, each party may, if it chooses, make a closing statement. This is a summary of the evidence a party has presented at the hearing and what conclusion the party feels that evidence shows. The party with the burden of proof makes the last closing statement.

9.06 ESTABLISHMENT OF PERSONNEL COMMISSION

The Personnel Commission shall consist of the Town Clerk as secretary and four (4) other members as appointed by the Town Council to serve for a period of four (4) years. The membership may not include the Town Attorney or Town Manager. A quorum of three (3) members must be present to conduct a meeting.

Members of the Personnel Commission may receive a fee of \$10.00 per meeting.

9.06.01 ORGANIZATION

The Personnel Commission, at the first meeting of each year, may elect one (1) of its members as Chairman, who shall preside at meetings. Meetings shall be held as necessary. The Town Clerk will serve as Secretary to the Commission to perform such duties as the Commission may direct.

9.06.02 POWERS AND DUTIES

The Personnel Commission shall:

- 1) Advise the Town Manager on Town personnel appeals, grievances and adverse actions.
- 2) Conduct Public Hearings upon the request of the Town Clerk or of discharged, suspended, or demoted Town employees. The Commission shall have powers necessary to complete the investigation of the action taken, including the power to subpoena principals or other parties. The Commission shall inform the Town Manager

and the Town Clerk in writing of its findings and recommendations.

- 3) Keep an adequate written record of its proceedings, findings and recommendations.

The Personnel Commission's decisions in discrimination cases will be binding. All other decisions reached by the Commission will be submitted to the Town Manager for his/her approval or disapproval.

The Town Manager will notify the Personnel Commission of his final decision within fifteen (15) days from the date he receives their findings. The Personnel Commission will advise all parties involved of the final decision in writing. If the Town Manager does not adopt the decision of the Commission, the employee may appeal the decision to superior court.

10.0 WORK RULES

Supervisors and Department Directors have a managerial responsibility to discipline employees who do not conduct themselves in the best interest of the Town. Disciplinary actions may consist of verbal warnings, written warnings, transfers, suspensions, demotions or discharges. Suspension without pay may vary contingent upon policy or administrative guidelines.

In many cases, potential problems may be corrected by an informal discussion between an employee and his/her immediate supervisor. Complete documentation of disciplinary actions, including a description of the violation and the action taken, will be made and placed in the employee's permanent personnel folder. Documentation of oral warnings should only be placed in the employee's personnel folder after a written warning has occurred.

The following examples of misconduct, while not intended to be all-inclusive, are cause for disciplinary action. Each individual case must take into consideration the circumstances surrounding the incident. These individual circumstances will dictate the appropriateness of the suggested disciplinary measure.

10.01 ABSENTEEISM

Employees were selected to work for the Town because their services were needed. The quality of service provided to the public is a reflection of the consistent and dependable performance of Town employees. Unscheduled absences or tardiness places a burden on co-workers and hinders effective Town operations. Therefore, it is important that they be on duty regularly to perform their assigned work.

Employees are expected to maintain adequate leave balances to cover any unplanned absences that may occur. Excessive tardiness and absenteeism, even if using paid leave, are unacceptable and may result in disciplinary action up to and including termination. Unapproved absences or unpaid absences that are not protected by law are also subject to disciplinary action up to and including termination.

Employees who are absent for three (3) consecutive days without notification will be deemed to have voluntarily resigned their positions because they are unavailable for continued employment.

There will be times when employees will be required to be away from their jobs to accommodate urgent personal business. Paid sick time may not be used for this purpose. However; if vacation time has been accrued, it may be used with the approval of the Department Director or Supervisor. Depending upon departmental operations, staff workloads, and staff availability at certain times of the year, Supervisors and Department Directors have the right to deny leave requests in order to maintain adequate staffing, departmental operations, and continuity of Town services.

10.02 TARDINESS

Tardiness is defined as failure to report to work at a regular starting time with or without a valid reason. Lost time may be made up. For excused tardiness, Department Directors are allowed discretion in charging lost work time for hourly employees to an accrued benefit. Employees will not be paid for unexcused lateness.

10.03 UNAUTHORIZED EXTRA WORK

Commencing work before the regularly scheduled starting time, working overtime, or working during meal breaks without permission of the concerned supervisor is prohibited. Department Directors are to pay hourly employee overtime. Discipline is the only recourse open to the supervisor for the employee who works overtime without permission.

10.04 UNSATISFACTORY WORK

If employees' work becomes unsatisfactory and they are unwilling or unable to perform their jobs, they will be given an opportunity to understand what is expected of them in their jobs through the Town's documentation procedure. Only when it becomes apparent that the employee is not going to adhere to the recommendation of the Department Director will disciplinary action be permitted.

10.05 INSUBORDINATION

Insubordination includes open defiance when employees refuse to comply with a proper request or demand. Insubordination will not be tolerated. However, if an employee knows that a person's health or safety will be endangered by carrying out an order or request, that employee may refuse to carry out the order or request. If subsequent investigation reveals that no hazard existed and that, the employee was wrong, the employee may be subject to disciplinary action, depending upon the evaluation of the investigation.

Infraction of work rules as they are herein described may result in disciplinary action such as dismissal.

11.0 VOLUNTARY TERMINATION OF EMPLOYMENT

By using the proper selection procedures, a good orientation program, and a fair and consistent personnel policy, the Town seeks to maintain a reasonable turnover rate among its employees.

11.01 THREE (3) DAYS ABSENCE

This type of resignation is primarily initiated by the employee. If individuals are absent for three (3) consecutive days without notification, the employees will be deemed to have voluntarily resigned their positions because they are unavailable for continued employment. However, if there are extenuating circumstances beyond the control of the employees and they are unable to notify their Department Directors, reinstatement will be considered after objectively evaluating the facts.

11.02 RESIGNATION

Person(s) desiring to terminate employment with the Town, whether probationary or regular status, should submit a written resignation letter to his/her immediate supervisor. A written resignation is preferred; however, a verbal resignation can be accepted in the absence of a written form. A resignation should be received two (2) weeks before the effective date to allow time to secure a replacement. Upon resignation, the employee's supervisor and Department Director will be responsible for the collection of issued equipment as listed on the Employee Equipment Checklist. Accrued vacation for which the employee is entitled will be paid to the employee following termination. Earned vacation days should not be used in fulfilling the required days of notice. The termination date for the employee being paid, for the purposes of the record, is the last day the employee works. An employee who voluntarily resigns from employment has no appeal rights. Prior to resigning, an employee who perceives that unlawful or intolerable employment practices or conditions exist within a department may exercise his/her right to present his/her concerns in accordance with the procedures described in the Grievance Procedure.

12.0 REDUCTION IN WORK FORCE

An employee may be separated whenever it is necessary, due to shortage of funds or work, abolishment of a position, or other material change in duties or organization. Retention of employees in the affected position classifications shall be based on consideration of the type of appointment (i.e. probationary or regular status, temporary or part-time non-benefited status), and the actual or potential adverse impact on a protected group of individuals. However, neither temporary, probationary, nor trainee employees in their initial six months of training shall be retained in classes where regular employees (those who have satisfactorily completed a probationary or equivalent trial period) must be separated in the same or related class. Employees in grant-funded or time-limited positions are not considered as Forced Reduction when grant funding or the time period of their appointment ends.

12.01 APPEALS

A regular employee who is separated due to reduction in force shall have the right to appeal to the Town Manager or a review to assure that systematic procedures were applied. An employee must request a hearing in writing within thirty (30) calendar days of the receipt of notification of a reduction in force.

12.02 GUIDELINES FOR REDUCTION IN FORCE

Separation of employees through reduction in force should not occur until management has evaluated alternatives. Therefore, a reduction in force decision should be reached only after

measures such as a hiring freeze on vacant positions, limits on purchasing and travel, retirement options, and work schedule alternatives have been reviewed.

In determining which positions will be subject to a Reduction in Force, part time employees in the areas of the reduction in force may be separated from employment prior to the effective date of the reduction in force; these employees would not be considered part of the reduction in force.

A reduction in force necessarily compels a thorough evaluation of the accomplishments of specific programs, the need for particular positions, and the relative value of specific employees so that a department can provide the highest level of service possible with a reduced work force. The determination as to the retention or separation of a particular employee should include an evaluation of length of service, skills, education, experience, performance ratings, and organizational needs.

Guidelines for reduction in force would include, in addition to or in lieu of other factors, the following criteria:

- 1) Determination of the number of positions that must be deleted to meet the established goal.
- 2) The feasibility of eliminating entire programs or parts of programs.
- 3) Identification of areas where the number of positions must be reduced or eliminated.
- 4) Identification of the classification of positions to be eliminated to determine whether personnel can be interchanged with other work units.
- 5) Needs of the department to deliver services.
- 6) Exploration of measures that would avoid the involuntary separation of employees.
- 7) Documentation of steps followed in reduction in force.
- 8) An impact analysis of proposed reduction in force on the department's workforce demographics.

Following the Town Manager's decision, the Town Clerk will inform the affected employees in writing of their impending separation due to a reduction in force including the scheduled date of separation, benefits, instructions regarding scheduling an exit interview, and their appeal rights.

Employees affected by the reduction in force will receive a thirty (30) calendar day notice plus four (4) weeks of severance pay. The Department Director may request the 30-day notice be waived and the employee paid for that period of time. Employees will receive their accumulated vacation leave. Sick leave will be reinstated if re-employed in any Town department within three (3) years or the employee may elect to transfer sick leave within the three (3) year period to another governmental entity who has agreed to accept the transfer of unused sick leave. Employees may also utilize the Employee Assistance Program (EAP) for a period of time following their separation due to the reduction in force.

13.0 PROHIBITED EMPLOYMENT PRACTICES

The Town is committed to maintaining a work environment that is free of discrimination and harassment. It is the policy of the Town of China Grove to provide employment opportunities in its departments without discrimination on the basis of race, age, religion, sex, national origin, handicap, or veteran status. This also must be observed in the disciplining of employees. Discipline may be administered to employees as long as it is not accomplished in a discriminatory manner or for a discriminatory purpose.

13.01 SEXUAL HARASSMENT

Harassment on the basis of sex is a violation of Section 703 of Title VII. Supervisors and Department Directors shall take all steps necessary to prevent sexual harassment. Sexual harassment charges will be investigated by the Town Manager.

Un-welcomed sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitute sexual harassment when:

- 1) submission to such conduct is made either explicitly or implicitly a term or condition of continued employment;
- 2) submission to or rejection of such conduct by an employee is used as the basis for employment decisions affecting such employee; or
- 3) such conduct has the purpose or effect of substantially interfering with an employee's work performance or creating an intimidating, hostile, or offensive working environment.

Sexual harassment may include explicit sexual propositions, sexual innuendoes, suggestive comments, sexually-oriented kidding or teasing, practical jokes, jokes about gender specific traits, foul or obscene language or gestures, displays of foul or obscene printed or visual material, and physical contact such as patting, pinching, or brushing against another's body.

Employees encountering harassment should notify the offending individual that their actions are inappropriate and offensive. The employee should document instances of harassment in order to provide the fullest basis for investigation purposes. In addition, the employee shall notify his or her supervisor of the harassment as soon as possible.

The employee who feels that they have been sexually harassed may wish to follow the Policy and Procedure, Employee Appeals and Grievances. However, the employee may appeal directly to the Department Director or the Town Manager.

The Town recognizes that false accusations of harassment and sexual harassment can have a devastating effect on innocent employees. Individuals falsely accusing another of harassment or sexual harassment will be disciplined in accordance with the nature and extent of the false accusation.

13.02 WORKPLACE HARASSMENT

It is the policy of the Town that all employees are guaranteed the right to work in an environment free from unlawful workplace harassment and retaliation. Unlawful workplace harassment is defined as unwelcome or unsolicited speech or conduct based upon race, sex, creed, religion, national origin, age, color, disabling condition, or veteran/military status obligations that create a hostile work environment. A hostile work environment is one which a reasonable person would find hostile or abusive, one which an employee perceives workplace actions or behavior to be hostile or abusive, and/or which unreasonably interferes with an employee's work performance. Retaliation is defined as adverse treatment which occurs because of opposition to unlawful workplace harassment. Employees who feel they have been subjected to unlawful workplace harassment should follow the policies and procedures in Section III, 8.0 Employee Appeals & Grievances found in this manual.

13.03 DISCRIMINATION AGAINST THE DISABLED

A disabled individual is defined as one whom:

- a) Has a physical or mental impairment that substantially limits one or more of such person's major life activities;
- b) Has a record of such impairment; or
- c) Is regarded as having such impairment.

Supervisors and Department Directors must make every reasonable effort to affirmatively employ and advance in employment qualified disabled individuals. Disabled employees must be treated no differently than employees who are not disabled.

13.04 PREGNANCY DISCRIMINATION

Supervisors and Department Directors must treat an employee temporarily unable to perform the functions of the job because of a pregnancy-related condition in the same manner as other temporarily disabled employees are treated. Additional information on the Town's insurance, medical and disability benefits are included in the Employee Benefits and Services Section of this manual.

13.05 DISCRIMINATION AGAINST PERSONS BECAUSE OF THEIR RELIGIOUS BELIEFS

It is forbidden to discriminate against an employee for reasons of religion. The term "religion" includes all aspects of religious observances and practices as well as religious beliefs unless the supervisor or Department Director demonstrates that there is no way to reasonably accommodate an employee's or prospective employee's religious observance or practice without undue hardship or serious inconvenience to the conduct of business in the department.

13.06 DISCRIMINATION AGAINST VETERANS

Section 402 of the Vietnam Era Veteran's Readjustment Assistance Act of 1974 requires non-discrimination against any employee or applicant for employment because he or she is a disabled veteran or a veteran of the Vietnam Era.

13.07 WHISTLEBLOWER PROTECTIONS AND WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

The Town is committed to the highest standards of moral and ethical behavior by its employees, administrators, and elected officials. The purpose of this policy is to prohibit dishonest acts and/or fraudulent activity and to encourage Town employees to report verbally or in writing to their supervisor, Department Director, or other appropriate authority evidence of activity by a Town department, Town employee, appointed or elected official constituting:

- a) A violation of State or Federal law, rule or regulation;
- b) Fraud;
- c) Misappropriation of Town resources;
- d) Substantial and specific danger to the public health and safety; or
- e) Gross mismanagement, gross waste of monies, or gross abuse of authority.

13.07.01 ACTIONS CONSTITUTING FRAUD

The term “fraud” as used in this policy includes, but is not limited to, the following:

- 1) Any dishonest or fraudulent act;
- 2) Forgery or alteration of a check, bank draft, or any other financial document or account;
- 3) Misappropriation of funds, securities, supplies, or other assets;
- 4) Impropriety in the handling or reporting of money or financial transactions;
- 5) Accepting or seeking anything of material value from vendors, contractors, or other persons providing services/materials to the Town;
- 6) Intentional violation of State or Federal laws involving or regulating work performed;
- 7) Using Town funds to make unauthorized purchases;
- 8) Authorizing or receiving compensation for hours not worked;
- 9) Any similar or related inappropriate conduct.

13.07.02 WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

Wrongful Termination in Violation of Public Policy occurs when an employer dismisses an employee for refusing to participate in an illegal act, for exercising a legal right such as voting, or the employee reported illegal misconduct that they observed in the company or business.

13.07.03 PROTECTION FROM RETALIATION

It is the policy of the Town that employees are free of intimidation, harassment, or retaliation when reporting to public bodies about matters of public concern, including offering testimony to or testifying before appropriate legal panels.

No Department Director, supervisor, or other managing body shall discharge, threaten or otherwise discriminate against a Town employee regarding the employee's compensation, terms, conditions, location, or privileges of employment because the employee, or a person acting on behalf of the employee, reports or is about to report, verbally or in writing, any activity described above. No Town employee shall retaliate against another Town employee because the employee, or a person acting on behalf of the employee, reports or is about to report, verbally or in writing, any activity described above.

No Department Director, supervisor, or other managing body shall discharge, threaten, or otherwise discriminate against a Town employee regarding the employee's compensation, terms, conditions, location, or privileges of employment because the employee has refused to carry out a directive which in fact constitutes a violation of State or Federal law, rule, or regulation or poses a substantial and specific danger to the public health and safety. No Town employee shall retaliate against another Town employee because the employee has refused to carry out a directive which may constitute a violation of State or Federal law, rule, or regulation or poses a substantial danger to the public health and safety.

Employees, supervisors, and/or Department Directors found to have participated in fraudulent activity or in wrongful termination in violation of public policy will be subject to disciplinary action up to and including dismissal from employment and possible criminal prosecution or civil action as appropriate.

13.08 REPRISAL

It is unlawful for an employer to take retaliatory action against an individual who opposes employment practices that are prohibited by law. Retaliation against persons who have filed charges, testified, assisted or participated in any proceeding, investigation or hearing under the provisions of the Age Discrimination law, or under Title VII of the Civil Rights Act, is expressly prohibited. Unlawful reprisal actions often entail the assignment or transfer of workers who have filed discrimination charges against their employers due to "undesirable" positions in terms of pay, working hours, and job security.

The refusal to hire a job applicant solely because he or she has previously filed charges of

discrimination against an employer would constitute an act of unlawful retaliation. It is the policy of the Town to provide for the settlement of problems and differences through an orderly complaint procedure. Every employee shall have the right to present his or her problem or complaint in accordance with established procedures, free from interference, coercion, restraint, discrimination, or reprisal.

14.0 TOBACCO GUIDELINES

Smoking and the use of smokeless tobacco products is prohibited in Town Buildings, Town-owned vehicles, and on any Town owned or leased properties that are designated as tobacco free properties.

This policy shall be enforced by supervisory and management personnel. Employees found to be in violation of this policy may be subject to disciplinary action up to and including dismissal.

15.0 DRUGS AND ALCOHOL POLICY

It is the policy of the Town to maintain an alcohol and drug free workplace to help ensure a safe, healthy, and productive drug-free work environment for Town employees and others on Town property, to protect Town property, and to ensure efficient operations. The Town of China Grove has zero tolerance for the use of alcohol, illegal substances, or the misuse of prescription medications during work hours or the presence of these substances in the body during work hours regardless of when consumed. Employees shall not engage in the manufacture, unlawful use, possession, sale or transfer of any controlled substance which may impair their ability to perform assigned duties or otherwise adversely impact the Town. Substances which may impair performance include, but are not limited to, alcoholic beverages, drugs (whether legal or illegal), and any other intoxicant. This policy is effective during the time in which the employee is engaged in the performance of job related duties regardless of location and, at all times on Town property including parking lots and Town vehicles. An employee must notify their supervisor or Town Manager of any criminal drug statute conviction for a violation occurring in the workplace no later than five (5) calendar days after such conviction. Violation of this policy and/or alcohol or controlled substance-impaired behavior on the job shall be deemed unacceptable personal conduct which shall be cause for disciplinary action up to and including immediate termination.

The Town's substance abuse testing program primarily involves three main components; the testing itself, applicable disciplinary procedures, and the implementation of the EAP (Employee Assistance Program) where applicable. The testing will show: 1) what drugs and/or alcohol levels are present in the body and in what amounts, and 2) provide evidence whether or not the employee has used a controlled substance or alcohol.

Employees with alcohol or substance abuse problems are encouraged to voluntarily seek appropriate help through the Employee Assistance Program (EAP) **before** it affects their job performance. Such action on the part of employee shall be considered responsible and shall be supported by management and supervisors. Efforts by employees to obtain such help will be respected and will be handled in utmost confidence.

15.01 FIT FOR DUTY POLICY

Town employees are expected to report for work and remain at work in a condition to perform assigned duties and not under the influence of any substance which may impair performance. Safety Sensitive employee shall not use alcohol within eight (8) hours before going on duty or operating a motor vehicle.

An employee shall notify his/her Department Director if charged off the job for driving while impaired (DWI) or driving under the influence (DUI) or for the use, sale, or possession of a controlled dangerous substance within forty-eight (48) hours of the incident. The Department Director, in consultation with the Town Manager, will investigate the incident and if it is found to have a direct relationship to the employee's job duties and responsibilities, appropriate action may be taken.

15.02 PRESCRIPTION OR NON-PRESCRIPTION DRUGS

For safety reasons, employees who are required to drive or operate machinery must report to the Department Director the use of a prescription or non-prescription drugs which may affect the employee's ability to perform assigned duties which may render them a safety risk. The Town Clerk maintains a listing of cautionary medications provided by the U.S. Department of Transportation that can cause drowsiness and can disqualify employees from driving on Town business whether using their personal vehicle or a Town-owned vehicle. Use of medications on this list will either immediately disqualify employees from driving on Town business or will require a letter from the prescribing physician indicating the listed medication will not cause drowsiness or dizziness and will not impair the employee's ability to drive or operate machinery. The letter from the prescribing physician must be received prior to the employee driving on Town business or operating machinery. If an employee has any questions, the employee should contact the Department Director. Compliance of HIPAA regulations will be adhered to at all times.

15.03 EMPLOYEES SUSPECTED OF BEING IMPAIRED

An employee who suspects that a co-employee may be under the influence of a substance which impairs performance should immediately notify his or her supervisor or some other member of management in order that the employee suspected of being impaired can be observed and evaluated by management and, if possible, medical personnel. For further information regarding Reasonable Cause or Suspicion Testing, refer to Types of Testing Required in the Drug and Alcohol Policy.

15.04 DRUG AND/OR ALCOHOL TESTS

The Town may require any employee to submit to a drug or alcohol test for the following reasons:

- 1) As a routine part of a Town-mandated physical examination.
- 2) When there is reasonable suspicion of use of any substance which may impair job performance.
- 3) An accident while on Town time.
- 4) Random drug/alcohol test of employees as mandated by the Town.

Failure or refusal of an employee to consent to a drug or alcohol test under this policy, or any attempt to alter, conceal or compromise test results, will be deemed a positive test result and shall subject that employee to immediate termination of employment. Any of the following is considered a refusal to test:

- 1) Refusing to sign the Drug Test Consent Form or refusal to submit to a drug/alcohol test;
- 2) Engaging in conduct that clearly obstructs the testing process;
- 3) Adulterating, contaminating, or tampering with a blood, urine, saliva, breath, or other sample;
- 4) Failing to report to the designated test site as directed; or
- 5) Leaving the test site without completing the test

15.05 POSITIVE SCREENING TEST FINDINGS

In a case where an employee tests positive for the use of alcohol and/or illegal drugs, or is impaired by alcohol or illegal substances on Town premises will be subject to immediate termination.

An employee who does not pass the drug or alcohol test and is terminated will not be considered for re-employment for six (6) months following the date of the test and then will be considered only when he/she presents documentary proof of successful completion of a drug and/or alcohol abuse treatment or rehabilitation program and he/she passes a pre-employment drug and/or alcohol test.

Employees who are determined to be using and/or impaired by prescription drugs not prescribed for them or who are taking an amount of their own prescription drug in excess of the recommended dosage will be subject to the following:

- 1) Employee will be suspended without pay for a period as determined by management on a case-by-case basis.
- 2) Employee shall be required to seek treatment for substance abuse from a treatment specialist and/or institution and successfully complete the treatment program (Employee Assistance Program) as a condition of continued employment. Failure to attend and actively participate in the EAP and/or failure to be cleared by the EAP Provider as having completed all recommended actions shall be grounds for termination.
- 3) The employee will not be permitted to return to work until a follow-up test indicates negative results.
- 4) Employees who have been suspended for positive test results and allowed to return to work may be required at any time during the 12-month period following their return to work, to submit to follow-up tests for drugs. If such an employee tests positive on any subsequent test, he or she shall be terminated.

15.06 SEARCHES

The Town may conduct a search of Town property based on reasonable suspicion of possession of substances which may impair performance. The Town has a right to search Town property, including Town vehicles and lockers, at any time without notice. The employee must be present during the search.

An employee determined by an administrative investigation to be in possession of or involved in the manufacture, distribution, dispensing, or selling of controlled substances and/or alcohol on Town premises, workplaces, or officially-sponsored activities during scheduled work hours shall be terminated.

15.07 CONFIDENTIALITY

Information and records relating to testing, searches or disciplinary action pursuant to this policy shall be kept confidential. All information obtained in the course of testing, examining, counseling, rehabilitating, and treating applicants and employees pursuant to this policy shall be protected under HIPPA regulations as confidential medical information.

Any tests for the presence of alcohol or controlled substances authorized by this policy shall be designed to protect the privacy of the applicant or employee being required to undergo testing.

No sample obtained for the purpose of conducting tests for the presence of alcohol or controlled substances pursuant to this policy shall be used to perform any diagnostic examinations that would detect any hidden or latent physical or mental infirmity, disease, or condition. The analysis of such sample is limited to such procedures as are devised to detect the presence of alcohol or controlled substances.

15.08 TYPES OF TESTING REQUIRED

1. Pre-employment Testing

Prospective employees will be subject to a pre-employment drug test following a conditional job offer. If as a result, the applicant is found to be under the influence of any substance, which may impair the employee's performance, employment will be denied. Applicants who test positive cannot apply with the Town for six (6) months, unless he/she brings proof of receiving treatment for substance abuse and being free of the controlled substance. An applicant who refuses to submit to a drug test pursuant to this policy will not be considered for employment with the Town.

2. Reasonable Cause or Suspicion

If an employee's speech, behavior, body odor, or physical appearance on duty indicate to the supervisor that the employee may be under the influence of alcohol and/or narcotics (whether legal or illegal), then reasonable cause for testing exists. Ideally, at least two superiors should witness the employee's conduct/behavior. However, if only one superior is available, then one witness is sufficient for determining reasonable cause. The Town Manager should be contacted concerning

the situation prior to any action being taken by the supervisor or Department Director.

The Town Manager will determine whether to order testing of the employee based upon the documented observations of the Department Director or supervisor. The supervisor and all other employees who witness the aberrant behavior will describe their observations in writing with specific reference to the facts and the deviations from normal behavior. These detailed observations may include slurred speech, mumbling, confused, sleepy or drowsy, glassy or dilated eyes, hostile, irritable, nervous, talkative, clumsy, stumbling, staggering, swaying, falling, or lack of coordination. In addition, the detailed observations should include specific actions in relation to the performance of job duties. The documentation will be signed and sent in a sealed envelope to the Town Clerk. The documentation supporting reasonable suspicion will be retained confidentially by the Town Clerk. Observations or complaints from the general public in reference to the suspected substance abuse should be included. The employee's behavior that triggers this process may be observed on a one-time only basis or preferably over a period of time with each incident documented by the supervisor and/or other witnesses. If the situation permits, cumulative observation is more valuable in detecting a pattern of suspected substance abuse. However, it is the decision of the supervisor as to when an employee's behavior requires immediate intervention or when cumulative observation and documentation is the best course of action. Cumulative observation should be two weeks or less. The Town Manager will be advised of an on-going problem and is available at any time for consultation. Another staff member may be used as a witness when the supervisor confronts the employee and sends them for testing. If more than one employee exhibits the same or similar behavior as the one under suspicion, then all who exhibit similar behavior must also be tested. The employee will be tested for drugs, alcohol, or both at the discretion of the Town.

In approaching the employee suspected of being impaired, the supervisor must advise the employee of the suspicions and describe the observed deviation from normal behavior, action, or practices and state that he/she will be taken immediately for testing. The supervisor should have one additional witness present when the employee is confronted. Refusal by the employee to be tested may result in termination. Under no circumstances is the employee to be allowed to drive to the test site or return home on his/her own. The Town may be held liable if an impaired employee is permitted to leave the premises on their own and injures a third party or themselves. It is the responsibility of the respective department to transport the employee to the test site immediately after the employee is notified of the suspicions.

If the employee tests positively for drugs or has blood alcohol content (BAC) of 0.02 or more, they will be immediately transported to their home from the test site. Testing positively for drugs or blood alcohol content will result in the employee's termination from employment.

3. Post-Accident

An employee involved in a motor vehicle accident while on Town business will be directed to submit to a drug and/or alcohol test. The employee's supervisor will provide or arrange appropriate transportation for testing. An employee required to submit to drug and/or alcohol testing following

an accident or moving traffic violation must make himself/herself available for the testing within three (3) hours of the accident or violation. Failure to be available within such time will be considered a refusal to submit to testing unless there is a clear hindrance such as life-threatening injuries. If the employee is in need of medical attention, he/she should seek required medical care first.

If a vehicle operator who is required to submit to a drug and/or alcohol test following a vehicle accident is unable to report to the regular testing site due to injuries, and the drug and/or alcohol test is administered pursuant to medical treatment, the employee shall provide the Town Manager with an authenticated record of the test results.

When there is an on-the-job accident requiring treatment by a licensed physician, the employee is required to be drug tested. Failure to comply with the drug test is grounds for disciplinary action up to and including dismissal.

4. Random Testing

Public Safety and Safety Sensitive employees will be subject to a random drug test. Random testing shall be unannounced. The Town Clerk will utilize random selection by position number of individuals subject to testing. The annealed rate of testing will equal 10% or more of this class of employees. The testing frequency and selection are such that an individual's chance of selection continues to exist throughout his/her employment.

The Town Clerk will notify the Department Directors of which employees have been selected for testing. Department Directors will notify the employee of the random selection. The employee will sign notification at the time it is handed to the employee and maintained in his/her medical file. The employee will report to the designated medical facility and submit a specimen at the time of notification.

If for some reason the specimen was not submitted within an acceptable period of time (four hours), the employee may be subject to disciplinary action up to and including dismissal.

15.09 DRUG TESTING POLICY DEFINITIONS

1. **Employee:** Any person employed in a position in which wages are paid for services rendered, regardless of employment status or hours worked.
2. **Applicant:** Any person whose offer of employment is contingent upon the production of a negative drug test.
3. **Public Safety and Safety Sensitive Position:** Any job classification or position which has been evaluated and determined by the Town Manager to be of such a critical nature in terms of public services or public safety and that involves such a significant risk of injury to others that even a momentary lapse of attention can have disastrous consequences that random drug testing has been determined to be a necessary public policy. Such positions include, but are not limited to, law enforcement officers, emergency service personnel, other medical personnel, and other

safety sensitive positions.

4. **Drug:** A controlled substance as defined in North Carolina General Statute 90-87(5) or a metabolite thereof. These substances include but are not limited to marijuana, cocaine, heroin, prescription drugs, alcohol, opiates, amphetamines, and synthetically produced drugs or other impairing substances. Drugs, unless the context indicates otherwise, does not include non-controlled, over-the-counter drugs.
5. **Alcohol and Substance Abuse:** Consists of any of the following:
 - a) Use of illegal drugs or controlled prescription drugs obtained unlawfully; or
 - b) Excessive use of lawfully obtained prescription drugs or over the counter drugs or alcohol when such use impairs job performance; alters work behavior; and/or safety of the employee or others.
6. **Employee Assistance Program:** (Also known as EAP): A program of counseling and referral services for employees and their families including assessment, evaluation, referral for treatment, and follow-up services provided by the Town.
7. **Approved Laboratory:** Laboratory which is federally approved and certified by the U.S. Department of Health and Human Services to conduct employee and job applicant drug testing.
8. **Medical Review Officer (MRO):** A licensed physician whose services are obtained by the Town, to whom all positive laboratory tests will be sent, and who reviews and interprets such laboratory test results.
9. **Chain of Custody:** Procedures designed to assure proper handling, labeling, identification, confidentiality, and documentation of test samples.
10. **Reasonable Suspicion:** The belief that an employee or applicant is in all probability using or has recently used drugs or alcohol in violation of the Town's policy. This belief shall be based upon specific, objective and articulate facts, observations, and reasonable inferences concerning the appearance, behavior, speech, body odors, or performance of the employee.
11. **Positive Drug Test:** A positive technical analysis of a biological specimen such as urine, blood, or oral fluid/saliva that has determined the presence of specified drugs or their metabolites including the use of a breathalyzer for alcohol.

15.10 DRUGS INCLUDED IN TESTING

When a drug screening is required under the provisions of this policy, a urinalysis test will be given to detect the presence of the following drugs:

1. Amphetamines
2. Barbiturates
3. Benzodiazepines
4. Cocaine Metabolite
5. Methaqualone
6. Methadone
7. Opiates

8. Marijuana Metabolite (THC)
9. Phencyclidine (PCP)
10. Propoxyphene

In addition, any employee found to have abused prescription drugs will be subject to the terms and conditions of this policy.

When an alcohol screening is determined to be appropriate, a blood sample may be drawn or a breathalyzer conducted by an approved laboratory or medical provider to detect the presence of alcohol.

15.11 THRESHOLD LEVELS

The threshold levels established by the Department of Health and Human Services for Federal Work Place Drug Testing programs are hereby adopted by reference and shall automatically include any later amendments and editions unless herein amended. The content level of each substance needed to determine whether an employee or applicant has consumed a drug or alcohol covered by this policy will be determined by a certified toxicologist of the approved laboratory.

16.0 OPERATION OF TOWN VEHICLES

The Town of China Grove will adopt the State Statutes governing the Operations of Vehicles. The law is as follows: 14-247 - Private Use of Publicly Owned Vehicle. It shall be unlawful for any officer, agent or employee or agency of the state, to use for any private purpose whatsoever any motor vehicle of any type or description whatsoever belonging to the State, or to any Town, or to any institution or agency of the State. (1925, C. 239 s 1.)

Town vehicles are insured for liability and the employee for workers compensation. Employees are reminded that hitchhikers or unauthorized personnel are forbidden to ride in Town vehicles. No alcoholic beverages may be carried in Town vehicles at any time, except where law enforcement agencies may be required to transport evidence in a criminal investigation. Abuse of this policy and or the regulations could result in the employee being prohibited from the use of Town automobiles.

Any accident, in which a Town vehicle is involved, regardless of severity, must be reported to the employee's supervisor immediately. An accident report will be forwarded to the Risk Manager.

16.01 ASSIGNMENT OF AUTOMOBILES

The Town Manager has the authority to assign Town automobiles to Town employees. One determining factor that the Manager will utilize in the assignment of automobiles will be the frequency and nature of emergency calls the employees may receive during scheduled time off. Re-assignment of Town-owned vehicles may be necessary when conditions of the position change. If a Department Director determines that an automobile should be assigned to an employee, he/she should submit written justification to the Town Manager.

16.01.01 TAKE-HOME CAR POLICY

The Town Manager has the authority to allow employees that have been assigned a take-home vehicle to drive assigned vehicles home up to fifteen (15) miles from Town limits or otherwise at his/her discretion.

17.0 TECHNOLOGY USE POLICY

This policy covers the use of all technology resources belonging to the Town. It includes, but is not limited to computer systems of any size and function and their attached peripherals, phones, mobile phones, faxes, voice mail systems, e-mail systems, network resources and Internet resources referred to as Town technology resources. Technology resources owned by the Town are in place to enable the Town to provide its services in a timely and efficient manner. This is the primary function of these resources and any activity or action that interferes with this purpose is prohibited. Because technology systems are constantly evolving, the Town requires its employees to use a common sense approach to the rules set forth below, complying not only with the letter, but also the spirit, of this policy.

17.01 SCOPE

This Policy applies to all Town of China Grove Departments.

17.02 DISCIPLINARY ACTION

Compliance with this policy is mandatory. Each Department Director will monitor compliance and non-compliance with this policy. In accordance with this policy, violations relating to this policy will be reviewed by the Department Director and the Town Manager to determine if disciplinary action is necessary.

17.03 DEFINITIONS

Town technology resources: any physical devices, systems, software platforms and applications required to maintain or carry out essential work for the Town of China Grove.

Insignificant Use: personal use that is brief and infrequent, incurs negligible or no additional cost to the town and does not interfere with the conduct of town business.

Electronic Communication: the distribution of messages, documents, files, software, or images by electronic means over a phone line or a network connection.

Least Privilege: providing only the access necessary to perform assigned duties, shall be implemented to ensure the confidentiality, integrity, and availability of Town technology resources.

17.04 ROLES AND RESPONSIBILITIES

Information security extends well beyond Information Technology (IT). Information security is a critical business function that touches all aspects of an organization. China Grove is fully committed to information security and asserts that every person employed by or on behalf of the Town has important responsibilities to maintain the security of Town technology resources and data.

1. Users

Users are all workforce members (employees or any other individual performing work on behalf of, or with approval of the Town) authorized to access Town technology resources and are responsible for:

- a) Complying with Town Information Technology and Security policies;
- b) Maintaining the security of Town technology resources and data associated with their role(s) as defined in this Policy;
- c) Storing original local Department data on the China Grove network to ensure compliance with Town or Department-specific records retention policy,
- d) Protecting Sensitive information against loss, unauthorized use, access, or disclosure, by the following:
- e) Using Sensitive information only for the stated legal and/or business purpose;
- f) Disclosing Sensitive information as permitted by law or with the express consent of the Department Director;
- g) Not making copies of Sensitive information except as required in the performance of assigned duties;
- h) Keeping Sensitive information out of plain sight;
- i) Not sharing user accounts and passwords;
- j) Creating, changing and storing passwords in accordance with established policies and standards;
- k) Locking or logging off unattended devices;
- l) Not violating copyright law and conforming to software licensing restrictions by only using software that has been installed by authorized personnel;
- m) Not engaging in any use of Town technology resources that violates federal, State, local laws, Town policy;
- n) Reporting any known or suspected Cybersecurity incident to their manager/supervisor, and
- o) Compliance with Mobile Computing section if using a mobile device to work on or access Town technology resources or data.

2. Department Directors

Department Directors are responsible for:

- a) Enforcing this policy within their Department;
- b) Ensuring all users of Town technology resources and data are made aware of Town Information Technology Use and Security Policies and that compliance is mandatory; and
- c) Ensuring all users receive education regarding their security responsibilities before accessing Town technology resources and data.

17.05 INFORMATION TECHNOLOGY AND SECURITY GOVERNANCE

Security measures for Town technology resources and data must be implemented to provide:

1. Confidentiality - Ensures information is accessible to only those authorized to have access.
2. Authentication - Establishes the identity of the sender and/or receiver of information.
3. Data Integrity - Ensures information is complete, accurate and protected against unauthorized modification.
4. Availability - Ensures information is accessible to authorized users when required.

5. Accountability - Ensures correct use and individual responsibility of Town technology resources and data.
6. Auditing - Ensures the collection of data and processes to provide assurance of the effectiveness of controls.
7. Appropriate Use – Ensures Users conform to Town rules, ordinances, policies, State and federal laws.

17.06 GENERAL USE AND OWNERSHIP

1. Information transmitted by, received from, or stored on Town technology resources are the property of China Grove and as such, are subject to inspection by Town officials.
2. Users should be aware that the data they create or is created on Town technology resources remain the property of China Grove and is not private, unless the data is personal health information covered by HIPAA or other personal information protected by the NC General Statutes or other privacy laws.
3. Town technology resources and data are to be used for conducting business authorized by and related to Town operations. Town data must only be used for authorized purposes and must not be disclosed to anyone not authorized to receive such data.
4. Users should be aware that deleted data and logs may be recovered.
5. Users of Town technology resources and data must sign an acknowledgment of this Policy prior to being granted access.

17.07 TECHNOLOGY RESOURCE AND USER MONITORING

1. The Town reserves the right for business purposes to enter, review and monitor the information on systems, including voice mail, electronic mail and information stored on computer systems or media, without advance notice. This may include investigating theft, unauthorized disclosure of confidential business or proprietary information, personal abuse of the system or monitoring workflow and productivity.
2. At the written request of a Department Director for one of his/her respective users and upon authorization of the Town Manager or his/her designee has the authority to access, without notice, data, pagers, cell phones (and cell phone records), email, voice-mail, and any other employer provided Town technology resources. The Town reserves the right to monitor all usage to ensure proper working order, appropriate use by users, the security of Town data, and to retrieve the contents of any employee communication in these systems. Failure to monitor in any specific situation does not constitute a waiver of the Town's right to monitor.

17.08 NO EXPECTATION OF PRIVACY

1. Users are advised that they have no privacy rights and that there is no reasonable expectation of privacy when using Town technology resources.

17.09 PUBLIC RECORDS COMPLIANCE AND RECORDS RETENTION

1. The North Carolina Public Records Law declares that all records and information, regardless of physical form, made or received by users in connection with the transaction of public business are public records which may be inspected and copied by any person for any reason.

Electronic communications sent and received by users in connection with Town business are, therefore, public records and their retention, disclosure, and disposition will be governed by the Public Records Law and the Municipal Records Retention and Disposition Schedules, as approved by the Department of Cultural Resources.

2. Only use supplied and supported email addresses for official town related business. Users should not use their town assigned email to sign up for personal activities including but not limited to online banking, utilities, shopping, and social media.
3. To ensure compliance with Town or Department records retention policies, original Department data must be stored on the China Grove authorized resource.
4. No record involved in a pending, ongoing or reasonably anticipated audit, legal, or other official action may be destroyed before that audit or action is resolved.

17.10 PERSONAL USE OF TOWN TECHNOLOGY RESOURCES

1. Users may use Town technology resources for personal purposes, but only where such use:
 - a) involves insignificant additional expense to the Town;
 - b) does not interfere in anyway with the operations of the Town; and
 - c) is otherwise permissible under applicable State and Federal laws and regulations.
2. This does not grant to the user or create an inherent right to use Town technology resources, and one should not be inferred.
3. Use of Town technology resources in support of or in connection with a private business with which a user is associated is not considered a personal purpose and is not authorized.
4. The privilege to use Town technology resources for personal purposes may be limited or revoked at any time by an appropriate official (e.g., a supervisor in the user's organizational chain of command).
5. Circumstances that may result in a supervisor's curtailing or halting an users' personal use of Town technology resources include uses that:
 - a) result in a loss of productivity;
 - b) interfere with official duties;
 - c) compromise the operations of the Town;
 - d) exceed insignificant expense to the Town;
 - e) violates Town Policies or State and Federal laws and regulations.

17.11 USER ACCOUNTS AND PASSWORDS

1. Each user is responsible for all actions taken while using their user login, password, and/or access credentials. Therefore, none of these can be shared with anyone else, including other users, at any time. The use of another user's login, passwords, and/or access credentials are also strictly prohibited.
2. Except as provided elsewhere in this policy the examination, modification, copying, or deletion of files or data belonging to other users without their prior consent is prohibited.
3. Town shall maintain a formal process to modify user accounts to accommodate events such as name changes, accounting changes, and permission changes.
4. In the event a device is lost, stolen or compromised, immediately notify your Department Director who shall notify the Town Manager of the incident.

5. Video surveillance equipment in and around town owned property is for business related matters and for customer and employee protection. No user should have an expectation of privacy when in view of such equipment. Surveillance signs will be posted within camera view range for all video surveillance equipment.

17.12 USE OF SENSITIVE INFORMATION

Sensitive information as defined in this Policy is information classified as either Confidential - Information protected from use and/or disclosure by law, regulation or standard, and for which the highest level of security measures, or Restricted -Information that requires special precautions to protect from unauthorized use, access, or disclosure. To protect Sensitive information against loss, unauthorized use, access, or disclosure the following must be adhered to:

1. Sensitive information must only be used or disclosed as permitted by law and/or policy.
2. Sensitive information that is not controlled by law or policy can only be disclosed with express consent of the Department Director.
3. Copies of Sensitive information must not be made except as required in the performance of assigned duties.
4. Sensitive information must be kept out of plain sight and must not be displayed in any form when it is not being used.

17.13 USE OF AUTHORIZED SOFTWARE

All software installation and use must conform to licensing restrictions. These products include those that are not appropriately licensed for use by the Town or those that patent or other intellectual property, or similar laws or regulations, including, but not limited to, the installation or distribution of “pirated” or other software is prohibited.

1. Only software that has been installed by the authorized personnel may be used.
2. Software purchased by the Department must not be loaded on a personally owned device, unless specifically authorized by the Department Director and the software licensing agreement.

17.14 APPROPRIATE USE

1. At all times when an employee is using Town technology resources and data, he or she is representing the Town. Use the same good judgment in all resource use that you would use in written correspondence or in determining appropriate conduct.
2. While in the performance of work-related functions, while on the job, or while using publicly owned or publicly provided Town technology resources, users are expected to use them responsibly and professionally. They shall make no intentional use of these resources in an illegal, malicious, inappropriate or obscene manner.
3. When sending or forwarding electronic communications, either internally or externally, all users shall identify themselves clearly and accurately. Anonymous or pseudonymous posting is expressly forbidden.
4. Users have a responsibility to make sure that all public information disseminated via the Internet is accurate. Users shall provide, in association with such information, its source and the date at which it was current and an electronic mail address or telephone number allowing

the recipient to contact the staff responsible for making the information in its current form.

17.15 PORNOGRAPHY ON GOVERNMENT NETWORKS AND DEVICES

The purpose of this policy is to provide guidance for a new law, effective October 1, 2024, that prohibits local governments, state agencies, the judicial branch, and the legislative branch from allowing pornography to be viewed on their networks or devices. The law, found at Section 7 of S.L. 2024-26 establishes a deadline for government employees and officials to delete any pornography from their government devices, creates reporting requirements for unauthorized viewing or attempted viewing of pornography, and requires public agencies (including units of local government and public-school units) and the judicial and legislative branches to adopt policies governing the use of their networks and devices. It also contains some important exceptions for employees and officials who might need to view pornography (as that term is defined by this new law) as part of their official duties.

1. Policy

G.S. 143-805(b) mandates that public agencies, the judicial branch, and the legislative branch “shall not permit employees, elected officials, or appointees to view pornography on devices owned, leased, maintained, or otherwise controlled by a public agency, the judicial branch, or the legislative branch, respectively. Public agencies (which include public schools, community colleges, and institutions in the UNC System) are also prohibited from permitting students to view pornography on a device owned, leased, maintained, or otherwise controlled by a public agency (i.e., the school the student attends). A cell phone, desktop or laptop computer, or other electronic equipment capable of connecting to a network constitutes a “device” for purposes of this law. Under G.S. 143-805, all public agencies, the judicial branch, and the legislative branch “shall not permit” their employees to view pornography on their respective networks. Even if an employee brings their own personal cell phone or laptop to work, the Town is required to prohibit that employee from viewing pornography via the Town’s “network” (which includes internet access, per G.S. 143-805(g)(3)). There is an important distinction in how these two (2) prohibitions apply. Public agencies, the judicial branch, and the legislative branch are prohibited from permitting employees, elected officials, appointees, or students to view pornography on devices owned, leased, maintained, or otherwise controlled by the agency or branch. G.S. 143-805(b). But as for viewing pornography via their networks, the prohibition extends no further than the agency or branch’s employees.

2. Exceptions to the Prohibitions

- Investigating or prosecuting crimes, offering or participating in law enforcement training, or performing actions related to other law enforcement purposes;
- Identifying potential security or cybersecurity threats;
- Protecting human life;
- Establishing, testing, and maintain firewalls, protocols, and otherwise implementing G.S. 143-805;
- Participating in judicial or quasi-judicial proceedings;

- Conducting or participating in an externally funded research project at one of the constituent institutions of the University of North Carolina; or
- Researching issues related to the drafting or analysis of state laws as necessary to fulfill the requirements of the employee's official duties.

Public officials and employees who need to access or view material that constitutes "pornography" under the new law as part of their official duties will likely want to confer with the leaders or govern bodies of the public agencies to ensure that their work falls within the exceptions in the G.S. 143-805(d) and that such exceptions are accurately reflected in these new policies.

3. Disciplinary Action

Employees shall not intentionally access internet sites containing any sexually explicit materials or inappropriate material to include pornography on any device owned, leased, maintained, or otherwise controlled by the Town of China Grove. Employee's personal cell phone, desktop or laptop computer, or other electronic equipment capable of connecting to the Town of China Grove's network, is subject to all other provisions within this policy. In the Town of China Grove's Personnel Policy, Section III, 7.0 Discipline and Dismissal, 7.02.02 Personal Conduct, an employee may be placed on disciplinary suspension, demoted, or dismissed for unsatisfactory job performance for careless, negligent, or improper use of Town property or equipment and/or detrimental personal conduct for willful misuse or gross negligence in the handling of town funds or personal use of equipment or supplies. All cases of disciplinary suspension, demotion, or dismissal must be approved by the Town Manager prior to giving final notice to the employee.

4. Monitor Compliance

Town of China Grove shall be required under G.S. 143-805(f) to submit an annual report to the State Chief Information Officer, in the format required, no later than August 1st, starting in 2025. By October 1st of each year, starting in 2025, the State Chief Information Officer must report on the information compiled from those reports to the Joint Legislative Oversight Committee on Information Technology.

17.16 MOBILE COMPUTING

This section establishes requirements for the use of mobile devices (both personally owned, and Town provided) to work on or access Department resources and data.

1. Personal Owned Devices

Personal owned devices include, but are not limited to, smartphones, laptops, notebooks, tablets (e.g. iPads, Android). This does not include any such devices for which Town provided funds were used to purchase the device in whole or in part.

- a) The Expectation of Privacy: China Grove will respect the privacy of a user's voluntary use of a personal owned device to access Town technology resources. Users cannot be required and/or can refuse to use their personal owned devices to work on or access Department resources.
- b) China Grove will only request access to the personal owned device and password in order to implement security controls; to respond to litigation hold (aka e-discovery) requests arising out of administrative, civil, or criminal directives, Public Records Requests, and subpoenas; or as otherwise required or permitted by applicable State or

federal laws. Such access will be performed by an authorized staff member or designee using a legitimate software process.

- c) Users should be aware that the Department Director retains ownership of Department data created or stored on their personally owned device. Users should also be aware that they can view but not store and/or download confidential or restricted data when technically feasible on their personally owned device.
- d) Users are responsible for backing up their personal data, settings, media, and applications on their personally owned device.
- e) Users should be aware that some personally owned devices may require the purchase of a software application and corresponding software license and/or subscription, to allow the device to comply with Town and/or Department policy and/or standards, and that they may be responsible for all costs of required software applications.
- f) Users are responsible for maintaining their personally owned device with the manufacturer's security and operating system updates. Access may be denied to Town data if devices do not meet minimum patch levels.
- g) Users should use the built-in encryption feature on their personally owned device when available.
- h) Users should remove Department data from their personally owned device, prior to removing access to Town technology resources or data, leaving town employment, or disposing of their personally owned device.
- i) Users should be aware that it is their responsibility to immediately report a lost or stolen personally owned device that was used to access Town technology resources to their manager/supervisor. Users should be aware that if their personally owned device is lost or stolen, their personally owned device will attempt to be remotely wiped of all Town data.
- j) Users should be aware that it is their responsibility to setup their individual cellular plan with their provider and to pay all or a portion of the charges incurred, in accordance with applicable law. Any service or billing issues with the cellular or data provider may be the user's sole responsibility and obligation.
- k) Physical Protection: Unattended mobile devices must be physically stored in a safe and secured manner.

2. Town Owned Devices

- a) The Department Director retains the right of ownership to all data created or stored on mobile devices in support of Town business.
- b) Use of a mobile device to work on or access Town technology resources and data must be first approved by the User's supervisor/manager based on its benefit to Department operations.
- c) Physical Protection: Unattended mobile devices must be physically stored in a safe and secured manner.
- d) Users of mobile devices accessing or storing Town data must comply with all applicable local, State and federal laws related to the use of mobile devices.
- e) Data Security Measures: All users of mobile devices must employ security measures in accordance with Town IT standards.
- f) Disposition: Departments must ensure that prior to reuse, recycle, or disposal of any mobile device, that Town data is removed. Any mobile device assigned to an employee no longer employed by the town that was used to access or store Town data must be

wiped of all data. Loss or Theft: The loss or theft of any mobile device used to access, or store Department data must be reported as soon as possible to the User's manager/supervisor.

18.0 SOCIAL MEDIA

18.01 ROLES AND RESPONSIBILITIES

1. Each Department Director is responsible for managing the official Town social media accounts.
2. Departments are responsible for creating and moderating their own social media accounts. A social media moderator (moderator) is defined as any employee or agent of a China Grove department who is assigned to post, share, or monitor content through the department's social media account(s).

18.02 ACCEPTABLE USE

All use of social media networking sites by Town employees and persons communicating as an agent of China Grove will comply with applicable State, federal and local laws, regulations and Town policies. This includes adherence to established laws and policies regarding copyright, records retention, North Carolina's public records law, First Amendment, privacy laws, and China Grove acceptable use and information sensitivity and security policies. All social media is governed by these policies laws and policies, as well as the policies outlined in this document.

18.03 CHINA GROVE BRANDING

Social media account profiles will identify the account as representing China Grove and will make clear which agency or department the account supports. Account profiles may use the Town logo or department branding image as the profile image. The profile image will properly represent the department and be easily recognizable.

18.04 PUBLIC RULES AND DISCLAIMER

All China Grove social media accounts must provide a link to our Public Rules & Disclaimer which states:

1. Representatives of China Grove Government communicate via this site. Consequently, any communication via this site (whether by a government employee or the general public) is subject to the North Carolina Public Records Law and may be subject to monitoring and disclosure to third parties.
2. We value your comments and questions and encourage you to utilize our online Service Request Form through the Town's website. Feedback that includes citizen complaints or comments must be maintained based on the General Records Retention and Disposal Schedule; Standard 1, Item 17 specifies a one-year retention schedule for records of this nature.
3. This page is not intending to create a public forum and China Grove reserves the right to remove comments entirely if they violate our decency policies or are outside of the topics or information provided within this page. We will not remove or censor comments because they are critical of a department, town officials, or any other aspect of town government or because a moderator personally disagrees with them. However, moderators are allowed to delete inappropriate comments if they are vulgar, threatening, defamatory, or harassing. Further,

China Grove also reserves the right to delete comments that contain the following:

- a) Spam, advertising or links to other sites
- b) The promotion of any illegal activity
- c) Promotions for any particular services, products, or political organizations
- d) Copyrighted or trademarked material
- e) Personal identifiable information such as an address, phone number, social security number, or other sensitive information.

18.05 PUBLIC RECORDS: PUBLIC COMMENTS AND RECORD RETENTION

1. Like email, communication via government-related social networking sites is a public record. This means that both the posts of the employee administrator and any feedback by other employees or nonemployees, including the public, become part of the public record if they are posted on the town's social media page(s).
2. Moderators who receive messages through the private message service offered by some social media sites, including direct messages, should encourage users to contact the appropriate department or employee using a Town-issued email address or website link. Any private messages received through a social media account should be treated the same as constituent emails and, therefore, as public records. As best practice, moderators or authorized staff members should reply using their county government email account whenever possible.
3. Information posted on any of the Town's social media accounts, regardless of who posted it, may be considered a record of public information as defined under the North Carolina's public records law. There is not, neither should there be, any expectation of privacy with any social media postings on the Town's site(s).
4. All employees are required to assume responsibility for public records and comply with the retention period under the NC General Statutes.
5. It is especially important NOT to remove or censor comments because they are critical of a department, town officials, or any other aspect of town government or because a moderator personally disagrees with them. However, moderators are allowed to delete inappropriate comments if they are vulgar, threatening, defamatory, or harassing. Further, China Grove also reserves the right to delete comments that contain the following:
 - a) Spam, advertising or links to other sites
 - b) Contains personally identifiable information
 - c) The promotion of any illegal activity
 - d) Promotions for any particular services, products, or political organizations

18.06 OFFICIAL CHINA GROVE SOCIAL MEDIA ACCOUNTS

Officially, China Grove has six social media profiles, which are managed by each Department Director:

Twitter - <https://twitter.com/chinagrovevents>

Instagram - <https://www.instagram.com/townofchinagrovenc/>

Facebook (Town) - <https://www.facebook.com/townofchinagrovenc/>

Facebook (Fire Department) - https://www.facebook.com/China-Grove-Fire-135241073217643/?ref=py_c

Facebook (Police Department) - <https://www.facebook.com/chinagrovepd>

END OF SECTION III

SECTION IV

EMPLOYEE BENEFITS AND SERVICES

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SECTION IV

1.0 VACATION

Vacation with pay is granted to full time employees. Part time employees are not eligible for vacation benefits.

Full time benefited employees accrue vacation on a Bi-weekly basis determined by the length of Town service. Vacation leave does not accrue while an employee is on leave without pay (LWOP) for any reason.

Length of Service	Average Days	Average Hours per Pay Period
Less than 4 years	10	3.07
5 to 9 years	12	3.69
10 but less than 14 years	15	4.62
15 but less than 19 years	18	5.54
20 or more years	21	6.46

Hours calculated in above chart are rounded. The computer is programmed to accommodate any rounding errors in its computation.

Scheduling and approval of vacation is at the discretion of the Supervisor or Department Director in accordance with departmental operations, staff workloads, and the availability of staff at certain times of the year. First and second choices for leave requests are highly suggested. When conflict occurs within a department, consideration may be given to the earliest request submitted. The Department Director or Supervisor has the right to deny leave requests in order to maintain adequate staffing, departmental operations, and continuity of Town services and is responsible for acknowledging, approving, or disapproving the request at the earliest convenient date prior to the beginning of the vacation time.

Provisions of the vacation policy include the following:

- a) Pay in lieu of vacation will not be allowed.
- b) Vacation credits may not be taken in units of less than fifteen (15) minutes.
- c) Upon written request, an employee may elect to use earned vacation days for illness.
- d) If an employee is on vacation and becomes injured or ill, that person may exercise the option to use sick time; the Department Director may request medical verification.
- e) An employee going on an approved leave of absence may request to use vacation leave. However, all accrued extra holiday hours and accrued non-exempt comp time must be utilized before accrued vacation hours.

- f) Employees who leave the Town's employment will be paid for accumulated vacation days or the Town will transfer any unused vacation leave in lieu of paying it out at the request of the terminating employee.
- g) A paid holiday occurring during the vacation of an employee will be paid and recorded as a holiday.
- h) Employees transferring between departments do not have their accrual rates or accrued vacation time affected.
- i) Eight (8) hours of vacation shall be credited to the accumulated benefits of a full-time employee who does not use sick leave and who is not absent without leave for a period of approximately twenty-six consecutive work weeks depending upon when the pay period ends.
- j) In computing wages, vacation time will be computed at regular pay and will be excluded from calculating overtime. Vacation leave may only be used to receive pay up to the employee's regularly scheduled work week and cannot be used to increase the employee's pay.
- k) Department Directors, with the approval of the Town Manager, may advance vacation leave (to vested employees having five years of service with the Town) not to exceed the amount an employee can accumulate during the current calendar year.
- l) After the last payroll of the calendar year is processed in December, a Town employee with accrued annual vacation leave in excess of thirty (30) days or two hundred forty (240) hours will have those excess vacation hours converted to sick leave. This converted sick leave may be counted toward creditable service at retirement.
- m) The Town will accept a transfer of unused vacation leave (80 hours maximum) from another local or state government employer as long as the unused balance is no more than 3 years old. A letter must be received from the previous employer stating the amount of sick and vacation leave to be transferred.
- n) The Town will transfer any unused vacation leave in lieu of paying it out at the request of the terminating employee. Unless requested by the employee, the Town pays out unused vacation leave in the employee's final paycheck.
- o) Upon the death of a full time employee, compensation for accumulated vacation leave shall be paid to his/her estate.

2.0 SICK LEAVE

Sick leave with pay is not a right, which an employee may demand but a privilege granted by the Town Council for the benefit of the employee when sick. This benefit can be used during periods of personal illness, bodily injury, quarantine, physical or dental examinations or treatment, disability resulting from pregnancy, or exposure to a contagious disease when continued work might jeopardize the health of others.

- a) Full time benefited employees accrue 3.69 hours per pay period. Employees will accrue 12 days per year based upon 2080 hours. Sick leave does not accrue while an employee is on leave without pay (LWOP) for any reason, including worker's compensation.
- b) There is not a maximum accrual for the sick leave benefit.
- c) Department Directors, with the approval of the Town Manager, may advance sick leave (to vested employees having five years of service with the Town) not to exceed the amount an employee can accumulate during the current calendar year.
- d) To be paid for sick leave, employees must notify their supervisors of illness no later than one (1) hour after they are scheduled to begin work, or as directed by the Department Director. If employees cannot call, they should have someone else call for them so that arrangements can be made to cover their jobs. However, the responsibility of calling lies with the employee.
- e) If employees are sick for several days, they are responsible for keeping their supervisor informed on a daily basis unless other arrangements have been made with the supervisors. They should inform their supervisors of the approximate date they expect to return to work. Department Directors may require a note from the Doctor for extended illnesses or in cases where the employee is suspected of abusing leave for each absence of three (3) or more work days.
- f) Regularly scheduled days off cannot be used as paid sick leave.
- g) Sick leave may not be used to augment workers' compensation payments, except for the first seven calendar days an employee is out due to a work-related injury or illness.
- h) Attendance records are reviewed periodically to determine the extent of absences due to illness. Employees with excessive absences will be interviewed by the individual's Department Director, who may request a doctor's statement in order to verify the employee's state of health. A person whose health prevents that individual from fulfilling the requirements of the job may be placed on leave of absence until the individual's health improves or may be transferred to a job that person can perform. Light/modified duty is only available for employees on workers' compensation who have suffered a work-related injury.
- i) Employees should report to their supervisor if they become ill on the job. If it is necessary for employees to go home, they must advise their supervisor or Department Director before leaving. Failure to do so may result in leave without pay instead of deductions from accrued sick leave.
- j) Sick leave may also be used for:
 - 1) Medical appointments
 - 2) Illness of a member of the immediate family. The family is defined as a spouse, parents, children, mother-in-law, and father-in-law including step relationships. Also included are

individuals who stood *in loco parentis* to the employee when the employee was a child and to a child in which the employee stands *in loco parentis*. Utilization of this type of leave may require verification from a doctor that the employee's presence is needed to care for the family member.

- 3) Death in the immediate family, maximum of three (3) days. For this purpose, immediate family is defined as spouse, parents, children, brother, sister, grandparents, grandchildren, individuals who stood *in loco parentis* to the employee when the employee was a child and to children for whom the employee stands *in loco parentis*. Also included are the step, half and in-law relationships. A maximum of three (3) days may be used for this purpose.
- k) In computing wages, sick leave time will be computed at regular pay and will be excluded from calculating overtime. Sick leave may only be used to receive pay up to the employee's regularly scheduled work week and cannot be used to increase the employee's pay.
- l) At the time of an employee's separation, any sick leave owed to the Town shall be deducted from the employee's final compensation.
- m) One month of retirement credit is allowed for each twenty (20) days accrued in an employee's sick leave account at the time of retirement to employees who are members of the North Carolina Local Governmental Employee's Retirement System or Law Enforcement Benefits and Retirement Fund.
- n) The Town will accept a transfer of unused sick leave from another local or state government employer as long as the unused balance is not more than 3 years old. We will accept all unused sick leave, which was not paid to the employee. A letter must be received from the previous employer stating the amount of sick leave to be transferred.
- o) The Town will transfer any unused sick leave to another employer who will accept the transfer, as requested by the employee terminating employment, within 3 years of separation from employment. Unused sick leave will not be paid to the employee upon termination of employment.

3.0 HOLIDAYS

The following days and such other days as the Town Council may designate are holidays with pay for full time employees:

New Year's Day	Memorial Day	Labor Day
Martin Luther King, Jr.'s Birthday	Independence Day	Thanksgiving (2 days)
Good Friday	Veteran's Day	Christmas (3 days)

When a holiday falls on Saturday, Friday will be taken as the normal holiday. When a holiday falls on Sunday, the following Monday will be taken as the normal holiday. All Town employees will receive the same number of approved holidays which totals 96 hours.

Un-benefited employees are not eligible for paid holidays.

The policy that governs the use of holiday time is as follows:

- a) There is no waiting period for holidays.
- b) When staffing permits, holidays may be taken on the day of the holiday. Employees who are required to work on the Town holiday to ensure delivery of services will receive another day off (up to eight hours) in the place of that day and additional pay equal to one-half of their regular hourly wage. Holidays not taken will accrue in an Extra Holiday Bank. At the end of the calendar year, holiday hours over 240 will be lost. To avoid this from occurring, accrued holiday hours must be used before accrued vacation hours.
- c) Holidays must be taken on or within a period of time agreeable to the Department Director and employee.
- d) A holiday occurring during the vacation of an employee will be paid and recorded as a holiday.
- e) In computing wages, holiday pay will be computed at regular pay, recorded as a holiday, and excluded from calculating overtime.
- f) Unauthorized absence on a holiday will not be paid.
- g) In order to be paid for a holiday, the employee must work and/or use paid leave for each full workday up to the holiday and at least one workday or portion thereof after the holiday.
- h) If employees have an excused absence for illness (paid leave) during a period in which the holiday falls, they will receive the holiday pay.

4.0 FUNERAL LEAVE

When death occurs to a member of an employee's immediate family, the employee shall be granted necessary time off for the purpose of attending the funeral. The employee may be granted up to a maximum of three (3) days leave. No charge against sick or vacation leave will be made for this paid leave. The Town Manager is responsible for approval of any request for funeral leave.

Funeral leave will be granted for:

- 1) Members of an employee's immediate family; limited to the employee's spouse, children, parents, brothers, sisters, grandparents, grandchildren, individuals who stood *in loco parentis* to the employee when the employee was a child and a child in which the employee stands *in loco parentis*. Also included are the step, half, and in-law relationships.
- 2) The Department Director or supervisor may require reasonable proof of the employee's eligibility, including a copy of the obituary notice and/or proof of his/her relationship to the deceased.

- 3) Funeral leave will not be granted for any day that the employee is not scheduled to work.
- 4) Whenever feasible, the employee should give prior notification to his/her supervisor in order to allow for necessary adjustment of work schedules to cover for his/her absence.
- 5) With the approval of the Town Manager, additional sick time may be granted for a death in the immediate family.

5.0 MILITARY LEAVE

Full-time and part-time regular employees will be granted leave to fulfill military duties in accordance with the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA). Leave with pay shall be granted to members of reserve components of the U.S. Armed Forces and the National Guard for certain periods of active duty for training. Leave with pay, when granted to full-time employees, will be for 90 working hours per calendar year. Regular part-time employees leave will be prorated based on their weekly hours. If additional time is required for Reserve or National Guard duty, the employee shall be eligible to take accumulated vacation or be placed on a leave without pay (LWOP) status. Employees on military leave do not have to take accumulated leave credits before being placed on LWOP. While taking military leave without pay, the employee's leave credits and other benefits shall continue to accrue as if the employee physically remained with the Town during this period. When employees are activated in the event of a national emergency, they may request the utilization of their accrued vacation and sick leave credits. The intent of this policy is to ensure that the employee's family is compensated as close as possible to their normal standard of living.

The employee may elect to continue family health insurance coverage while on military LWOP by paying the employee's share of the premium for a period of twenty-four months. Even though the military provides health coverage to the employee during the period of active duty, the employee will continue to be on the Town's plan in order to provide coverage for his/her family. No benefits are available for the employee under the Town's health plan due to illness or injury resulting from acts of war or conditions connected with the military. Therefore, claims can only be submitted on covered family members. The premium to continue family coverage will be the same as charged to other employees for family coverage. When the employee returns to work from active duty, claims incurred after his/her return to work may be submitted on the Town's health plan with no pre-existing conditions.

Employees who leave Town employment for active duty military service may be reinstated to the same position or one of like status in accordance with the time limits set by USERRA. In order to qualify for reinstatement, the former employee must be discharged or separated under honorable conditions. Former Town employees who seek reinstatement after active duty military service will be subject to any disciplinary actions that were pending prior to their departure for military service.

Employees who are called for "active duty" have re-employment rights if they:

- Give advance notice either verbally or in writing;
- Are absent for five years or less;

- Separate from military service under honorable conditions; and
- Report for re-employment within certain time periods designated under USERRA.

The Town will re-employ employees meeting the above criteria in the same position and with the same seniority and other rights and benefits that they had on their last day of work and any additional rights or benefits to which they would have been entitled had they not been on military leave.

To be covered by the re-employment rights under USERRA, the employee must report back to work following their return from military service as follows:

- If away 30 days or less, they must report to work on the next workday following completion of service and arrival home.
- If away more than 30 days but less than 181 days, they must report no longer than 14 days after completing service.
- If away greater than 180 days, they must report within 90 days of service completion.
- Employees who are hospitalized or recovering from an injury or illness that occurred during military service have up to two years or longer (in special circumstances) to return to work.

In addition, USERRA gives employees who have served in the armed forces limited protection from termination for a brief period following their return to work. These stipulations include:

- If the employee was away for more than 180 days, they cannot be terminated from employment for a period of one year following their return except for cause.
- If the employee was away for more than 30 days but less than 180 days, they cannot be terminated for 180 days after their return except for cause.

Town employees are required to show proof of military status before leave is granted by providing their original orders to the Town Clerk for copying and inclusion in their personnel files.

6.0 UNIFORMS/CLOTHING ALLOWANCE

Certain Town employees will be provided with uniforms or a clothing allowance. Uniform distribution is determined annually at budget time by the Town Council. Questions concerning uniform distribution should be discussed with the appropriate Department Director.

7.0 HEALTH INSURANCE

The Town provides you with major medical and prescription coverage through a health plan, currently North Carolina State Health Plan BCBS. The Town offers two Preferred Provider Organization (PPO) plans. Both plans cover the same benefits and medical services; however, the member cost share varies by each plan. If an employee is interested in additional coverage (Employee-Spouse, Parent-Children, Family)

this will be paid for by the employee through payroll deduction. These deductions are pre-taxed meaning they are exempt from FICA, Federal and State taxes.

Current premium rates are on file with the Town Clerk.

8.0 DENTAL INSURANCE

The Town participates in a group dental insurance plan to assist employees in the payment of expenses resulting from dental care. The Town pays the full cost of the premium on individual coverage for full time employees. Employees may purchase coverage for their dependents and are responsible for paying the full cost of the additional coverage. Current premium rates are on file with the Town Clerk.

9.0 VISION INSURANCE

The Town participates in a group vision insurance plan to assist employees in the payment of expenses resulting from vision care. The Town pays the full cost of the premium on individual coverage for full time employees. Employees may purchase coverage for their dependents and are responsible for paying the full cost of the additional coverage. Current premium rates are on file with the Town Clerk.

10.0 LIFE INSURANCE

The Town provides full time employees with a life insurance policy. Employees may purchase coverage for their dependents and are responsible for paying the full cost of the additional coverage.

10.01 LIFE INSURANCE FOR EMPLOYEES

Death Benefit - The amount of life insurance will be payable to any beneficiary the employee names in the event of that employee's death.

Beneficiary - Employees may name anyone whom they desire as beneficiaries. One may change the beneficiary at any time by completing the proper insurance form, which is kept by the Town Clerk.

10.02 LIFE INSURANCE FOR DEPENDENTS

Definition of Dependent - The term "dependent" means the spouse of any employee and employee's unmarried children (including stepchildren, legally adopted children or foster children) between the ages of fourteen days and nineteen years, or up to age twenty-six (26) if regularly attending school.

Death Benefit - The amount of the insurance provided for each dependent, shown in the life insurance schedule, is payable to the employee in the event of the dependent's death from any cause while insurance is in effect.

10.03 PREMIUM PAYMENTS WHILE ON LEAVE OF ABSENCE

The Town does not contribute to the premium of employees on any type of unpaid leave. The employee may continue the group coverage by paying the individual premium as well as dependent

coverage, if applicable. All payments must be sent to the Finance Director by the first day of the month for which payment is being made.

10.04 RETIREMENT DEATH BENEFIT

After one year of employment, the Town provides a death benefit through the North Carolina Local Government Retirement System. If an employee dies before age 70 while still in active service, their beneficiary will receive a single lump sum payment. The amount is equal to the employee's highest 12 months' salary in a row during the 24 months before the employee's death, but no less than \$25,000 and no more than \$50,000.

11.0 RETIREMENT

Town employees who work a minimum of 1,000 hours per year are required to join the Local Governmental Employees' Retirement System of North Carolina.

Contributions to the retirement program are deducted from paychecks and the Town contributes a set percentage. Contributions earn interest. When employees terminate employment, they may elect to withdraw their contributions. The only way employees can withdraw their retirement is to terminate their position with the Town. When this is done, they will receive a check, which will include all the money deducted from their pay, plus interest if employee is vested. After one year of service, a death benefit provision is also included in the Local Governmental Employees' Retirement System and will pay the employee's beneficiary in the event the employee dies on the job or within one hundred eighty (180) days of that employee's last day of work. Information on the retirement system is available from the Finance Director.

12.0 LAW ENFORCEMENT OFFICERS' SEPARATION ALLOWANCE

The Town provides, to qualified retiring sworn law enforcement officers, a separation allowance equal to eighty-five hundredths percent (0.85%) of the annual base rate of compensation multiplied by the officer's total creditable service. The allowance shall be paid in equal installments on a bi-weekly basis. To qualify for the allowance, the officer must meet the following conditions:

- 1) Have completed 30 or more years of creditable service with the North Carolina Local Governmental Employees' Retirement System, or have attained 55 years of age and completed 5 or more years of creditable service; and
- 2) Not attained 62 years of age; and
- 3) Have completed a minimum of 5 years of continuous service as a law enforcement officer immediately preceding a service retirement. Any break in continuous service required by disability retirement shall not adversely affect an officer's qualification to receive the allowance, provided the officer returns to service within 45 days after the disability benefits cease and is otherwise qualified to receive the allowance.

Creditable service means the service for which credit is allowed under the retirement system, provided that at least fifty percent (50%) of the service is as a law enforcement officer.

Payment to a retired officer shall cease at the first of:

- 1) The death of the officer;
- 2) The last day of the month in which the officer attains 62 years of age; or
- 3) The first day of re-employment by a local government employer in any capacity.

(However, a local government employer may employ retired officers in a public safety position in a capacity not requiring participation in the Local Governmental Employees' Retirement System, and by doing so shall not cause payment to cease to those officers.)

13.0 401-K SUPPLEMENTAL RETIREMENT

Upon successful completion of an initial probationary period, the Town will contribute a percentage of the employee's annual salary (full time) into a state and federal tax sheltered 401-K plan, administered by a company approved by the State of North Carolina. Employees may elect to contribute a portion of their salary, not to exceed a maximum percentage of their annual salary as set by law, through payroll deduction. Upon termination of employment with the Town, the employee may close the 401-K account and withdraw the funds, or the account may be held in suspension. Contributions to the fund may only be made by payroll deduction; therefore, an individual leaving employment with the Town would not be able to continue contributing to the fund.

14.0 WORKERS' COMPENSATION

The Town participates in a Workers' Compensation program at no cost to employees. In cases of certified injuries or illnesses arising out of employment, the Town pays hospital and doctor bills with a weekly cash benefit if employees are disabled. To be certain that employees may qualify for Workers' Compensation, they must report any job-related injuries immediately to their supervisor or Department Director. In turn, the Department Directors shall file all applicable forms with the Town Clerk. The Town Clerk will assist employees and Department Directors in processing claims.

Workers' Compensation payments are not made for the first seven calendar days of disability resulting from injury except as otherwise provided for by law. Compensation payments begin after the employee is out eight consecutive calendar days. Since there is no cash payment during the first seven calendar days of disability resulting from an injury, the Town will permit employees to use accrued benefits such as sick leave, vacation leave, comp time, and extra holiday; however, comp time and extra holiday accruals must be utilized prior to vacation leave. If the injury results in lost time of more than twenty-one (21) days, the employee will be paid for the first seven days at a rate established under state law. Employees will not be permitted to draw an income in excess of his or her regular salary except for the first seven days of disability. In other words, employees will not be permitted to use sick leave, vacation leave, or other accrued leave when receiving workers' compensation. While out on workers' compensation, vacation and sick leave do not accrue.

Employees who are out of work under the provisions of Short Term Disability, Maternity Leave, Workers' Compensation or Leave Without Pay for sick leave purposes are prohibited from engaging in any outside employment during the period of leave.

If total disability exists, employees may have additional protection through Social Security and with vested interest in the Local Government Employees' Retirement System of North Carolina.

14.01 LIGHT/MODIFIED DUTY RETURN-TO-WORK

The Town has established a light/modified duty return-to-work policy. Its purpose is to return workers to employment at the earliest date following an on-the-job injury or illness. This policy applies to all employees and will be followed whenever appropriate.

The Town defines “light/modified duty” work as temporary modified work assignments within the worker’s physical abilities, knowledge, and skills. Light-duty/modified assignments under this policy are specially created temporary job assignments for employees. Such light-duty/modified assignments are temporary assignments only; they are not vacant or permanent positions under any circumstances.

14.01.01 ELIGIBILITY FOR “LIGHT/MODIFIED DUTY”

An employee is eligible for light/modified duty status only when the employee suffers from a work-related injury which restricts the employee’s ability to perform the essential functions of his or her job. The employee must provide certification from the approved treating physician. The treating physician’s medical note must state the estimated timeline for light-duty/modified restrictions and what the limitations are for the employee. Light/modified duty status will be reviewed every thirty (30) days by medical certification received from the treating Workers Compensation physician.

If at any point an employee is medically determined to have sustained permanent restrictions, the creation of a temporary light/modified duty assignment will not be considered. In that event, the Town will review the employee’s situation separately to determine the appropriate steps to be taken, if any, under the Americans with Disabilities Act (ADA).

14.01.02 RETURN FROM LIGHT/MODIFIED DUTY STATUS TO REGULAR DUTY

An employee will be returned to regular duty as soon as the employee’s conditions permit. The employee must provide a physician’s certification that he or she can return to work without restrictions before an employee may be transferred back to regular duty. Transfer back to regular duty must be approved by the Town Manager in consultation with the Department Director. Once approved, the employee must immediately return to regular duty. Failure to comply may lead to disciplinary action up to and including dismissal.

15.0 SOCIAL SECURITY

In accordance with the Social Security Act, the Town deducts the appropriate percentage on every dollar earned up to a maximum income designated by law. For every social security tax dollar that the government requires the Town to take out of employees' pay, the Town must also pay an equal amount.

Benefits provided by social security include retirement income, disability income, survivor's benefits, and the Medicare Program. More information about social security benefits may be obtained through the local Social Security Administration Office.

16.0 PERSONAL LEAVE

As required by North Carolina General Statute 95-28.3 referred to as Leave for Parental Involvement in Schools Law, benefited employees will be afforded an opportunity to visit their children and/or grandchildren in school and to participate in their school activities. A total of four hours of leave per fiscal year (July – June) will be granted. Department Directors will authorize leave and ensure that the number of employees away from work at one time will not interrupt the services rendered to the public. The leave shall be at a mutually agreed upon time between the Department Director and the employee. If possible, the employee should submit a written request at least 48 hours prior to the time of leave.

Benefited employees who do not have school-aged children or grandchildren may use this leave for other personal needs or events.

17.0 LONGEVITY PAY

All employees covered by the pay plan, who meet the criteria below, shall be paid a longevity bonus with the last payroll in November. Longevity pay is subject to regular federal and state deductions. Prorated payments because of termination for any reason are not authorized. The bonus will be based on years of service with the Town of China Grove. The Town Manager is responsible for administration of this benefit. The bonus will be based on the employee's total annual salary multiplied by the following rates:

YEARS OF SERVICE	BONUS AMOUNT
2 - 4	1%
5 - 9	2%
10 - 14	3%
15 - 19	4%
20 +	5%

18.0 SERVICE AWARDS

To express its appreciation to its valued employees, the Town developed a policy of recognizing continued dedicated service through a program of service awards. The Service Awards Program recognizes employees' total Town service in increments of five years through retirement. The value of the award increases in proportion to years of service.

To receive an award, individuals must be eligible and employed as of June 30th with the exception of retirees. Retirees will receive their service award post-retirement if they met the eligibility requirements as of June 30th of the year in which they retired. Employees who leave on good standing with the Town before

December 31st will receive a service award in accordance with years served. An employee who has been dismissed from employment will not receive a service award.

YEARS OF SERVICE	DATE	AMOUNT	SERVICE AWARD
5 Years	December 31 st	\$50.00	Visa Gift card
10 Years	December 31 st	\$100.00	Visa Gift card
15 Years	December 31 st	\$150.00	Visa Gift card
20 Years	December 31 st	\$250.00	Visa Gift card
25 Years	December 31 st	\$500.00	Visa Gift card
30 Years	December 31 st	\$750.00	Visa Gift card
Retirement	Appropriate gift by Town Council		

19.0 EMPLOYEE ASSISTANCE PROGRAM

Employees requiring assistance concerning marital issues, financial issues, child or elder issues, problems with co-workers, balancing work and family responsibilities, alcohol or drug abuse, or dealing with the everyday stresses in their life may apply to the Town for assistance through the EAP. Initial assessments with EAP counselors are a free service provided by the Town. Sometimes, additional counseling or treatment may be required. The EAP counselor can help determine if extended services are needed or whether a referral is necessary.

20.0 WELLNESS PROGRAM

Wellness is important in the performance of job functions and enhances quality of life. To promote healthy lifestyles and encourage employees to participate in moderate physical activities, fitness memberships are available at the Young Men's Christian Association (YMCA) through payroll deduction at a discounted rate of 20%. This discount applies to all membership categories and is available only through the YMCA of Rowan County. The joining fee of \$25.00 is waved.

21.0 VOLUNTARY SHARED LEAVE PROGRAM

The purpose of this policy is to provide employees an opportunity to assist fellow employees affected by a catastrophic illness that requires absences from work for a prolonged period of time. Some prolonged medical conditions cause employees to exhaust all available leave and as a result, be placed on leave without pay status. It is recognized that employees who are faced with this situation could be without income at a critical time in their work life. The Voluntary Shared Leave Program allows fellow employees to donate some of their earned annual leave to help provide assistance to employees in need.

21.01 DEFINITIONS

Recipient: The employee who receives the donated leave.

Donor: Employee who donates leave.

Prolonged Medical Condition: A medical condition that requires the employee's absence from work for a minimum of twenty (20) consecutive workdays. Only the recipient's medical condition qualifies the employee to participate, not spouse, children, or other relatives.

Catastrophic Illness: A life threatening medical condition.

21.02 QUALIFIED LEAVE

An employee may donate sick leave to an employee who has requested and been approved to receive shared leave because of the employee's own medical condition that will require absence from work for a prolonged period of time. Sick leave may be transferred between two employees who are husband and wife on a specific designation basis. The minimum donation will be four (4) hours of vacation and a maximum donation of up to an amount that would not drop the donor's vacation balance below eighty (80) hours or 1,040 total hours by all donors.

21.03 ELIGIBILITY

In order to receive voluntary shared leave, an employee must meet the following standards:

- Must be a regular full-time employee with two (2) years of consecutive service with the Town,
- Have a catastrophic illness that requires the employee's absence for at least twenty (20) consecutive workdays,
- Complete a Request to receive voluntary shared leave and be approved,
- Produce medical evidence from the treating physician documenting the need for leave and the period of absence,
- All applicable leave balances must be near exhaustion including vacation, sick, personal, extra holiday and comp time,
- Must have received a satisfactory employee performance appraisal at his/her last evaluation and performance has continued to be satisfactory,
- Must have responsibly managed earned leave during past years of service.

There is no guarantee that one who qualifies for shared leave will receive any leave.

Employees on worker's compensation or short/long-term disability are not eligible. Pregnancy, elective surgery, and short term or sporadic conditions or illnesses do not qualify as a covered medical condition.

21.04 APPLICATION PROCEDURE

A prospective recipient must request leave through the "Voluntary Shared Leave Program" in writing by completing the Voluntary Shared Leave Request with the physician's medical

certification of the need for leave and the period of absence. The employee may sign a release in order to inform the other departments and employees of the need for leave. The request for leave must be reviewed and approved by the Department Director, and Town Manager. The prospective recipient must have responsibly managed his/her earned leave during the past two years and must have received a satisfactory performance. An employee may not file a grievance or an employee appeal if his/her request to receive donations is denied.

Once a Voluntary Shared Leave Request has been approved, the Town Clerk will advise Town employees about the request, releasing only the information authorized by the employee including name and medical condition if approved by the employee.

The maximum amount of leave a recipient may receive is 12 weeks based on the employee's normal workweek. Extension can be made to a maximum of 16 weeks with adequate justification and approval of the Town Manager. Transfer of leave hours will be on a pro-rated basis according to the pay rate of the donor and recipient. Leave hours shall be credited to the recipient's sick leave balance as needed and deducted from the donor's leave account immediately.

The donor must complete a Shared Leave Donation Form and submit it to the Town Clerk. All donations are confidential.

An employee may begin using voluntary shared leave after all available leave has been exhausted. While using voluntary shared leave, the employee continues to earn leave, holidays, and benefits under the Town's health insurance plan.

An employee may not intimidate, threaten, coerce, or attempt to intimidate, threaten or coerce any other employee for the purpose of interfering with any right which such employee may have with respect to donating, receiving, or using leave under this program. Such action shall be grounds for disciplinary action up to and including dismissal on the basis of personal conduct.

Any donated leave is taxable to the recipient. The dollar amount of donated leave taken will be added to the recipient's W-2 as income.

21.05 SHARED LEAVE BANK

A "Shared Leave Bank" is expressly prohibited. Sick leave must be donated on a one-to-one, personal basis.

21.06 UNUSED SICK LEAVE

Any unused sick leave at the expiration of the medical condition, as determined by the Town shall be returned to the donor(s) on a prorate basis and credited to the sick leave account from which it was donated. Fractions of one hour shall not be returned to an individual donor.

22.0 COMMUNICATIONS

Every effort will be made to keep employees informed about Town activities. The Town feels that all employees have a right to know of the events occurring within the Town's environment, which might affect them. To convey these messages, the Town will use the following vehicles of communication: employee flyers, employee letters, e-mail, and the Town's web site.

23.0 LAW ENFORCEMENT CAREER DEVELOPMENT PROGRAM

Realizing the importance of education and training at the China Grove Police Department, the Career Development Program enhances the quality of Law Enforcement in the Town of China Grove. The program rewards employees upon attainment of certain clearly defined professional and performance standards.

The plan improves service to the citizens of China Grove in several ways. The plan attempts to keep current officers employed with the Town by financially rewarding training and experience. These officers can provide a more effective and efficient service to the citizens due to the level of training. The plan will also recruit highly trained officers that already have an experience base and level of training. The plan will focus on quality, and assist our officers to reach a level of training and professionalism that all departments seek.

The plan is both a long-term and short-term plan. Thereafter, officers receive adjustments as their individual education and training level advances. The Program is subject to the available funding by the Town Council.

23.01 ELEMENTS OF THE PROGRAM

The Career Development Program is comprised of four elements. They are:

- a. **Education:** Law Enforcement Officers who obtain or have an Associate Degree will receive a 5% increase in salary. Those who receive or have a Bachelor's Degree will receive a 10% increase in salary.
- b. **Certifications:** Law Enforcement Officers who receive or have Professional Certifications through the North Carolina Department of Justice, Criminal Justice Standards Division will be rewarded as follows:

Intermediate Certificate – 3% increase in salary
Advanced Certificate – 4% increase in salary
- c. **Merit:** The China Grove Police Department employees will participate in the Town of China Grove funded programs such as Merit and COLA incentives in addition to the Career Development Program.
- d. **Experience:** New hire or lateral transfer Law Enforcement Officers who are “certified” shall be awarded 1% per each full-time active year of law enforcement experience. This year shall include full-time status as a Law Enforcement Officer with the Military Police.

At the conclusion of two years of experience, a Police Patrolman I will be eligible for the rank of Police Patrolman II with a salary increase of 5%. Additional promotion opportunities will be available beginning with the rank of Sergeant.

e. Retroactive Awards:

- Education – LEO will be awarded for their education level upon initial approval of program.
- Certifications – LEO will be awarded for their professional certification levels upon initial approval of program.
- Merit – All LEO will qualify after meeting the probationary requirements set forth in this policy.
- Experience – Current LEO will not qualify upon initial approval of this program; however, will after the program has been in place for two years.

24.0 EDUCATION TUITION REIMBURSEMENT PROGRAM

All regular employees who have completed the initial probation may apply for tuition reimbursement for courses taken on their own time, which will improve their skills for their current job or prepare them for promotional opportunities within the town service. The employee must remain an employee a minimum of 90 days following completion of the course(s). Employees may be reimbursed actual expenses per term upon the successful completion of any approved courses. The Town will also provide a stipend of \$300 toward other expenses upon receipts. These other expenses shall include: books, lab fees, and other related class fees. To successfully complete a course, the employee must receive a grade of “C” or better. If no grade is given (pass/fail), the employee must provide a letter from the instructor certifying the successful completion of the course or a certificate received from the institution stating the successful completion of the course. Workshops, conferences and seminars are not covered under this policy.

Any regular employee pursuing a 4-year Degree or advanced education such as Masters or Doctorate Degree shall remain an employee a minimum of two (2) years following completion of degree. If the employee leaves before two (2) years is complete, then they shall reimburse the Town for a prorated share of the cost of the courses.

Each employee requesting tuition assistance will certify the amount and kind of other funds received for educational purposes from federal, state, or other source, i.e., (veteran’s educational benefits, scholarships, stipends, grants). If such funds are received, the Town will pay the difference between the cost of the course(s) and the amount paid by the federal or state programs.

An employee interested in receiving tuition assistance shall first discuss the program with their Department Director and if desired, with the Town Manager. All approvals for this program must be obtained by the employee in advance of class enrollment. All approvals will be made on a case by case basis. The Town Manager will notify the Department Director of approval. Approval depends upon available funding.

Applications may be obtained in the Administration Department. An application should be completed by the employee, approved by the Department Director and delivered to the Town Manager for final approval of the course and school.

Requests for reimbursement(s) must be made within 30 days of course completion. The employee is responsible for getting all documentation (receipts, grades, etc.) to the Department Director. The Department Director will process the information and initiate a check request to the individual via the Finance Department. The employee will pick up any reimbursement from the Finance Director.

Education Tuition Reimbursement is contingent upon availability of funds.

25.0 POLICY STATEMENT

All employee benefits and services are subject to approval by the Town Council annually. Benefits including monetary compensation, Career Development, and the Merit Plan are dependent upon the availability of allocated funds. The Town reserves the right to eliminate, reduce, or otherwise change any employee benefit as approved by the Town Council.

26.0 PERSONAL LIABILITY COVERAGE FOR TOWN EMPLOYEES AND OFFICIALS

The Town expects its employees and officers to perform their duties in an orderly, reasonable and prudent manner, and within the scope and course of their employment.

The Town Council realizes allegations will be made at times that certain employees or officers have failed to perform their duties in such a manner. The Town Manager shall keep the Town Council informed of such contentions.

After determining that an employee or officer has acted in accordance with Town policy, the Town Council shall take one of the following actions:

- 1) Provide the employee or officer with legal counsel;
- 2) Compromise and pay any such claims.

Adoption of this policy shall not be deemed an assumption of liability for payment of claims or judgments in excess of any funds established and budgeted by the Town Council for payment of claims or judgments. This policy shall not be construed to waive the defense of governmental immunity or any other defense available to the Town or any officer or employee.

Employees may be personally liable for actions and decisions made in the course and scope of their employment in the event of:

- 1) Fraud, corruption or actual malice.

- 2) The employee acts or fails to act as a result of his/her self-indulgence substantially impairing his/her judgment.
- 3) The employee acts or fails to act, except in emergencies or the existence of extenuating circumstances, directly contrary to instructions from his/her supervisor or directly contrary to the Town Attorney.
- 4) The employee acts or fails to act in such a manner as to constitute a criminal act, i.e., misappropriation of property or money.

The Town Manager or his designee, with the advice of the Town Attorney, is empowered to determine whether a claim or suit filed against an employee meets the requirements for defense indemnification.

END OF SECTION IV

SECTION V

EQUAL EMPLOYMENT OPPORTUNITY

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SECTION V

1.0 EQUAL EMPLOYMENT OPPORTUNITY POLICY STATEMENT

It is the policy of the Town of China Grove to foster, maintain, and promote equal employment opportunity. The Town shall select employees on the basis of the applicants' qualifications without regard to age, sex, race, color, creed, religion, political affiliation, disability, veteran status, genetic information, family medical history, or national origin except where specific age, sex, or physical requirements constitute a bona fide occupational qualification necessary for job performance. The Town will also make decisions regarding the terms and conditions of employment including the training, promoting and terminating of employees without discriminating on the aforementioned basis as defined by applicable state and federal law.

The Town will continue to adhere to the following criteria in its effort to provide equal employment opportunities:

- 1) Recruitment procedures to attract a diverse pool of applicants to all occupational categories;
- 2) Disciplinary process designed to provide equal treatment for all employees in accordance with the Town's disciplinary policy;
- 3) Selection procedures designed to ensure that all of the steps are non-discriminatory and job related;
- 4) Hiring process designed to include consistent information for new hires regarding employment conditions, type of employment, salary, etc.;
- 5) Promotional procedures designed to enhance upward mobility and fully utilize the skills of the existing workforce;
- 6) Training procedures designed to enhance employee development and advancement opportunities;
- 7) Compensation and benefits procedures designed to review benefits, monitor salaries, and analyze practices to ensure all employees receive compensation and benefits without discrimination;
- 8) Performance appraisal system to hold managers and supervisors accountable and to establish, maintain, and apply employee performance standards free from bias;
- 9) Grievance procedures to ensure fair and equitable review of complaints in accordance with Town policies;
- 10) Ensure that all employees work in an environment free from discrimination, harassment, and sexual harassment;
- 11) Ensure that no retaliatory action is taken or administered against any employee for opposing employment practices which are prohibited by federal and North Carolina laws or by the Town's own policies and procedures;
- 12) Compliance with expressed or implied obligations contained in Federal and North Carolina law relating to equal employment opportunity;

- 13) Will not discriminate on the basis of disability in the admission or access to, treatment or employment in, its programs or activities.

1.01 RESPONSIBILITY FOR ADMINISTRATION

The Town Manager is responsible for the administration of the Town's Equal Employment Opportunity Policy as adopted by the Town Council. The Town Manager has assigned responsibility of the Policy to the Town Clerk.

Department Directors and supervisors' responsibilities shall include but are not limited to:

- 1) Assisting in the development and implementation of the EEO plan and program;
- 2) Assisting in the establishment of program objectives;
- 3) Maintaining a diverse workforce for the department, division, work unit, or section;
- 4) Assisting the Town Clerk in periodic evaluations to determine the effectiveness of the EEO program; and
- 5) Providing a work environment and management practices which support equal opportunity in all terms and conditions of employment.

2.0 EQUAL EMPLOYMENT OPPORTUNITY RECRUITMENT

The Town Clerk will be responsible for publicizing opportunities for employment with the Town including salary ranges and employment qualifications for positions to be filled. Individuals shall be recruited from a geographical area as wide as is necessary to ensure that well-qualified applicants are obtained for Town services. Employment advertisements shall contain assurances of equal employment opportunity and shall comply with federal and state statutes regarding discrimination in employment matters.

The Town will conduct a program of open recruitment in positions to avoid the possible discriminatory effects of informal job networks and similar practices. Posting job vacancies within a department for internal promotion consideration will constitute open recruitment.

The Town's equal employment opportunity recruitment program may include, but is not limited to, the following specific actions:

- a) Open posting of vacancy announcements - vacancies for positions will be openly posted at places which are prominently visible to employees in departments, divisions, satellite agencies, etc. The posting period will be of sufficient duration to allow time for interested personnel to apply;
- b) Broad public announcement of vacancies - recruitment efforts may include classified advertisements in area newspapers, professional journals, use of the Town's website, and the Employment Security Commission (ESC). In addition, copies of vacancy announcements will be

provided to local colleges and agencies specializing in recruitment of minority and women applicants, as feasible;

- c) A statement that the Town is an "Equal Opportunity Employer" will be included in advertisements for employment.

3.0 MONITORING APPLICATION OF EQUAL EMPLOYMENT POLICIES

The Town Clerk, along with the Town Manager, will continually review job descriptions and minimum experience and training requirements in order to detect those selection devices which may tend to adversely affect employment opportunities of any group on the basis of sex or minority status. As part of this review, the nature, frequency, physical demands and relative difficulty of each task actually performed by positions in each job classification will be analyzed in terms of those specific employee abilities, skill levels and knowledge necessary to perform that task. Job descriptions shall ensure that physical and mental requirements be job-related and accurately reflect job function as specified by applicable state and federal law pertaining to employment of the disabled. The Town Clerk will take all necessary steps to suspend further use of those job descriptions or stated qualifications which are not directly related to actual job performance and which tend to discriminate against any population group. Selection devices related to job performance, which also have an adverse impact on the employment opportunities of any population group, will be eliminated and replaced by other selection devices which do not have an adverse effect, insofar as can be accomplished without unreasonable expense or burden to the operations of the Town.

The Town Clerk will monitor any recruitment efforts for compliance and make changes as deemed appropriate.

4.0 CLASSIFICATION REVIEW

The Town of China Grove is committed to the principle consistent with law and governmental policy that individual employees should be compensated without discrimination on the basis of race, color, sex, religion, national origin, disability, or any other discriminatory criteria. In order to assure that similarly qualified individuals who are performing substantially the same work under comparable conditions are paid on an equal basis, the Town Clerk, along with the Town Manager, will take the following actions:

- a) Conduct periodic job analysis in order to identify positions that are improperly classified.
- b) Seek written justification from Department Directors for any unjustified disparity in classification that appears to exist.
- c) Recommend reclassification of any position determined to be classified at a lower or higher level than is consistent with the objectively determined value of the work being performed, giving particular attention to disparities which are patterned statistically on the basis of sex or minority status.

5.0 CAREER DEVELOPMENT AND TRAINING

To assure that members of all population groups are given equal opportunities to hold all positions for which they are qualified, the following policies and practices shall apply:

- a) Initial referrals of applicants for vacant positions will be made consistent with the Equal Employment Opportunity Policy Statement under established recruitment procedures. Persons directly involved in the interviewing process and in decisions regarding assignments should be given specific orientation concerning these administrative guidelines.
- b) Employees will be permitted to apply through transfer, promotion, or otherwise for employment in other positions classified at a higher level or viewed as offering greater advancement opportunity. Employees who were interviewed will be informed, in writing, of the status of their application when the selection process is completed.
- c) Department Directors may provide counseling to employees on promotional opportunities and encourage minority and women employees to participate in career progression and development activities.
- d) In-house training and similar programs will be reviewed periodically for possible modification or expansion to better achieve the purposes of this policy. Special efforts will be made to encourage participation in training programs by members to all population groups. Departments should post notices of training opportunities.

6.0 EQUAL BENEFITS

The Town Clerk, along with the Town Manager, will periodically review benefit programs provided for employees of the Town to assure that benefits are available to employees without discrimination on any prohibited grounds. These reviews will include medical, accident, life insurance, retirement, 401K, and other benefits provided by the Town.

7.0 LEAVE POLICIES

Leave policies will be formulated and administered without discrimination on the basis of sex or other prohibited grounds. Pregnancy, miscarriage, childbirth and recovery there from will be considered by the Town as temporary physical disabilities under the Town's leave program. Leave granted for temporary physical disability would be granted without discrimination because of sex or other prohibited grounds. Further, the Town will not maintain or act upon any written or unwritten policy, which excludes applicants or employees from employment with the Town because of pregnancy. Moreover, employees who are pregnant will not be required to discontinue work except at such time as is specified by their personal physicians. Extended leaves of absence without pay, including long-term military leave, and childbearing leave will be granted without discrimination because of sex or other prohibited grounds.

8.0 GENERAL POLICIES

The Town Clerk, along with the Town Manager, will review all general personnel policies for compliance with the intent of this plan. Revisions will be proposed accordingly and may be reviewed by the Town Council for adoption.

9.0 DISSEMINATION OF EQUAL EMPLOYMENT OPPORTUNITY POLICY

This Equal Employment Opportunity Policy is a public document. Copies will be kept on file with the Town Clerk and will be made available for review to any interested persons upon request. The Town Clerk is responsible for disseminating the EEO Policy.

Employees having direct responsibilities in the selection process should be fully trained regarding the provisions of equal employment opportunity law, this Policy, and implementation guidelines.

The Department Directors and principal supervisory personnel will be provided with copies of this Policy and guidelines, and periodic training to fully acquaint them with equal employment opportunity law and applicable local policies, state, and federal regulations. Training will be used in sensitizing managers and supervisors to the kinds of employment barriers and attitudinal stereotypes, which often hinder equal employment opportunity. These individuals, in turn, will be held responsible for communicating the EEO Policy and implementation guidelines to employees in their respective departments.

- Employees may be informed of Town policy through such means as:
- Town EEO policy statement and federal EEO posters placed in employment offices;
- Policy inclusion in employee handbooks;
- Presentation and discussion of the policy as part of employee orientation and training programs;
- Copies of the policy statement and summary of key program elements provided to employees.

10.0 EEO AND ADA GRIEVANCE PROCEDURE

The Town of China Grove has adopted an internal grievance procedure providing for prompt and equitable resolution of complaints alleging any action prohibited by the U.S. Department of Justice regulations implementing Title II of the Americans with Disabilities Act and discrimination as defined by Title VII of the Civil Rights Act of 1964. Title II states, in part, that "no otherwise qualified disabled individual shall, solely by reason of such disability, be excluded from the participation in, be denied the benefits of, or be subjected to discrimination" in programs or activities sponsored by a public entity.

Unlawful workplace harassment is defined as unwelcome or unsolicited speech or conduct based upon race, sex, creed, religion, national origin, age, color, disabling condition, or veteran/military status obligations

that create a hostile work environment. A hostile work environment is one which a reasonable person would find hostile or abusive, one which an employee perceives workplace actions or behavior to be hostile or abusive, and/or which unreasonably interferes with an employee's work performance.

STEP 1 – File Complaint

Complaints shall be filed with the Town Manager within thirty (30) days of alleged discrimination or harassment and must contain the following:

- a) Name, address, and telephone number of the person on whose behalf the complaint is being made;
- b) The position held or applied for by the employee or applicant;
- c) The number of years the employee has been continuously employed by the Town;
- d) The name of the department against whom the complaint is being brought;
- e) The nature of the complaint (e.g. racial discrimination in promotion, transfer, hire, etc.);
- f) A detailed statement of the facts or reasons to elicit understanding of the situation upon which the complaint is being based; and
- g) A statement of the relief desired.

A copy of the complaint shall be provided to the Town Manager and given sixty (60) days to take appropriate action.

STEP 2 – Request Hearing

To request a hearing with the Town Manager, the request must be filed no later than thirty (30) calendar days after the sixty (60) calendar day waiting period has ended.

STEP 3 – Request Hearing by Personnel Commission

A Town employee who feels that he or she has been discriminated against may request a hearing by the Personnel Commission or may pursue the matter through the Grievance and Adverse Action Appeal Procedure. If an employee elects to utilize this grievance procedure, he or she shall follow the procedure of the Town and, if dissatisfied with the Personnel Commission's decision, may appeal to the Town Manager within 30 calendar days after the receipt of notice of the Personnel Commission's decision. The request should be filed in writing through the Town Clerk's Office, 333 N Main Street, China Grove, NC 28023.

STEP 4 – Hearing Process

An investigation, as may be appropriate, shall follow the filing of a complaint. The Town Manager, Town Clerk or such person(s) appointed by the Personnel Commission shall conduct the investigation. These rules contemplate informal but thorough investigations, affording all interested persons and their representatives, if any, an opportunity to submit evidence relevant to a complaint.

The Personnel Commission will hear the case and conduct a hearing of the facts and issues. If following the investigation and hearing, a settlement is agreed to by both parties; the designated agent shall certify the settlement to the Commission. If following the investigation and hearing, there are issues and facts on which an agreement cannot be reached, the designated agent shall report the findings to the Commission with a recommendation.

The Personnel Commission is authorized to order the employment, promotion, transfer, or salary adjustment of any individual to whom it has been wrongfully denied or to direct other suitable action to correct the abuse. The decision reached by the Personnel Commission on discrimination cases will be binding.

The right of a person to a prompt and equitable resolution of the complaint filed hereunder shall not be impaired by the person's pursuit of other remedies such as the filing of an ADA complaint with the responsible federal department or agency. Use of this grievance procedure is not a prerequisite to the pursuit of other remedies.

These rules shall be construed to protect the substantive rights of interested persons to meet appropriate due process standards, and to assure that the Town complies with the ADA and implementing regulations.

11.0 IMPLEMENTATION

The Town Clerk will keep the Town Manager informed of any area(s), which may deserve attention in the Town's commitment to achieve the principles described in this EEO Policy.

Reports of progress of efforts to comply with policies such as EEO, FLSA, and disabled provisions may be made to the Town Manager.

END OF SECTION V

SECTION VI

WAGE AND SALARY ADMINISTRATION

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SECTION VI

1.0 POLICY STATEMENT

It is the policy of the Town of China Grove to deliver its programs of service and achieve its objectives through sound management practices. A basic part of this practice is effective and economical position management.

Position management involves the design and control of individual positions to achieve a proper balance of values among the following management considerations: number of positions; total cost of services; maximum use of scarce or costly manpower skills; maximum attrition, retention, and motivation of personnel; provision for maximum development opportunities; effective use of work processes, equipment, and techniques; and clear delineation of duties and responsibilities. Good position management reflects the composite resolution of these often conflicting values.

The administration has high regard for every job in the Town. Every job is important, regardless of the level of skills required. The administration also encourages employees to realize the true value of their job, and to perform it to the best of their ability.

2.0 POSITION DESIGN

Position design is the structuring of work assignments to achieve organizational goals with the best use of manpower most readily available and by avoiding unnecessary competition for personnel in short supply. Position design has as its goal the improved management of positions within the limitations of available resources.

Position design is accomplished by systematically following several guides, which are keys to developing facts necessary to achieve position design and management:

- a) Analyzing the mission and objective of the department.
- b) Determining the task to be performed in accomplishing objectives.
- c) Determining the most efficient method, work processes, equipment, and techniques for performing identified tasks.
- d) Designing positions by grouping tasks together on the basis of the most effective use of available manpower skills.
- e) Continuously reviewing assignments and restructuring work of positions, including vacancies, to maintain efficiency and economy on a current basis.

3.0 POSITION ANALYSIS

Position analysis will be used to determine and evaluate the different kinds and levels of work found in Town Government and grouping positions with similar kinds of work on the basis of major factors such as

qualification requirements, responsibilities, difficulty, and working conditions. Position analysis involves the application of accepted techniques of position or job evaluation to produce a systematic classification plan that forms the basis for an equitable and logical pay plan, meaningful standards of recruitment and selection, identification of training needs, a framework for performance evaluation, and information to support management and planning, budgeting, and maintaining the organization.

3.01 CLASSIFICATION PLAN

The Town Clerk, subject to the approval of the Town Manager, establishes policies and rules governing a position classification plan which shall provide the classification and reclassification of positions. The Town Clerk, with the approval of the Town Manager, is authorized to allocate and reallocate individual positions consistent with the established classification and pay plan.

The classification plan for the Town consists of all classes established by the Town Clerk, subject to the approval of the Town Manager. In grouping positions into classes, they are first grouped by the type of work, for example, clerical, accounting, or general labor. Second, the duties and responsibilities are evaluated or weighed to determine their relative level. This evaluation process involves the examination of the relative presence and degree of common factors such as difficulty of work, job requirements, responsibility, supervision, personal contact, and working conditions.

3.02 CLASSIFICATION STANDARD

For each class established by the Town Clerk, a class standard is prepared. The standards will be written in the form of class specifications and benchmarks.

3.03 CLASS SPECIFICATIONS

To distinguish the classes a generalized description of the duties and responsibilities will be maintained. Each class specification includes: (1) Class Title, (2) Description of Work, (3) Examples of duties performed, (4) Recruitment standards including: (a) Knowledge, Skills and Abilities; (b) Minimum education and experience; and (c) Special requirements. It is not intended to describe all the duties of each position in the class, but rather to give a composite view of the class.

Class Title - The class title is the official title, which will be used for payroll, position control, and other personnel and budget records.

Description of Work - This section describes by general statement and then by more detailed statements the type of work and responsibilities, which characterize the class. A consideration of such factors as variety and difficulty of work, work hazards, relative independence of action, supervision received and exercised, and other distinguishing features.

Examples of Duties Performed - This section will describe the purpose of the position; and describe the duties assigned to positions in the class in terms of typical examples rather than an all-inclusive list of assignments.

Recruitment Standards –

- a) Knowledge, skills, and abilities set forth the requirements of employees for successful work performance in positions allocated to the class. These standards will be helpful in the recruitment, examination, and placement of applicants.
- b) Minimum education and experience - This section will reveal the knowledge, skills, and abilities section into qualification training and experience standards. It is a statement of minimum qualification requirements, which an applicant for a vacant position in the class should possess at the time of appointment.
- c) Special requirements - This section will list specific licenses or certifications, which are required to perform a given job. This section may also be used to specify conditions of physical endurance or emotional stability highlighted by demands of positions in a class, where such conditions are primarily selection factors.

3.04 BENCHMARKS

A benchmark is a description of a real position having duties and responsibilities typical of a group of jobs in an occupational category, described in terms of factors, which determine the level of the position/positions. Benchmarks include the following sections: (1) Class title, (2) Major duties, and (3) Factor descriptions.

Class title - The class title is the official title to be used for payroll, position control, and other personnel and budget records.

Major duties - This section describes the major level determining duties of the position.

Factor descriptions - This section describes the relative degree of major evaluation factors present in the position. The factors described are those used to evaluate all positions in an occupational category. Factors, which are generally common to all positions, include job requirements, difficulty, responsibility, and personal contact.

3.05 MINIMUM EDUCATION AND EXPERIENCE

It shall be the policy of the Town to establish job-related minimum qualification standards wherever they are practical for each class of work in the position classification plan. The standards will be based on the required skills, knowledge, and abilities common to each classification. The qualification standards and job-related skills, knowledge, and abilities shall serve as guides for the selection and placement of individuals.

The education and experience statements serve as indicators of the possession of identified skills, knowledge, and abilities and as guides to primary sources of recruitment; reasonable substitution of formal education and job-related experience, one for the other, will be made. Qualifications necessary to perform successfully may be attained in a variety of combinations.

The Town Clerk, with approval by the Town Manager, is authorized to modify education and experience requirements for established classes consistent with this policy.

4.0 MAINTAINING THE CLASSIFICATION PLAN

The Town Clerk is responsible for establishing, revising and maintaining the Classification Plan. Department Directors may report the need for classification action; or the Town Clerk may initiate studies of single positions, occupational groups, or organizational groups of positions to determine that classifications are current. While the Town Clerk retains central control of the Classification Plan, the maintenance of the plan is the responsibility of everyone concerned with employment. This includes individual employees, immediate supervisors, and Department Directors.

Employees - When an employee thinks his/her position is not in the right class, the employee should request that the supervisor conduct a review of the duties of the position. The request should include a statement of reasons for believing the job classification is wrong. The supervisor and Town Clerk should review it and if the request seems justified, the Department Director should submit it, along with comments, to the Town Clerk. The position will then be studied to determine if the classification should be changed.

Supervisors and Department Directors - A major responsibility for the classification plan rests with Department Directors and supervisors. They are responsible for determining the duties and responsibilities of positions, and informing them of their assigned duties, and for reporting changes in duty assignments, organization, and the need for classification action to the Town Clerk. These are integral parts of their general responsibility for efficient and economical management.

5.0 ESTABLISHMENT AND REVISION OF CLASSES

Classification studies may reveal from time to time the need to establish new classes or revise existing classes. These actions must be recommended by the Town Clerk and approved by the Town Manager.

5.01 ALLOCATION AND REALLOCATION OF POSITIONS

Each position is allocated to an appropriate class in the Classification Plan. The allocation of a position is its assignment to a class containing all positions, which are sufficiently similar in duty assignments to justify common treatment in selection, compensation, and other employment processes. A class may consist of a single unique position or of many like positions.

5.02 TENTATIVE AND FLAT RATE PROVISIONS FOR TEMPORARY CLASSIFICATIONS

The Town Clerk, with the approval of the Town Manager, is authorized to establish temporary classifications with tentative pay grades on flat rate salaries when sufficient information is available to make permanent classification and pay recommendations. When sufficient information is available, the Town Clerk will make a recommendation which will incorporate the temporary classification and pay into the established classification and pay plan. Such temporary classes,

tentative pay grades and flat rate salaries shall be administered according to all applicable rules and regulations approved by the Town Manager.

6.0 PAY PRACTICES

Individuals employed by the Town will not be hired below the minimum rate of pay established for their job classification unless they are hired as trainees. Applicants, upon employment, may be placed at the market step of the authorized pay range for the job according to the stipulations of this policy.

6.01 SALARY RANGES

Salary Ranges or pay grades for various skill levels are established under the Town of China Grove Classification System in the following manner:

- a) Minimum and maximum salaries are identified for all job classes within the Town.
- b) Steps within grades are set up at five percent (5%) increments.
- c) Market is clearly identified within each job category according to skill levels. Within a category and between categories, market may vary as to step.

6.02 WAGES AND SALARIES FOR NEW EMPLOYEES

- a) New Employees - As a general rule, starting salaries for new employees shall be between the rates of the respective skill level. Normally, starting salaries may not exceed the market step. The only exception that shall be made on appointments beyond the hiring rate is when an individual's training and experience clearly exceeds the minimum qualifications for the job, and it is in the best interest of the Town to make such appointments. In all cases the Department Director must justify their request, in writing, before approval and/or commitments to employment can be made. Starting salaries above the minimum step must be approved by the Town Manager.
- b) Reinstatement - Re-employment - Employees previously separated from the Town may be rehired, provided performance was satisfactory prior to their separation. The conditions of reinstatement are determined and approved by the Town Manager. Former employees returning from military service who have had no other employer other than the Town and who are returning to the same job classification shall be paid at the same step within the position pay grade in which they occupied at the time of separation from Town employment. Individuals employed by the Town and who are active members of the State's retirement system, including the Law Enforcement Retirement Fund, shall be eligible to transfer earned vacation and sick time credited. Proper documentation showing residual accumulated benefit is required. A regular employee who was separated under a reduction in force shall be eligible for consideration for reinstatement.
- c) Probationary Increases - With satisfactory work performance, an employee's pay is increased by 5% at the end of six (6) months of employment. Additional merit increases

may then occur annually; in the event the employee meets the appropriate performance review scores.

6.03 PROMOTIONS, DEMOTIONS, TRANSFERS, AND DEPARTMENTAL REORGANIZATIONS

In accordance with established policy, a vacant position within the Town is available for consideration by an employee. Individuals must meet the minimum qualifications for the job, and the selection of candidates is at the discretion of the Department Director. Vacancies will be posted, and employees will make their intentions known by completing an application for any openings. As stipulated, promotions are encouraged for qualified employees; and lateral transfers are discouraged unless it serves the best interest of the Town.

Employees who are removed from one position to another within the Town will be placed in the appropriate pay grade established for the job. If lateral transfers are approved, no change in pay will occur.

Promotion is defined as an employee's change from a position in one classification to a position in another classification having a higher minimum and maximum salary grade. With a promotion, the employee will be placed on the step in the higher pay range, which reflects at least a five percent (5%) increase not to exceed the maximum step. The pay increase will be dependent upon the pay range, length of service, qualifications of the person being promoted, and market conditions.

Should a demotion occur which is based on the failure of the employee to perform satisfactorily, the employee's salary will be reduced to the appropriate skill level. A decrease of at least five percent (5%) in salary must occur; however, employees will not be demoted below step one of a pay range. If a demotion is a result of a personal request and serves the best interest of the Town, pay will be established within the appropriate skill level at the closest lower step in salary, which will not exceed the maximum established for that skill level.

The Town Manager may authorize the reorganization of a department even if such reorganization results in the elimination of occupied or unoccupied position(s) and even if such reorganization results in a change in the job category or skill level for one or more employees. The Town Manager must inform the Town Council thirty (30) days prior to any reorganization, which may affect a reduction in force. Department Directors may not reorganize their department without prior written approval from the Town Manager.

6.04 TRAINING

Certain jobs within the Town have established specific training requirements. These jobs must have written policies on the length of the program, salary arrangements and employment practices. Employees in training classifications will be considered probationary until the completion of their program. Trainees who are hired as regular employees do not have to repeat their probationary period. A letter of understanding must be filed in the trainee's personnel folder indicating his/her agreement to the conditions of training and possible employment.

6.05 INTERIM SUPERVISORS

There are times when an employee is leaving employment with the Town that it may be necessary for a current employee to assume some of the duties while a new employee is being recruited for a key supervisory or management position. During this time, the Department Director, with the approval of the Town Manager, may choose a current employee to be responsible for managing or supervising a unit or division of the department. With additional responsibility, the employee may receive a 5% increase in pay until a replacement is found for the position. At that time, the employee will resume his/her duties of their original position and the employee will return to their original rate of pay.

6.06 COMPENSATION FOR TEMPORARY ASSIGNMENT TO HIGHER PAY GRADE POSITIONS

There are times it may be necessary for the Town to provide extra compensation to employees who are temporarily assigned to serve in higher pay grade positions, when the assignment is for more than six weeks in duration. The compensation shall be in the form of one time bonus pay calculated at the end of the assignment. The bonus pay shall be calculated as the difference in the pay grade of the temporary position and the employees permanent pay grade, at the same step in pay.

7.0 GUIDELINES FOR PAY ADJUSTMENTS

- 1) Pay adjustments may be required due to administrative, clerical, or mechanical error. Failure to allow adequate processing time, supervisory or department delays, or oversights at the point of origination are not included in this category. Department Directors requesting pay adjustments are held responsible for timely requests.
- 2) If an overpayment is made, proper documentation and prior notification to the employee will be provided before the Town recovers the overpayment amount.
- 3) Requests are subject to final approval by the Town Manager. An employee should be advised of changes only after written approval is returned to the originator of the request.
- 4) Wage and salary increases are made effective on the first day of the pay period immediately following the final written approval, as noted on the original copy of change of status.
- 5) The Town Manager will review and approve:
 - a) Accessions (new employees)
 - b) Promotions
 - c) Transfers
 - d) Demotions
 - e) Special one-time bonus

7.01 PERFORMANCE APPRAISALS

With the development of a benchmark (job description) for each job class, the Department Director shall determine the job standards for each position and communicate an understanding of these standards to each employee.

Full time employees are eligible for participation in the Town's performance appraisal system.

The employee's immediate supervisor is responsible for conducting the performance appraisal. This supervisor is required to discuss with every employee, in private, his or her performance appraisal whether the employee receives merit increase. At this interview, the supervisor will offer suggestions that will aid the employee in improving work performance.

Employees are requested to sign the performance appraisal form and a copy may be provided for their personal records upon their request. The original must be filed in by the Town Clerk . Should the employee refuse to sign the form, it should be noted and signed by the supervisor.

The Department Director and a supervisor shall emphasize and maintain the confidentiality of each performance review and all administrative records under their jurisdiction or custody. It should be recognized that any monetary reward resulting from a performance appraisal is contingent upon the availability of funds as approved by the Town Council.

7.02 PAY FOR PERFORMANCE

The Town's pay for performance plan rewards employees for performing their job at an outstanding level. Full-time employees who have been employed for a year as of June 30th are eligible for merit consideration. Merit pay is issued annually to employees in the first payroll period that includes August 1st.

The Town Performance Appraisals will be conducted in May and requires a minimum numerical rating to be eligible for merit pay. The percentage amount of pay increase will be determined by the allocation of funds approved by the Town Council. Employees at the top of their grade will be eligible for a merit increase as a one-time payment, which will not be added to their annual base pay. Employees who have received one or more "unsatisfactory" or "needs improvement" ratings are not eligible for merit consideration regardless of their total score.

The Pay for Performance Plan is dependent upon availability of funds budgeted by the Town Council on an annual basis.

7.03 COST OF LIVING ADJUSTMENT

The Town Council will consider a cost of living increase for employees on an annual basis. The recommendation for an increase is based upon the prior year consumer price index. If approved and appropriated in the operating budget, the increase is normally distributed to employees in their first paycheck of the new fiscal year (July). When employees receive a cost of living increase, their pay grade and step remain the same.

7.04 MARKET ADJUSTMENT PLAN

The Town Council may approve a market adjustment plan in which the Town Clerk is responsible for conducting a market analysis of positions. This analysis involves the comparison of the Town's salary range of each position to other similar agencies. The comparison to other agencies produces a percentage of market for each position's hiring range.

Monies are allocated for the market adjustment plan annually and distributed to the employees with the lowest percentage of market. The salary increases are effective at the beginning of the fiscal year. The actual percentage of salary increases is determined in a manner, which affects the most employees and provides an appropriate amount for the corresponding percentage of market. Employees who receive a salary increase due to a reclassification are not eligible to receive an additional market adjustment increase.

This plan is subject to annual approval by the Town Council.

8.0 FAIR LABOR STANDARDS ACT

Effective April 15, 1986 local and state governments must comply with the Fair Labor Standards Act (FLSA). As an integral part of job duties and responsibilities, Department Directors and supervisors are required to ensure compliance with the applicable standards regulations and guidelines of this law.

1) Exempt (Salaried) Employee

- a) Personnel who are administrative, professional or executive are exempt and will work the number of hours required to fulfill their job responsibilities. The Town Council establishes a minimum average of forty (40) hours for a workweek. Exempt employees may accumulate a maximum of forty (40) hours of Compensatory (Comp) time. The employee will not receive monetary compensation for comp time.
- b) Authorized leave will not be granted to salaried employees who do not have accrued time (vacation or sick) to cover time off. Department Directors, with the approval of the Town Manager, may advance vacation or sick leave to vested employees only. Each case will be reviewed on its own merits.
- c) Exempt employees who are required to be paid on a salary basis may not have their pay reduced for variations in the quantity or quality of work performed. Normally, exempt employees must receive their full salary for any week in which they perform any work, without regard to the number of days or hours worked. However, exempt employees need not be paid for any workweek in which they performed NO work at all for the Town.
- d) Deductions from pay cannot be made as a result of absences due to the following circumstances:

1) Jury Duty

- 2) Attendance as a witness for the Town
- 3) Temporary military leave
- 4) Absences caused by the employer
- 5) Absences caused by the operating requirements of the Town
- 6) Partial day amount other than specifically discussed below.

Such improper pay deductions are therefore specifically prohibited by the Town, regardless of the circumstances. Department Directors or supervisors violating this policy will be subject to investigation of their pay practices and appropriate disciplinary action in accordance with normal procedures.

- e) Exceptions to the requirement to pay exempt employees on a salary basis are listed below. In these cases, deductions may be permissible as long as they are consistent with other Town policies and procedures.

- 1) Absences of one or more full days for personal reasons or where other leave time is not available or for the appropriate use.
- 2) Penalties imposed by infractions of safety rules of major significance.
- 3) Unpaid disciplinary suspensions of one or more full days in accordance with the Town's disciplinary policy.
- 4) Deductions for the first and last week of employment, when only part of the week is worked by the employee, as long as this practice is consistently applied to all exempt employees in the same circumstances.
- 5) Deductions for unpaid leave taken in accordance with a legitimate absence under the Family and Medical Leave Act.

- f) Exempt employees who believe their pay has been improperly reduced should contact the Town Manager immediately to request an investigation.

- 1) The employee will be asked to specify in writing, using the guidance above, the circumstances of the pay deduction and whether it has occurred on other occasions.
- 2) The Town will review pay records and interview the supervisor or Department Director, as well as the payroll representatives handling the employee's pay, to determine if the allegation is correct.
- 3) If the deduction was in fact improper, the Town will reimburse the employee as promptly as possible, but in no case longer than two periods from the identification of the problem.
- 4) The individual(s) responsible for the error will be investigated further to determine if this was an isolated incident or a pattern of conduct that requires further action on the part of the Town. If warranted, the responsible person(s) will be held accountable for the error(s) made consistent with the Town disciplinary policy.

- 5) The resolution of the situation will be documented (including confirmation on the part of the employee that the situation has been resolved) and placed with the employee's pay record.
- 6) Following the identification of such a problem, the Town will establish a practice to regularly audit employee records to ensure no further issues arise.

2) Non-exempt (Hourly) Employee

- a) Non-exempt job classifications will be eligible for time and one-half time for all hours actually worked in excess of forty (40) within a given workweek. "Hours worked" is defined as actual working hours. Benefit hours are excluded in the calculation of eligible overtime/comp time hours. Benefit hours are paid at straight time. Any hours worked over forty (40) per week must be pre-approved by the Department Director. Any unauthorized hours worked over forty (40) may subject the employee to disciplinary action according to the Town's disciplinary process. Overtime hours worked will be paid as accrued comp time. It is the responsibility of the Department Director to manage the accrual of comp time. Compensatory time must be utilized prior to the use of vacation time.
- b) Non-exempt Police Personnel that are required to work over one hundred seventy one (171) hours and Fire Personnel that are required to work over two hundred twelve (212) hours in a 28 day cycle shall be paid or earn comp time.
- c) In no event will vacation leave, sick leave, holidays or compensatory time be included in the computation of hours worked for FSLA purposes.
- d) Non-exempt employees are required to obtain specific approval in advance from their supervisor before working overtime.
- e) Overtime must be approved by the Town Manager prior to employees working overtime. Employees who work unauthorized overtime will be entitled to compensation; however, employees who work overtime without prior authorization will be subject to disciplinary action.
- f) If possible, an employee should be given the equivalent time off within the same workweek in lieu of overtime; otherwise, overtime hours will be paid as accrued comp time. When it is essential to maintain departmental operations or during emergencies, disasters, etc., Department Directors (with the approval of the Town Manager) can require employees to work overtime.
- g) Non-exempt employees must report in and out to the appropriate person for recordkeeping requirements.
- h) Unless authorized by the Department Director employees may not elect to work outside their established schedule in order to make up for lost time.

- i) When non-exempt employees work, they are paid the hourly rate established for their position; however, when employees do not work they are not paid unless accrued leave is available to make up for lost income.
- j) The following deductions may be made from an hourly employee's income:
 - 1) Federal Income Taxes
 - 2) State Income Taxes
 - 3) FICA (Social Security and Medicare)
 - 4) Authorized Town Group Insurance
 - 5) Authorized United Way Fund
 - 6) Authorized voluntary benefits
 - 7) Garnishments (as stipulated by federal and state statutes)
 - 8) Authorized Deductions to correct errors in pay or overpayments
 - 9) Authorized deferred compensation
 - 10) Retirement
 - 11) Any absence, sickness and/or accident when an individual does not qualify for bona fide plan or policy providing compensation for loss of salary occasioned by the aforementioned.
 - 12) Medical and Dependent care reimbursement accounts
 - 13) 401(k) Loans, and Voluntary Contributions associated with 401(k)
 - 14) Other deductions as authorized

8.01 VOLUNTARY WORK

Non-exempt (hourly) employees who voluntarily continue to work before or after the beginning or close of normal working hours are engaged in working time. The reason for the work is immaterial; as long as supervisors "suffer or permit" employees to work on the Town's behalf, compensation, as established in the Town's Classification Compensation System, must be paid. Department Directors are required to make certain that overtime work is approved. The publishing of a rule prohibiting unauthorized overtime is not sufficient to avoid compensation for additional hours worked. However, unauthorized overtime work may subject the employee to disciplinary action.

Bona fide "volunteers" who work outside the Town may do so without any obligation of the Town to provide wages. As with the administration guidelines affecting outside employment, non-exempt employees are requested to indicate in writing outside "volunteer" service. Department Directors should contact the Town Manager to determine if such services are eligible for compensation.

Documentation on volunteer services is suggested in order to remove any concerns that may exist. Outside volunteer work becomes compensable when employees are required or requested by their supervisor to perform services in a capacity for which they were employed by the Town.

8.02 WAITING TIME

Whether waiting time for non-exempt (hourly) employees is compensable depends on the particular factual circumstances. Required waiting time is compensable; however, non-exempt employees who wait before starting their duties because they arrive at work earlier than the required time are not entitled to be paid. The same circumstances are true for those non-exempt employees who may wait at the end of the required shift. All time spent by non-exempt employees in waiting while on duty must be counted as hours worked. If employees begin, while waiting to start their shift, to perform duties for which they were employed, such time becomes compensable.

Under FLSA regulations, waiting time by non-exempt employees who have been relieved of duty need not be counted as hours worked if:

- a) Employees are completely relieved from duty, allowed to leave the job, and free to do as they please; or
- b) Employees are relieved until a definite specified time. It is the responsibility of the Department Director to evaluate the facts and circumstances in each case to determine eligible work time.

8.03 ON CALL

- a) The nature of operating the Town is such that employees may be subject to being called back to their work area in unusual situations after having completed their normal tour of duty. In some cases, call-back requirements are of sufficient volume and frequency to justify scheduling and designating employees in advance to accept this responsibility for a given period of time. In such cases, a bona fide on call status may exist. It is the purpose of these guidelines to establish a fair and equitable method of compensation for Town employees who may be on-call. To be eligible for on-call pay, Department Directors must have written approval from the Town Manager before commitments can be made for on-call and before compensation will be paid.
- b) Restricted on-call exists when non-exempt (hourly) employees are restricted to the work unit or a specific location without freedom to pursue normal activities. This arrangement will be construed to mean that employees are "engaged to wait" and will be counted as regular hours worked. All hours worked will be included to determine the eligibility of overtime for non-exempt employees.
- c) Non-restrictive on-call will be construed to mean the employees are only "waiting to be engaged" and will not be counted as hours worked.
- d) Non-restrictive on-call exists when the following conditions are met:
 - 1) Employees are restricted only to the vicinity of The Town.
 - 2) Employees during non-work on-call hours are free to engage in their own personal pursuits.

- 3) Employees are given mobile phones as a means to communicate with their department or must leave a phone number at which they can be contacted.
- e) Eligibility for On-Call - Employees required by the Department Directors to be available for possible return to work outside their normal working hours may be eligible for on-call compensation. The Administrative Guidelines to obtain approval for on-call are as follows:
- 1) On-call situations must reflect services which have to be provided on-the-spot within a limited number of minutes; and must be a service that cannot wait.
 - 2) On-call will be the exception rather than the routine situation. Departments will be required to find alternative schedule options and other techniques within management's discretion for covering the more routine types of situations that occur. On-call status will not become a mechanism that encourages over dependence on off duty supervisors.
 - 3) Decisions regarding on-call will be reviewed in the context of service level options. In other words, available resources will determine the service.
 - 4) On-call will be viewed as the mechanism used because it is less expensive than adding additional staff, even when paying for actual time worked by on-call employees.
 - 5) Existing on-call arrangements as previously approved by the Town Manager are voided with the adoption of this Administrative Guideline. Department Directors are required to contact the Town Manager for verification of and approval for on-call status.
- f) On-Call Premium - In some instances, employees are not required to stay on site, but are obligated to be available should their services be required. As a general rule, the employees are free to use their "on-call" time as they wish with some minor limitations. On call employees may be provided comp time of four (4) hours for each week (7 days) spent on call. If a call lasts more than four (4) hours, the employee will be paid for the total number of hours that the call actually takes. Travel time to and from the site must be counted as time on the call. Some employees who are required to be "on call" for only a 24 hour period may be given one (1) hour of comp time, up to a maximum of four (4) hours per week.
- g) Compensation for Actually Working an On-Call Arrangement - Non-exempt employees on call will be paid at the established hourly rate of pay for hours worked outside their normal schedule in an actual callback situation. A non-exempt employee who is "on call" after regular work hours will be compensated at time and one-half for all hours actually worked over forty (40) in a workweek. The minimum of two (2) hours of comp time per week is guaranteed for employees who are called or actual hours worked whichever is greater.

- h) Maintenance of Records – Each Department Director will maintain a list of positions that are authorized for on-call compensation arrangements.

8.04 SLEEPING TIME

FLSA regulations on sleep time may be determined by three general guidelines; (1) non-exempt (hourly) employees with work periods for twenty-four (24) hours or less, (2) non-exempt employees with work periods more than twenty-four (24) hours, and (3) non-exempt employees who permanently reside on Town property.

8.04.01 24 HOURS OR LESS

Sleep or rest time for less than twenty-four (24) hours in which non-exempt (hourly) employees are permitted to sleep or rest are compensable working hours as long as they are on duty and must work when required.

8.04.02 FLUCTUATING WORK WEEK

An employee whose hours of work fluctuate from week to week may be paid a fixed salary with the understanding that the fixed amount received as straight time pay is compensation for all hours worked, whatever the number. The employee's regular rate is determined each week by dividing the fixed salary by the number of hours worked in that week. The regular rate cannot be less than the minimum wage. Because the employee has been paid straight time compensation for all hours worked, he/she will receive additional over-time compensation for all overtime hours worked over forty (40) at a rate of at least one half the regular rate.

In order to be paid on an overtime basis of one half the regular rates, the following must be present:

- 1) An expressed or implied agreement exists;
- 2) Adequate sleeping facilities for sleep are provided;
- 3) Live-in employees whose work schedule is designated by the supervisor to end before a 24- hour period is completed are eligible for compensation as described in Section 8.04.01 (24 HOURS OR LESS).

8.04.03 PERMANENT RESIDENCE ON TOWN PROPERTY

Employees who reside on Town property on a permanent basis or for extended period of time (five days or more) are not considered working all the time they are on premises. Ordinarily, employees may engage in normal private pursuits and thus time for eating, sleeping, entertaining, and other periods of complete freedom from all duties are not compensable. It is, of course, difficult to determine the exact hours worked under these circumstances and reasonable agreements between the Department Director and employees may be accepted as working time.

8.05 CONTINUING EDUCATION (TRAINING)

It is the policy of the Town Council to encourage Town personnel to avail themselves of training or education that would further their careers or prepare them better for their current or future jobs with the Town.

Mandatory attendance of Town personnel at required work-related educational or training programs whether during or outside normal working hours shall be constituted as involuntary enrollment on the part of the employee and the employee shall receive compensation and shall thereby be required to affirm such in writing to the Department Director for approval before time of enrollment.

8.05.01 INVOLUNTARY TRAINING

- 1) Each Department Director is required to process an expense report directly to the Finance Department for authorization of any payments for employee training or education.
- 2) Reimbursements to employees will only be made if the request is accompanied by original detailed receipts for tuition, fees, or books. Funds must be budgeted and approved before commitments are made to employees for involuntary training.
- 3) All hours spent in training are compensable and must be entered on the employee's time sheet.
- 4) Department Directors have discretion on selection or appointments to training programs.

8.05.02 VOLUNTARY TRAINING

The following guidelines must be met for the training activity not to be counted as working time:

- 1) Attendance must occur outside regular working hours; and
- 2) Attendance must be in fact voluntary.
- 3) Employees are responsible for tuition, books, materials, supplies or fees. Special Note: It is not voluntary if employees are led to believe that non-attendance will prejudice their working conditions or employment standings. Documentation on voluntary training is necessary to remove any questions; and
- 4) Employees must not engage in compensable work while attending.

Voluntary training directly related to the employee's job is permissible. FLSA regulations permit job related voluntary training without compensation providing that the training is offered by independent bona fide institutions of learning. Employees may utilize, with approval from the Department Director, accrued vacation time or leave without pay for voluntary training. All applicable leave balances must be utilized before a leave without

pay status is approved. Leave without pay status should not exceed a two (2) week pay period.

8.06 TRAVEL TIME

Whether travel time is compensable depends on the kind of travel involved. Normally, the Town will not be responsible for the time spent by non-exempt (hourly) employees in walking, riding, or otherwise traveling to their principal job related activity. The following general guidelines apply in determining whether non-exempt employees' travel time is compensable.

8.06.01 HOME-TO-WORK

Home-to-work travel or vice versa is not compensable, even if employees must travel from a town to an outlying site to get to the job or even if the Town is providing transportation. Employees are not at work until they reach the work site and their normal work period begins. If employees are required to report at a special time to a meeting place where they are to pick up materials; other employees, or to receive instructions, compensable time starts at the time of the meeting or their arrival. Officers who are assigned vehicles and are "off duty" will not have any travel time recognized as compensable time.

8.06.02 TRAVEL DURING THE WORK DAY

Travel by employees from one job site to another during the workday is compensable work. Also, traveling from an outlying job at the end of the scheduled workday back to a central point is compensable.

8.06.03 CALL-BACK

The Town's position on compensation on call-back for all non-exempt (hourly) employees is:

- 1) Unless given a specific time to report to duty, work time begins when employees are notified to return to the job, including reasonable allowances for travel time back to the job. The Department Director has discretion on what is considered "reasonable travel time."
- 2) In addition to compensation for call-back, employees may also request auto allowances at the established mileage rate for all mileage from home to the work site and back home; provided employees are using their own car or have not been offered Town transportation.
- 3) These stated guidelines on call-back are also applicable for required in-house meetings/training whereby employees are scheduled off and must return to the Town premises for a required meeting.

8.06.04 OUT-OF-TOWN TRAVEL

- 1) Non-exempt (hourly) employees who are required by the Department Director to be out-of-town for one day or less do not need to be compensated for the time spent traveling from home to the airport or pick-up point but they must be paid for all other travel time with the exception of meal time. Non-exempt employees are considered working all the time they are traveling even if employees are permitted to drive their own cars.
- 2) Where non-exempt employees travel on Town business for more than one day, they must be paid for time spent in traveling (except meal time) during their normal working hours including non-working days, such as Saturday, Sunday, and holidays.
- 3) Any actual work non-exempt employees perform while traveling is considered compensable.

8.06.05 TRAVEL AND EXPENSE REIMBURSEMENT

The Town of China Grove established a uniform procedure for payment of certain travel, training and other business expenses.

When it is necessary or desirable for a Town employee to travel to participate in a meeting, conference, workshop, and seminar or to otherwise conduct the Town's business, the Town will bear necessary and reasonable expenses relating to these activities.

- 1) The Town will pay all registration costs, including charges for any meals that are included as part of a registration fee for a meeting, conference, workshop or seminar.
- 2) The Town will pay round trip train, bus or tourist air fare to destination air fare between airports, hotels, and activity sites. The use of economy priced rental cars may be allowed by the Department Director when cost effective.
- 3) The Town will pay employees on the basis of mileage for the use of their private auto, providing this cost does not exceed the cost of air travel. The Town will reimburse mileage based on current IRS regulations. Travel by Town vehicles is encouraged whenever available. Parking fees will be reimbursed. However, any parking tickets received while on Town business are the responsibility of the employee.
- 4) The Town will pay the actual cost of moderately priced out-of-town lodging, including gratuities for the employee only. If any activity is being held at a hotel, the employee may select that hotel for lodging.

- 5) The Town will reimburse for meal expenses up to \$40.00 per day. Meals will be paid based on per diem rates of: breakfast \$7.00, lunch \$10.00, Dinner \$23.00 per day. Meals that are included in the event's registration costs are not to be also claimed as per diem expense. If an employee departs prior to 7:00 a.m. the Town will pay for breakfast. If an employee departs prior to 11:00 a.m. or returns after 2:00 p.m. the Town will pay for Lunch. If an employee departs prior to 5:00 p.m. or returns after 7:00 p.m. the Town will pay for dinner. Time of departure and arrival must be listed on the reimbursement request. Payment for meals may be given to the employee prior to them leaving town; however, a travel advance form must be submitted to the Finance Director.
- 6) The Town will pay expenses for extended overnight stay when significant savings may be realized. Such extended stay must be specifically approved by the Town Manager.

To request funds in advance, submit a travel advance form for the funds needed indicating the purpose of the travel, date, and location of the activity, the name(s), of the employee(s) and the applicable due date for the payment.

For checks to be picked up, approved prepayment requisitions must be received by the Finance Director on Monday for checks to be available on Thursday.

After the completion of the activity, all related expenses must be reported without delay to the Finance Director by submitting a Travel Voucher. Employees are cautioned that the Town may deny payment of any unreasonable expense or any unsupported expense over \$10.00. The approved Travel Voucher and attachments (proof of class, conference or lodging) are to be submitted to the Finance Director for appropriate action.

Petty Cash may be used for reimbursement of expenses that are less than the Petty Cash limit (\$20.00) with an approved travel voucher.

When reimbursement is due to the Town, the employee must submit cash in the amount of the reimbursement with the approved Travel Voucher within five working days after the completion of the activity to the Finance Director.

The Department Director shall approve, in advance, all requests to travel on Town business made by those in his or her department and all expenses to be incurred and/or incurred relative to this travel and provide request to the Finance Director in a timely manner. Because of his or her familiarity with the purpose of the travel and the personal expenses and question any unreasonable charges incurred.

The Finance Department shall also review all travel related transactions and advise the Department Director of any apparent deviations from these procedures.

The Town Manager shall rule on any differences of opinion in the interpretation of the terms of this procedure that cannot be resolved to the mutual satisfaction of the Department Director and the Finance Department.

8.07 COMPENSATORY TIME (COMP TIME)

Federal regulations and Town policy permit comp time to be used. The Town has elected to give non-exempt employees equivalent time off during the same workweek in lieu of pay in order to avoid overtime.

8.08 OUTSIDE EMPLOYMENT WITH ANOTHER EMPLOYER

Off duty personnel such as law enforcement and emergency services employees who have outside employment will not be paid by the Town during these outside activities. To be eligible for compensation, employees who are engaged in outside employment must be required to perform services with the Town for which they are employed. Law enforcement and EMS personnel are required to report to their supervisor any outside work which may be considered compensable time. It will be the responsibility of the supervisor to determine all hours, which may fit the circumstances described in this section.

9.0 RECORD KEEPING

9.01 TIMESHEETS

Under the Fair Labor Standards Act, the Town of China Grove requires that records be kept in a centralized location on wages, hours, occupation, and other terms and practices of employment. Departments should use the standardized timesheet including:

- a) Employee Name (last name, first name);
- b) Department;
- c) Hours worked each day and accrued benefit time used;
- d) Total hours each workweek;
- e) Signature of employee;
- f) Signature of supervisor.

Hours worked by an employee must be treated as compensable time. Employees should record actual time worked and benefit time used on the proper line. It should be emphasized that it is the responsibility of the employee to ensure accurate information as to time worked and the duty of the supervisor to ensure the accuracy of the employee's timesheet.

9.02 PAY DAY

Paydays occur every two (2) weeks. There are normally twenty-six (26) paydays each calendar year. The following rules apply to pay day:

- a) Pay stubs will be emailed the Tuesday before each payday.
- b) Pay stub copies can be requested through the Finance Department.

END OF SECTION VI

SECTION VII

SAFETY POLICY AND PROCEDURES

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SECTION VII

1.0 POLICY STATEMENT

It is the policy of the Town of China Grove to provide safe working conditions, personal protective equipment (PPE) as required, safe equipment, proper job instructions, adequate supervision and frequent review of working practices to assure that employees can perform their jobs safely and productively.

Workplace accidents place an unnecessary financial burden on taxpayers. Most accidents can be prevented by training, common sense, and diligence from employees and supervisors. Therefore, it is the responsibility of each employee, and especially those in a supervisory capacity, to assure that work is planned, performed, and supervised with safety in mind, and that all necessary safety requirements are in place.

It is the policy and intention of the Town that a comprehensive safety program will be followed.

In support and recognition of the importance of a vigorous safety program, the Town Clerk under the direction of the Town Manager, is hereby directed to implement a comprehensive safety program.

1.01 SAFETY SENSITIVE POSITIONS

Positions may be added to this list of safety sensitive positions at any time due to the nature of job assignments, or deleted because of the assignments of a particular position within a job title do not fit the safety sensitive criteria. Positions defined as safety sensitive are defined as:

- a) Positions requiring the operation of vehicles, machinery, or equipment as a primary task.
- b) Positions requiring the handling of hazardous materials, the mishandling of which may place the employee, fellow employees, or the general public at the risk of serious injury, or the nature of which would create a security risk in the workplace.
- c) Positions requiring the potential use of weapons.
- d) Positions where the incumbent's mental fitness is required to prevent immediate injury to the public or to fellow employees, or to himself/herself.
- e) Positions working with youth/children and/or required to drive clients

The following positions are considered Safety Sensitive:

- Fire Chief
- Assistant Fire Chief
- Fire Captain/Sergeant/Lieutenant
- Fire Engineer

- Firefighter
- Police Chief
- Police Detective/Investigator
- Police Sergeant/Lieutenant
- Police Officer
- Public Works Director
- Public Works Supervisor
- Public Works Crew Leader
- Public Works General Laborer I & II

2.0 PERSONAL PROTECTIVE EQUIPMENT PROGRAM

2.01 OSHA STANDARD 1910.133 (a)

"Protective equipment including personal protective equipment for eyes, face, head, and extremities, protective clothing, respiratory devices and protective shields and barriers, shall be provided, used and maintained in a sanitary and reliable condition wherever it is necessary by reason of hazards or processes or environment, chemical hazards, radiological hazards, or mechanical irritants encountered in a manner capable of causing injury or impairment in the functions of any part of the body through absorption, inhalation or physical contact."

2.02 GENERAL POLICY STATEMENT

The Town of China Grove, in compliance with State and Federal guidelines concerning personal protective equipment and for the protection of its employees, shall develop a personal protective equipment program, which shall operate under the guidelines contained herein.

2.03 PERSONAL PROTECTIVE EQUIPMENT (PPE) PROGRAM GUIDELINES

Scope

This program shall apply to those employees exposed to hazards while on or off Town property while engaged in Town business within the scope of their prescribed duties.

The Personal Protective Equipment Program shall consist of the following elements:

- Educational Program

- General Inspection Surveys
- Engineering and Administrative Controls
- Personal Protective Equipment
- Documentation

Educational Program

May consist of:

- 1) Handouts, wall posters, etc., explaining the need and benefits of the Personal Protective Equipment Program;
- 2) Educational training sessions for management, supervisors and employees;
- 3) Training in the proper use and care of issued personal protective equipment.

General Inspection Surveys

A general inspection survey will enable the Town to compile data to develop engineering and administrative controls satisfy specific state or federal requirements.

Inspection surveys will be made by the Town Manager.

Engineering and Administrative Controls

Engineering controls are any modifications to machinery guards, etc., in a work area or to the work area itself in order to eliminate hazards in a particular work area.

Administrative controls are those decisions by management, which eliminate the hazard of a certain work area, such as purchase procedures, re-routing, etc.

Personal Protective Equipment

- a) When engineering or administrative controls are not feasible, then PPE should be utilized.
- b) Before issuing PPE of any kind, employees should be instructed on the proper use and care of equipment.
- c) The supervisor of each employee shall be responsible for issuing and enforcing the wearing of personal protective equipment.
- d) Employees who fail to utilize protective equipment issued by the Town in situations requiring such equipment shall receive disciplinary action as follows:

- 1) First offense - Final written warning

2) Second offense - Dismissal (within 3 years of First offense)

This policy includes machine guards, lockouts, safety switches, PPE, and seat belts in any vehicle being used for Town business.

Documentation

- a) Records shall be maintained by the Department Director of Town premises, which require the use of engineering or administrative controls or personal protective equipment.
- b) Records shall be maintained by the Department Director of PPE issued to employees.

3.0 DRIVER QUALIFICATIONS AND RESPONSIBILITIES

In keeping with the Town's commitment to creating and maintaining a safe environment for Town employees and the general public, this policy sets forth minimum standards for drivers of Town vehicles and employees who drive private vehicles to carry out Town business. All employees who operate motor vehicles on Town business are subject to the guidelines of the policy and are expected to do so in a safe and responsible manner, and adhere to all applicable motor vehicle laws.

3.01 AUTHORIZED USE

The use of a Town vehicle and equipment owned or leased by the Town are for **Official Use Only**. It shall be unlawful for any officer, agent or employee of the Town to use for any private purpose whatsoever any motor vehicle of any type or description whatsoever belonging to Town. Vehicles and equipment will not be used for personal business or gain. Only authorized Town employees or authorized contract personnel may drive or operate a Town owned or leased vehicle, heavy equipment, tractor, mower, tools or other Town property. The only passengers permitted are Town employees, clients, contractors, contract personnel or other persons normally transported as a function of the mission of the departments. Employees, whose positions necessitate taking Town vehicles home, should travel to and from their worksite by the safest, shortest route. Approved commuters are permitted the use of Town vehicles assigned to them for: 1) Travel between work and home, or 2) to obtain meals and other work-related necessities while on duty.

"Ride-along" participants that are part of services provided (i.e. internships, senior projects, Leadership Rowan Project) are authorized as long as a Town of China Grove Waiver of Liability is completed and each individual is fully aware of the risks of the "Ride-Along Program".

3.02 DRIVER QUALIFICATIONS

- a) All persons operating a Town motor vehicle are required to possess a current operator's license with the appropriate endorsement for the vehicle being driven. Employees may operate a Town vehicle for a period not to exceed 30 days if they possess a valid

driver's license from another state. New employees, holding out-of-state license, have 30 days from date of hire to obtain a North Carolina driver's license.

- b) A copy of the employee's current operator's license must be kept on file in the employee's personnel file.
- c) Department Directors are required to maintain driver qualification files for persons authorized to drive for the Town. These files should include:
 - 1) An employment application
 - 2) MVR reference check
 - 3) Copy of operator's license
 - 4) Vehicle Safety Policy Review Checklist
 - 5) Documentation of all vehicle training
 - 6) List of vehicle types authorized to operate
 - 7) A driving history (for each employee involved in an accident or incident)
- d) As part of pre-employment screening, applicants for positions that routinely require operation of a motor vehicle will have their Motor Vehicle Records (MVR) reviewed prior to hiring. Excessive traffic violations may disqualify the prospective employee. Current employees who routinely operate a motor vehicle on Town business will have their MVR's reviewed semi-annually to determine that each motor vehicle operator holds a valid driver's license and is complying with all restrictions. Department Directors and the Town Clerk are required to be notified if a vehicle operator's license is suspended or revoked.
- e) Town employees who routinely (at least once per week) drive a Town vehicle are required to report convictions of moving violations to their supervisor, who will inform the Town Clerk. This report is required whether or not the offense occurred on personal or Town time. Further, any suspension, revocation, cancellation of an employee's driver's license or loss of qualification must be reported to the supervisor and the Town Clerk. The report must be in writing by close of business (COB) on the day the conviction or loss of privilege occurs. The supervisor will forward these reports to the Town Clerk by the COB on the following work day.
- f) As a stipulation of employment, Town employees hired, promoted, or transferred, are required to present proof of vehicle insurance, if they routinely (at least once per week) operate their personal motor vehicle while on Town business. The liability insurance

must be issued by a company licensed by the North Carolina Insurance Commission and must be in the following amounts: **\$100,000 Bodily Injury per person; \$300,000 Bodily Injury per incident; and \$50,000 Property Damage.** Documentation of the appropriate amount of liability insurance must be received within two weeks of hire, promotion, or transfer. Employees in such positions are required to submit proof of insurance to the Town Clerk upon each renewal of the vehicle policy. It is the responsibility of the employee to provide proof of liability insurance renewal. Failure to comply with this policy may result in disciplinary action up to and including dismissal.

g) Town drivers may lose driving privileges if any of the following conditions apply. The driver:

- 1) Has a current suspended, revoked, expired or otherwise invalid driver's license.
- 2) Was at fault in two (2) or more accidents in the past 36 months.
- 3) Has acquired eight (8) points on their driving record in the past 24 months.
- 4) Has acquired three (3) or more convictions for moving violations within the last 36 months.
- 5) Has been convicted of reckless driving or disregard for life or property within the past 36 months.
- 6) Has had a DWI/DUI conviction within the last 72 months.
- 7) Has been at fault in one (1) or more accidents resulting in fatality or bodily injury.
- 8) Has failed to report or has left the scene of an accident within the past 36 months.
- 9) Has operated a vehicle without insurance or without a valid license within the past 36 months.
- 10) Has been convicted of possession of a stolen vehicle or ever used a vehicle to commit a crime within the last 36 months.
- 11) Has failed to comply with the Town policy and/or procedures for the use of take-home, Town owned vehicle.

An employee who loses driving privileges will be subject to disciplinary action up to and including termination of employment. Employees whose essential duties include operating a motor vehicle may be terminated immediately if work is not available that does not require driving privileges.

3.03 ALCOHOL, DRUGS, TOBACCO AND FIREARMS PROHIBITED

Alcoholic beverages, tobacco products or any illegal drugs are not permitted in Town vehicles at any time. Law enforcement personnel may transport lawfully confiscated alcoholic beverages or drugs. Firearms and weapons are also prohibited in Town vehicles at any time unless controlled by a sworn law enforcement officer or employee possessing a valid Carry Concealed Weapon (CCW) Permit.

3.04 CAUTIONARY MEDICATIONS

For safety reasons, employees who drive a vehicle or operate machinery on Town business must report to the Town Clerk the use of a prescription or non-prescription drugs which may affect the employee's ability to perform assigned duties which may render them a safety risk. The U.S. Department of Transportation provides a list of cautionary medications that can cause drowsiness and can disqualify employees from driving on Town business whether using their personal or Town-owned vehicle. Use of medications on this list will either immediately disqualify employees from driving or operating machinery on Town business or will require a letter from the prescribing physician indicating the listed drug will not cause drowsiness or dizziness and will not impair the employee's ability to drive or operate machinery while they are taking the medication. The letter from the prescribing physician must be received prior to the employee driving on Town business. If an employee has any questions, the employee should contact the Town Clerk. Compliance of HIPPA regulations will be adhered to at all times.

3.05 VEHICLE SAFETY

Vehicles, when left unattended for any reason, must have the keys removed, windows closed and the doors locked to prevent unauthorized use or theft of the vehicle or its contents. The employee shall remove and safely store equipment that cannot be adequately secured inside the vehicle to prevent theft of equipment.

To assure the safety of all personnel, safety belts must be worn by operators and passengers in all vehicles operated by the department at all times. The driver of the vehicle is responsible for insuring compliance by all occupants of the vehicle they are operating.

No person shall operate a department vehicle in which any safety belt in the driver's seating position is inoperable. No person shall be transported in a seating position in which the safety restraint is inoperable.

Employees are expected to refrain from using a mobile phone while driving. Safety must come before all other concerns. If a call must be placed or taken, employees are required to pull off the road to a safe location to complete the call. If calls are regular and frequent in performing the duties

of the position, hands-free equipment is highly recommended. Town employees are prohibited from sending or receiving text or email messages while driving.

3.06 MAINTENANCE AND REPAIR

In the event of a mechanical breakdown, the vehicle should be towed to the Town garage. For auto accidents, when necessary, the vehicle should be towed to the Town approved facility chosen by the Department Director.

3.07 VEHICLE INSPECTION BEFORE DRIVING

Before operation, the driver will check the vehicle for any damage to the body or interior. All operators of Town vehicles should check the tires to ensure that all tires have adequate tread and the tire pressure is maintained in accordance with vehicle specifications. Any defects that would affect the safe operation of the vehicle shall be reported to the driver's supervisor for correction before the vehicle is used.

3.08 INCIDENTS AND ACCIDENTS

All vehicle operators are required to report any accident or other event involving a Town vehicle immediately, or as soon as possible, to their direct supervisor and the Town Clerk. In the event of an accident, the vehicle operator shall:

1. Contact 911 for dispatch of law enforcement regardless of the extent of damages.
2. Not discuss the circumstances of the accident with anyone other than the investigating officer, Town Clerk or Town Manager, supervisor, or individuals conducting an internal investigation.
3. Make no attempt to reach a settlement.
4. Get the name, address, and phone number of all involved parties and witnesses.
5. Take photographs of the accident (i.e. all vehicle damages, skid marks, signage).

A Town Vehicle Incident Report must be completed in its entirety by the employee immediately following the accident, or as soon as possible, and sent to the Town Clerk. If a police report is prepared, the driver and the supervisor or Department Director shall be responsible for getting a copy of the report and forwarding to the Town Manager. If there is a serious injury, death, or property damage the Town Clerk, Town Manager, Department Director and/or Supervisor must be contacted immediately.

3.09 POST-ACCIDENT DRUG TESTING

Post-accident drug testing is conducted following any accident involving an employee if any one of the following conditions is met:

- A vehicle involved incurs damage as a result of the occurrence.

- An individual suffers bodily injury and receives medical treatment away from the scene.
 - When the driver is issued a citation by law enforcement officers or is at fault.
 - A workers' compensation report must be filed.
- 1) Alcohol Testing - Post-accidental alcohol testing should be done within two hours of the accident. If the test cannot be performed within 8 hours, it should not be done.

An alcohol concentration of 0.01 or higher on a test administered by a North Carolina State Certified Chemical Analyst for breath or blood is considered a positive alcohol test. A positive test result while on work time or work premises, or in Town vehicles, will result in disciplinary action up to and including dismissal.

- 2) Controlled Substances Testing - Post-accident-controlled substances testing must be performed within 32 hours of the accident, or it should not be done.

Controlled substance testing is performed on the following types of drugs:

- Marijuana
- Cocaine
- Opiates
- Phencyclidine (PCP)
- Amphetamines

All drug tests require an employee to provide a urine specimen for urinalysis at a Town approved medical facility. The collection, analysis, and reporting processes are strictly controlled to ensure accuracy of test results and maximum confidentiality.

A confirmed positive test result will subject the employee to disciplinary action, up to and including dismissal.

If the tests cannot be performed in the specified time frame, the reasons for the failure to test should be documented by the supervisor and given to the Town Clerk.

As soon as practical after an accident, the employee will be driven to the Town designated location for specimen collection. Transportation shall be provided. An employee who is required to submit to post-accident testing will be placed on administrative leave with pay pending results.

An employee who refuses to be tested or avoids meeting the specified time limits will be immediately terminated. If unable to meet specified timelines due to circumstances beyond the employee's control, such circumstances must be documented and validated to the Town Clerk and to the Town Manager.

3.09.01 RETURN-TO-DUTY AND FOLLOW-UP TESTING

An employee who has violated this policy and is returning to work on the recommendation of the Town Manager must complete return-to-duty and follow-up testing. Return-to-duty testing must be conducted prior to the employee returning to work. Follow-up testing is required for any employee who has violated this policy and has successfully completed a return-to-duty test. Employees who fall into either one of these situations will be subject to at least six unannounced follow-up tests within the first year back on the job. Follow-up testing can be performed for up to five years after returning to work. An employee who tests positive on a return-to-duty or follow-up test shall be dismissed.

3.10 IMPAIRMENT OR OTHER BEHAVIOR OFF THE JOB

Any employee whose job duties require operation of a motorized vehicle, hazardous machinery or use of hazardous materials who is CHARGED with a controlled substances or alcohol related offense (including employee who is required to have a driver's license for the performance of their job duties will be placed in disciplinary suspension without pay status until their license is returned after the automatic ten-day revocation. An employee's failure to notify his/her supervisor or Department Director may result in disciplinary action, up to and including dismissal. Under no circumstances will an employee operate a Town vehicle or equipment without a valid operator's license.

Any employee CONVICTED of a controlled substances or alcohol related offense must notify the appropriate supervisor or Department Director within one workday of conviction. Failure to notify management may result in disciplinary action, up to and including dismissal. If an employee's job functions require an operator's license and the employee's operator's license is revoked, the employee shall be subject to disciplinary action, up to and including dismissal. Failure to notify the supervisor or Department Director of any revocation shall result in disciplinary action, up to and including dismissal.

Any employee convicted of an off the job controlled substances or alcohol related offense which could directly, or indirectly, affect his/her credibility or ability to carry out effectively the duties and responsibilities of his/her position with the Town, shall be subject to review by the Town Manager and possible disciplinary action, up to and including dismissal.

3.10.01 Referrals for Assistance

A) Voluntary Assistance: An employee who has a drug or alcohol problem is encouraged to seek assistance from an approved Assistance Program. Assistance Programs are confidential. Any permanent employee that seeks voluntary assistance and requires leave time to participate in a treatment program will be granted sick leave or leave without pay.

B) **Mandatory Assistance:** An employee who has tested positive for drugs or alcohol and is not dismissed may be required as a condition of continued employment to undergo a drug and alcohol assessment and participate in a treatment program as recommended by the assessing agency.

The Town of China Grove respects the right of any employee to refuse assistance for a drug or alcohol problem. However, the Town maintains the right and responsibility for taking disciplinary action regarding inadequate job performance and for protecting the public's safety.

3.11 DEFENSIVE DRIVING TRAINING

Each employee who is assigned a Town vehicle or who drives a personal vehicle to conduct Town business shall be required to attend Defensive Driving courses facilitated by the Department Director.

Town employees involved in a preventable motor vehicle accident, while operating a Town vehicle, may be required to take a driver refresher course. The course will be scheduled by the Department Director and conducted as necessary. Failure to satisfactorily complete the course may result in suspension of driving privileges in Town vehicles.

3.12 INCLEMENT WEATHER

In the event of inclement weather, when it is unsafe to operate a Town vehicle due to snow, ice, sleet, high winds, etc., Town vehicles may be grounded at the direction of the Town Manager.

3.13 EMPLOYER RESPONSIBILITIES

The Town Clerk will maintain a record of driving related information on drivers employed by the Town, including the notices of conviction or disqualification. No supervisor may allow anyone to operate a Town motor vehicle while under a disqualification. Department Directors may suspend an employee's privilege to drive Town vehicles or operate equipment, if the Director determines the employee is unsafe or it is not in the best interest of the Town for the employee to drive or operate equipment.

3.14 CONCLUSIONS

These regulations are of a serious nature and consequently could affect the ability of an employee to earn a livelihood. It is the responsibility of the supervisors to communicate these regulations to their employees.

4.0 EMERGENCY ACTION PLAN

The Town of China Grove requires that during every emergency an organized effort be made to protect personnel from injury and to minimize property damage. All of the Town's resources can be made available to respond to an emergency. Each Department Director and supervisor must know what to do during an emergency and must be certain that employees understand their roles. A major emergency may be one of

the following: a major loss to a building or facility; and emergency involves more than one building or facility; a situation in which a choice must be made in the assignment of relative levels of authority among emergency response groups; potential hazard to the surrounding community; threat; civil disturbances or alerts; natural disasters such as earthquakes, floods, or severe weather; and Town wide electrical power or other utility failure.

During response to such major events, if deemed necessary by the Town Manager, fire or police may be summoned. Adequate emergency response will be made at Town government level, with support from fire, medical, protective services and other support organizations.

4.01 SUPERVISORY RESPONSIBILITIES

During an emergency, the supervisor must:

- 1) Ensure that those under his or her supervision are familiar with the plan for the building, particularly the recommended exit routes and how to report an emergency.
- 2) Render assistance to the person in charge during an emergency, as required.
- 3) Maintain familiarity with the shutdown procedures, if applicable, for all equipment used by those under his or her supervision.
- 4) Know the location and use of all safety equipment on his or her floor or area of responsibility.
- 5) Keep employees from reentering an evacuated area until reentry is deemed safe and is permitted by emergency personnel.
- 6) Employees not involved in the emergency must stay away from the scene and follow the instructions issued over the public address system or directly from the person in charge. The sounding of a fire bell or voice alarm (where fire bells are not installed) means immediate evacuation by the nearest exit. Employees must not reenter an area that they have evacuated until notified that it is safe to return.

4.02 EMPLOYEES' RESPONSIBILITIES

Employees, other than emergency-response groups, involved in any emergency greater than a minor incident are expected to act as follows:

- 1) If there is threat of further injury or exposure to hazardous material, remove all injured persons, if possible, and leave the immediate vicinity. If there is no threat of further injury or exposure, leave seriously injured personnel where they are.
- 2) Report the emergency immediately by phone to the 911 Operator. State what happened, the specific location, whether anyone was injured, and your name and phone number.

Proceed with first aid or attempt to control the incident only if you can do so safely and have been trained in first aid or the emergency response necessary to control the incident.

- 3) Show the ranking emergency-response officer where the incident occurred, inform him or her of the hazards associated with the area, provide any other information that will help avoid injuries, and do as he or she requests.
- 4) During severe weather, such as tornadoes or violent thunderstorms, employees should retreat to central hallways, closets or other areas without windows. Stay there until the danger has passed. Do not stay in an area with windows if severe storms are occurring where you work. Do not venture outside until the storm has passed. After the storm has passed, report injuries and damage to the 911 operators. If electricity and telephone lines are down, send someone to the nearest police, fire or ambulance station for help, if needed. Even if there are no injuries or damage, report this to the 911 operators or nearest emergency response site so that we will know you are all right.

4.03 DEPARTMENT DIRECTOR RESPONSIBILITIES

A specific emergency plan for each building or facility must be prepared under the direction of the Department Director with assistance from the Town Clerk.

4.04 BOMB THREAT

If the incident is a bomb threat, the person who receives the call should:

- 1) Keep the callers talking as long as possible, signal a co-worker to call 911 while you are talking. Ask the caller where the alleged bomb is located and when it is scheduled to explode and why he/she is doing this.
- 2) Listen carefully to the caller's voice so that identification may be possible if the caller is arrested.
- 3) As soon as the caller hangs up, start evacuating the building if evacuation has not already started.
- 4) If police have not been called, call 911 now, as you leave the building.

4.05 THREATS FROM OTHER EMPLOYEES, RELATIVES OR CLIENTS

If a disgruntled employee, client, or other person threatens or attempts to harm a Town employee, that employee or another employee should call 911 and ask for assistance. If there is no weapon present, other employees should come to the aid of the person threatened or attacked. If the individual shows a weapon or says they have a weapon, do not attempt to subdue the person. Employees who are immediately threatened should cooperate if the individual is armed. Other employees should call 911 and leave the building quickly and quietly. Do not shout, call attention

to yourself, or otherwise alarm the person with the weapon. Employees should be prepared to give a description of the individual along with the following information to the police:

- 1) Where the person is in the building.
- 2) Who they are, if known.
- 3) If there are any hostages, who they are and their condition.
- 4) What the individual's demands or grievances are, if known.
- 5) The type of weapon(s) if known.

END OF SECTION VII

SECTION VIII

IMPLEMENTATION OF POLICY

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SECTION VIII

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SECTION VIII

1.0 CONFLICTING POLICIES REPEALED

All policies, ordinances, or resolutions that conflict with the provisions of this policy are hereby repealed.

2.0 SEVERABILITY

If any provision of this ordinance or any rule, regulation, or order thereunder of the application of such provision to any person or circumstances is held invalid, the remainder of this ordinance and the application of such remaining provisions of this ordinance of such rules, regulations, or orders to persons or circumstances other than those held invalid will not be affected thereby.

3.0 VIOLATIONS OF POLICY PROVISIONS

An employee violating any of the provisions of this ordinance shall be subject to suspension and/or dismissal, in addition to any civil or criminal penalty which may be imposed for the violation of the same.

4.0 EFFECTIVE DATE

This policy is effective upon adoption until such time as amended or repealed by action of the China Grove Town Council and by resolution appropriately approved. Notice of any amendments to the policy, or any portion thereof, should be provided to employees. Every effort will be made available prior to the amendments going to the Town Council for action. Proposed amendments should be emailed to all employees. Any revisions or amendments adopted in conformance with this procedure shall become effective as of the date of such adoption.

END OF SECTION VIII

SECTION IX

PAY GRADE
CLASSIFICATIONS
and
SALARY SCALE

Town of China Grove

Pay Grade Classifications

<u>Job Title</u>	<u>Number of Positions</u>	<u>Pay Grade</u>
Town Manager	1	28
Finance Director	1	23
Finance Technician	0	13
Town Clerk/Assistant to the Manager	1	23
Customer Service Representative	0	6
Parks and Recreation Director	1	23
Planning and Development Director	1	23
GIS Planner	1	17
Code Enforcement	1	11
Police Chief	1	23
Police Captain	1	20
Community Engagement	1	15
Sergeant/Traffic Officer	1	15
Police Sergeant	2	15
Police Officer	9	13
Fire Chief	1	23
Assistant Fire Chief	1	19
Fire Captain	2	16
Fire Lieutenant	1	15
Fire Engineer	3	13
Fire Fighter	3	11
Public Works Director	1	23
Public Works Supervisor	1	13
Public Works Crew Leader	1	8
Public Works General Laborer	2	4
Public Works General Laborer II	2	7

Adopted 6/06/23;
Amended 9/6/23;
Amended 5/7/24;
Effective 24-25

Town of China Grove
Salary Schedule
2024-2025

% Between Grade	5%
Range	60%

GRADE	START	MINIMUM 5%	MID-RANGE 30%	MAXIMUM 60%
1	26,438	27,760	34,369	42,301
2	27,760	29,148	36,088	44,416
3	29,148	30,605	45,612	46,637
4	30,605	32,135	47,893	48,968
5	32,135	33,744	41,778	51,418
6	33,744	35,430	43,866	53,989
7	35,430	37,214	46,057	56,687
8	37,214	39,074	48,379	59,542
9	39,074	40,637	50,314	62,518
10	40,637	43,080	53,336	65,644
11	43,080	45,233	55,588	68,928
12	45,233	47,495	58,803	72,374
13	47,495	49,870	61,743	75,991
14	49,870	52,364	64,831	79,792
15	52,364	54,982	68,073	83,782
16	54,982	57,729	71,475	87,970
17	57,729	60,615	75,048	92,368
18	60,615	63,648	78,800	96,985
19	63,648	66,830	82,742	101,837
20	66,830	70,171	86,879	106,929
21	70,171	73,679	91,221	112,274
22	73,679	77,362	95,782	117,886
23	77,362	81,231	100,571	123,781
24	81,231	85,292	105,600	129,970
25	85,292	89,555	110,881	136,468
26	89,555	94,034	116,422	143,290
27	94,034	98,736	122,245	150,454
28	98,736	103,672	128,357	157,979
29	103,672	108,857	134,775	165,876
30	108,857	114,298	141,514	174,170
31	114,298	120,013	148,588	182,877

Adopted 6/4/24
Effective 7/1/24

SECTION X

APPENDIX

ITEM A) “REQUEST FOR MILITARY LEAVE”

Please consider this request for leave as I have been called upon for military duty. I request this leave for the duration of this duty.

I understand that I am obligated to return to work at the end of this leave. Upon returning to work, I understand that I am entitled to return to the same position held at the time leave was granted or to one of like classification, seniority, pay, and level of leave accrual. If I decide not to return to work, I realize that I must notify my supervisor immediately. I understand that failure to request re-employment as required by law may be considered a resignation. I understand that the Town will make up any difference between my military base pay and my Town base pay while I am required to serve and that retirement, taxes, FICA and any other authorized deductions may be taken from that difference. The Town will also make its 401K contribution, FICA, and retirement contribution based on that difference.

I also understand that I shall retain all unused vacation and sick leave, although I will cease to earn leave on the date military leave begins. I understand that the Town has chosen to continue supplementing the premiums for my health and/or dental insurance for up to one year. However, I am responsible for payment of my portion of dependent health and/or dental insurance premiums. The first payment of \$_____ will be due by _____ unless I am able to continue payroll deduction. The following payments of \$_____ will be due by _____.

Estimated begin date of Leave is: _____

Estimated end date of Leave is: _____

Employee Signature

Date

Supervisor Signature

Date

ITEM B) “REQUEST FOR MATERNITY LEAVE/SHORT TERM DISABILITY LEAVE”

Please consider this request for _____ leave. I request this leave for the duration of _____ weeks (not to exceed 12 weeks).

I understand that I am obligated to return to work at the end of this leave. Upon returning to work, I understand that I am entitled to return to the same position held at the time leave was granted or to one of like classification, seniority, pay, and level of leave accrual. If I decide not to return to work, I realize that I must notify my supervisor immediately. I understand that failure to request re-employment as required by law may be considered a resignation. I understand that retirement, 401(k), taxes, FICA and any other authorized deductions will be made during the period unless taking “unpaid leave” or if I am receiving short term disability through the Town provided carrier.

I understand that the Town has chosen to continue supplementing the premiums for my health and/or dental insurance during the twelve week period. However, I am responsible for payment of my portion of dependent health and/or dental insurance premiums. The first payment of \$_____ will be due by _____ unless I am able to continue payroll deduction. The following payments of \$_____ will be due by _____.

Estimated begin date of Leave is: _____

Estimated end date of Leave is: _____

Employee Signature

Date

Supervisor Signature

Date

ITEM C) “NOTICE OF RETIREMENT”

TO: Town Clerk

FROM: _____

SUBJECT: NOTICE OF RETIREMENT

DATE: _____

I _____ have decided to retire effective _____ and my last working day will be _____. I understand that I cannot work or receive pay from the Town of China Grove the month my retirement is to become effective. I would like my vacation to be paid as follows:

- _____ Pay my remaining unused vacation days (30 days or less) in my last paycheck.
- _____ Issue a separate check for my remaining unused vacation days (30 days or less).

EMPLOYEE SIGNATURE

DATE

SUPERVISOR SIGNATURE

DATE

DEPARTMENT DIRECTOR SIGNATURE

DATE

ITEM D) “APPLICATION FOR EDUCATION TUITION REIMBURSEMENT”

QUALIFICATIONS: Permanent full-time employees only, not on initial probation, are eligible for tuition reimbursement.

Name:

Department:

1. I am receiving VA, or other governmental assistance. ____YES ____NO
2. This course is a requirement for a degree. ____YES ____NO

If yes: AAS BS/BA MASTERS OTHER

3. I am taking this course to: (CHECK ONE ANSWER).
____ a. Prepare for a new job or position in the city.
____ b. Maintain or improve skills in present job.
____ c. Meet minimum educational qualifications for present job.
____ d. None of the above. (Explain)

COURSE INFORMATION TITLE		PREFIX & NUMBER	CREDIT HOURS	TUITION COST
				\$
				\$
Total				\$
STARTING DATE / /	ENDING DATE / /	TOTAL	SEM./QTR.	\$_____

I HEREBY AGREE TO SUBMIT PROOF OF SUCCESSFULLY COMPLETING THE COURSE(S) WITHIN THIRTY DAYS (30) OF THE ENDING DATE (grade reports, receipts, etc.)

I HEREBY AGREE TO REPAY TO THE CITY ANY MONEY RECEIVED IF I SHOULD LEAVE THE CITY'S EMPLOYMENT PRIOR TO 90 DAYS OF COMPLETION OF COURSE(S) FOR WHICH I RECEIVED PAYMENT, OR IF I SHOULD LEAVE THE CITY'S EMPLOYMENT PRIOR TO TWO (2) YEARS OF COMPLETION OF THE DEGREE FOR WHICH I RECEIVED PAYMENT.

PAYMENT WILL BE MADE TO THE TOWN OF CHINA GROVE BY ME THROUGH DIRECT REIMBURSEMENT OR BY DEDUCTION FROM MY PAYCHECK AS AUTHORIZED BY THE PERSONNEL OFFICER.

Employee Signature:

Date:

Department Director:

Date:

Town Manager Signature:

Date:

ITEM E) “ACCIDENT SUMMARY FORM”

(To be completed by the Department Director and Employee)

Date Completed:

Date of Incident:

Completed By:

Employee(s) Involved in Incident:

Summary of Incident:

Department Director Signature

ITEM F) FITNESS FOR DUTY CERTIFICATION AND NOTICE OF INTENT TO RETURN TO WORK

You are required to provide this fitness for duty certification and intent to return to work to the health care provider who is knowledgeable regarding your medical condition. **Submit the completed form to your supervisor prior to your return to work.** Your supervisor will then forward this form to Human Resources.

Employee Name: _____ Regularly Scheduled Work
Hours: Job Title: _____ Days per
Week Department: _____ Hours per
Day Supervisor: _____
Date Leave Began: _____ Expected Date of Return: _____

TO BE COMPLETED ONLY BY THE HEALTH CARE PROVIDER

I have reviewed the attached job description of the above named patient's duties. YES NO

I have examined the above named patient and certify that s/he is able to resume working (in relation to performing the duties/functions of their job):

_____ Full-time, or
_____ Less than full-time

In relation to the patient's regularly scheduled work hours indicated above, the patient may return to work for the following maximum number of hours per day: _____ on _____ days per week.

Date patient is able to return to work: _____

_____ The patient can return to work with NO restrictions.

OR

_____ The patient can return to work with the following restrictions:

Expected duration of the restrictions:

Signature of Health Care Provider

Type of practice/specialty

Printed Name of Health Care Provider

Date

Telephone

End of Policy

Approved by the Town Council of the Town of China Grove, this the 6th day of April, 2021.

ATTESTED BY:

Pamela L. Mills, CMC Town Clerk

Charles Seaford, Mayor

(Town Seal)